

Village of West Dundee
PRESIDENT AND BOARD OF TRUSTEES
Regular Meeting
Monday, August 5, 2024
07:30 PM

I. Call to Order

II. Roll Call

III. Pledge of Allegiance

IV. Approval of Agenda

V. Village President's Report

[A. Proclamation: Recognizing the Accomplishments of Sophie Ann Baker](#)

[B. Proclamation: Celebrating Half Full Nest's 5th Anniversary](#)

[C. Re-appointment of Dan Finnegan to the West Dundee Police Pension Board](#)

VI. Reports and Questions from Trustees and Working Groups

VII. Village Staff Reports

VIII. Questions from the audience

(not to exceed 30 minutes with a limit of 5 minutes per person requesting to be heard) A. Items on the Agenda B. Items not on the Agenda

IX. Consent Agenda

[A. Approval of Bill List: 08/05/2024](#)

[B. Ratification of Checks: 08/05/2024](#)

[C. Recommendation to Approve Carrington Reserve Maintenance](#)

[D. Special Event and Daily Liquor Permit Request - Village Sponsored Event - Finally Friday](#)

[E. Approval of Minutes: Regular Board Meeting - June 3, 2024](#)

[F. Special Event and Daily Liquor Permit Request - VFW Bags & Brews Tournament](#)

[G. Liquor License Renewal - Sonesta Select Elgin](#)

[H. Approval of Minutes: Regular Board Meeting - June 17, 2024](#)

X. Resolutions and Ordinances

[A. 120 W. Main St.: Consideration of an Ordinance Approving Assignment of a Redevelopment Agreement by and between the Village of West Dundee and 120 Main Dundee LLC \(Trustee Price\)](#)

[B. 305 Oregon Avenue: Consideration of an Ordinance Approving a Special Use Permit to Allow Single Room Occupancy Units and Apartments on the Ground Floor \(Trustee Price\)](#)

XII. New Business

[A. 24-08-05 Authorization to Purchase Public Works Vehicle Replacements \(Trustee Yuscka\)](#)

[B. Authorization to Conduct Village Hall Landscaping \(Trustee Yuscka\)](#)

[C. Authorization to Initiate Auction for Items and Fixtures at Spring Hill Mall \(President Nelson\)](#)

XIV. Executive Session

[A. Section 2 \(C\) \(1\) of the Open Meeting Act: Personnel](#)

XV. Miscellaneous / Future Agenda Items

XVI. Adjournment



PROCLAMATION

Recognizing the Accomplishments of Sophie Ann Baker

As a West Dundee Resident, Student, and Placing 3rd in the USA Weightlifting National Championships

WHEREAS, Sophie Ann Baker has already achieved extraordinary academic and athletic feats as she enters 7th grade at Dundee Middle School; and

WHEREAS, Sophie Ann Baker is a high-grade student, achieving A's in her honors classes and outperforming her competition in every sport she has involved herself with;

WHEREAS, Sophie Ann Baker began her weightlifting and CrossFit journey at age 8 and has demonstrated her winning attitude through various achievements such as placing 3rd place overall in the "Snatch" and "Clean and Jerk" events in the USA Weightlifting National Championships and placing 5th in national CrossFit competitions; and

WHEREAS, Sophie Ann Baker has also excelled in soccer with the Fox Valley Bayern Soccer Club, achieving 11 hat tricks, holding the single-game scoring record of 7 goals, and scoring from the midfield on kickoff 5 times, including once within the first 8 seconds of the game; and

WHEREAS, Sophie Ann Baker further expands her athletic abilities by participating on the Dundee Middle School and Dundee Park District basketball teams and prepares for high school level competition through her involvement in the D300 feeder program; and

WHEREAS, Sophie Ann Baker has shown her ambition for high achievement in all her passions and has, at such a young age, become a commendable part of the West Dundee Community; and

WHEREAS, the Village West Dundee would like to formally recognize Sophie Ann Baker for her significant accomplishment of placing in the 2024 USA Weightlifting National Championships;

NOW, THEREFORE, be it resolved that I, Christopher J. Nelson, acting under the virtue of the authority vested in me by Constitution of the State of Illinois and the Laws of this Village of West Dundee, hereby proclaim Monday, August 19th, 2024 as

SOPHIE ANN BAKER DAY

in the Village of West Dundee and urges all Village residents and businesses to join in its observance.



In Witness Whereof, I have hereunto set my hand and affixed the great seal of the Village of West Dundee at my office on August 19, 2024.

Christopher Nelson, Village President



PROCLAMATION

CELEBRATING HALF FULL NEST'S 5TH ANNIVERSARY IN THE HEART OF DOWNTOWN WEST DUNDEE

WHEREAS, The Half Full Nest Vintage Market, located at 205 West Main Street, nestled within the historic walls of a cherished 1882 church, has become a sight for vintage charm and creativity to the West Dundee community since its opening in August 2019; and

WHEREAS, Angelike Ajroja, founder and curator, has brought her lifelong passion for design and dedication to preserving the beauty of the past to our beloved town; and

WHEREAS, The Half Full Nest Vintage Market has created a space that shares vintage styles from Farmhouse to French Country, from Industrial to Mid Century; and

WHEREAS, The Half Full Nest Vintage Market has offered not only a shopping experience, but a journey through history, design, and the art of creating a home filled with warmth and personality; and

WHEREAS, The Half Full Nest Vintage Market has enriched our community through events such as the Vintage Shop Hop, the Half Ugly Christmas Sweater Soirée, and workshops that celebrate craftsmanship and creativity; and

WHEREAS, The Half Full Nest Vintage Market has exemplified the spirit of entrepreneurship, creativity, and dedication to quality that defines our local businesses; and

WHEREAS, the Village of West Dundee does hereby congratulate The Half Full Nest Vintage Market on its 5th Anniversary for its commitment and contribution to the vibrancy of our West Dundee community.

NOW, THEREFORE BE IT PROCLAIMED, that I, Christopher J. Nelson, acting under and by the authority vested in me by the Constitution of the State of Illinois and Laws of this Village of West Dundee, hereby proclaim Thursday, August 15th, 2024 as Half Full Nest Day.

In Witness Whereof, I have hereunto set my hand and affixed the great seal of the Village of West Dundee at my office on August 5, 2024.



Christopher Nelson, Village President



TO: Village Board of Trustees

FROM: Christopher Nelson, Village President

DATE: August 5, 2024

SUBJECT: Dan Finnegan Re-Appointment - West Dundee Police Pension Board

Based on the term expiration of Dan Finnegan on the West Dundee Police Pension Board, it is my intention to re-appoint Dan for another 2-year term.

MOTION: Move to Approve the Reappointment of Dan Finegan to the West Dundee Police Pension Board.

If you have any questions, please feel free to contact me.

CN:mjp

CC: Joseph Cavallaro, Village Manager
Kathleen Field Orr, Village Attorney
Dan Finnegan, Police Pension Board Nominee
Bruce Jefferson, Police Pension Board President
Dan Haines, Interim Police Chief

VENDOR #	INVOICE				
INVOICE #	STATUS		BATCH	DUE DATE	INVOICE AMT/
ITEM DESCRIPTION	ACCOUNT NUMBER		P.O. #	PROJECT	ITEM AMT

AMA101	AMAZON CAPITAL SERVICES, INC.				
139M-JRT6-DL4C	AB	08/01/2024	080124	08/05/2024	958.24
01 NEW PHONE SYSTEM	4-42-5-1000	ADMINISTRATION/FINANCE			958.24
1G7R-7VVX-FDNK	AB	08/01/2024	080124	08/05/2024	-5.64
01 RET'D ROLLERS PINS WASHERS SET	1-18-3-3500	SMALL EQUIP/TOOLS/HARDWARE			-5.64
1HJX-X6CL-96RN	AB	08/01/2024	080124	08/05/2024	79.57
01 SECURITY CAMERAS QTY 2	1-12-5-1510	COMPUTER EQUIPMENT			79.57
1HWD-RDRR-4NMW	AB	07/15/2024	080124	08/05/2024	-43.11
01 RET'D LAPTOP CASE	2-21-4-4000	SCADA/TECH			-43.11
1JHV-KMPK-9W31	AB	08/01/2024	080124	08/05/2024	1,196.74
01 AMAZON SUPPLIES	1-12-3-0100	OFFICE SUPPLIES			61.99
02 AMAZON SUPPLIES	1-14-3-0100	OFFICE SUPPLIES			210.97
03 AMAZON SUPPLIES	1-14-3-0200	OPERATING SUPPLIES			53.15
04 AMAZON SUPPLIES	1-14-3-3500	SMALL EQUIP/TOOLS/HARDWARE			177.34
05 AMAZON SUPPLIES	1-14-4-0100	DEPARTMENT EQUIPMENT			259.12
06 AMAZON SUPPLIES	1-14-4-0500	AUTOMOTIVE PARTS & REPAIRS			84.98
07 AMAZON SUPPLIES	1-17-3-3500	SMALL EQUIP/TOOLS/HARDWARE			37.98
08 AMAZON SUPPLIES	1-18-3-3500	SMALL EQUIP/TOOLS/HARDWARE			42.95
09 AMAZON SUPPLIES	2-21-3-3500	SMALL EQUIP/TOOLS/HARDWARE			268.26
1JL3-TF4M-D33Y	AB	08/01/2024	080124	08/05/2024	1,485.60
01 NEW PHONE SYSTEM	4-42-5-1000	ADMINISTRATION/FINANCE			1,102.69
02 PRINTER / MOUSE	1-12-5-1510	COMPUTER EQUIPMENT			382.91
1KJ1-M6J6-76G1	AB	08/01/2024	080124	08/05/2024	4,550.92
01 NVR SYSTEM 2024	4-42-5-1100	POLICE DEPART OPERATING EQUIP			4,550.92
1L3F-CPY9-DKKM	AB	08/01/2024	080124	08/05/2024	290.91
01 MIC & NAME PLATES QTY 7	1-15-3-0100	OFFICE SUPPLIES			290.91
1R7X-HD4C-CCKP	AB	08/01/2024	080124	08/05/2024	139.00
01 PW WATER CAMERA DISPLAY	1-12-5-1520	COMPUTER EQUIPMENT REPLACEMENT			139.00

VENDOR # INVOICE #	INVOICE STATUS	ACCOUNT NUMBER	BATCH P.O. #	DUE DATE PROJECT	INVOICE AMT/ ITEM AMT
ITEM DESCRIPTION					

AMA101 1W6X-KJXK-JQQ1	AB				
01 RET'D SCADA LAPTOP CHARGER	2-21-4-4000	07/13/2024 SCADA/TECH	080124	08/05/2024	-18.63 -18.63
				VENDOR TOTAL:	8,633.60
BFT100 65342	AB				
01 TRK STRG BLDG-AIRPORT RD LOT1	1-16-3-3100	07/19/2024 PLAN REVIEW	080124	08/05/2024	4,283.50 4,283.50
65437	AB				
01 319 S 3RD MARTIN 24-1180	1-16-3-3100	07/26/2024 PLAN REVIEW	080124	08/05/2024	350.00 350.00
65443	AB				
01 101 W MAIN BAMBOOZELS 24-1207	1-16-3-3100	07/29/2024 PLAN REVIEW	080124	08/05/2024	200.00 200.00
				VENDOR TOTAL:	4,833.50
COM120 072224 00860	AB				
01 ACCOUNT 8771 10 008 0000860	1-12-3-0510	07/22/2024 DATA INTERNET/EMAIL SERVICES	080124	08/05/2024	95.04 95.04
				VENDOR TOTAL:	95.04
DUN103 480148	AB				
01 SPIN-ON FLUID FILTER QTY 1	1-15-4-0500	06/21/2024 AUTOMOTIVE PARTS	080124	08/05/2024	21.64 21.64
				VENDOR TOTAL:	21.64
GAG100 073124	AB				
01 COFFEE,SUGAR,CREAMER	1-15-3-0100	07/31/2024 OFFICE SUPPLIES	080124	08/05/2024	300.76 200.50
02 COFFEE,SUGAR,CREAMER	1-14-3-6500	MISCELLANEOUS			100.26
				VENDOR TOTAL:	300.76
GRO102 12937997T107	AB				
		08/01/2024	080124	08/05/2024	46,340.91

VENDOR #	INVOICE #	ITEM DESCRIPTION	INVOICE STATUS	ACCOUNT NUMBER	BATCH P.O. #	DUE DATE PROJECT	INVOICE AMT/ITEM AMT
		01 JUL '24 RESIDENTIAL SERVICE		1-17-3-5500		SCAVENGER SERVICE	34,755.68
		02 JUL '24 RESIDENTIAL SERVICE		1-17-3-6000		RECYCLING	11,585.23
						VENDOR TOTAL:	46,340.91
QUI100	38829259	QUILL LLC	AB				
				05/24/2024	080124	08/05/2024	29.58
		01 BINDER CLIPS		1-15-3-0100		OFFICE SUPPLIES	6.00
		02 BINDER CLIPS-MOUSE PAD		1-16-3-0100		OFFICE SUPPLIES	23.58
38838571			AB				
				05/28/2024	080124	08/05/2024	8.99
		01 MINI BINDER CLIPS		1-15-3-0100		OFFICE SUPPLIES	4.50
		02 MINI BINDER CLIPS		1-16-3-0100		OFFICE SUPPLIES	4.49
39024476			AB				
				06/07/2024	080124	08/05/2024	77.98
		01 COPY PAPER		1-15-3-0100		OFFICE SUPPLIES	38.99
		02 COPY PAPER		1-16-3-0100		OFFICE SUPPLIES	38.99
39033036			AB				
				06/10/2024	080124	08/05/2024	69.99
		01 SAPPHIRE RENEWAL		1-15-3-0100		OFFICE SUPPLIES	34.99
		02 SAPPHIRE RENEWAL		1-16-3-0100		OFFICE SUPPLIES	35.00
39692754			AB				
				07/24/2024	080124	08/05/2024	19.89
		01 COFFEE CUPS		1-16-3-0100		OFFICE SUPPLIES	19.89
						VENDOR TOTAL:	206.43
WIL105	25751	WBK ENGINEERING	AB				
				07/09/2024	080124	08/05/2024	2,182.50
		01 ENG SRVCS 5/26/24-6/29/24		1-16-3-3000		CONTRACTUAL SERVICES	2,182.50
25756			AB				
				07/09/2024	080124	08/05/2024	997.00
		01 STROM DR DLXS ENG 5/26-6/29/24		1-16-3-3800		COM. DEV - REIMBURSEABLE EXPEN	997.00
25757			AB				
				07/09/2024	080124	08/05/2024	4,766.56
		01 LENNR HRVST VW ENG5/26-6/29/24		1-16-3-3800		COM. DEV - REIMBURSEABLE EXPEN	4,766.56
25758			AB				
				07/09/2024	080124	08/05/2024	7,445.00

VENDOR #	INVOICE #	INVOICE STATUS	ACCOUNT NUMBER	BATCH P.O. #	DUE DATE PROJECT	INVOICE AMT/ITEM AMT
	ITEM	DESCRIPTION				
	01	LNNR HCKRY GLN ENG5/26-6/29/24	1-16-3-3800	COM. DEV - REIMBURSEABLE EXPEN		7,445.00
WIL105	WBK	ENGINEERING				
25759			AB	07/09/2024	080124 08/05/2024	789.32
	01	GRDNR SNR LVG ENG 5/26-6/29/24	1-16-3-3800	COM. DEV - REIMBURSEABLE EXPEN		789.32
25760			AB	07/09/2024	080124 08/05/2024	1,775.86
	01	WDLNDS@CNTRFLD ENG5/26-6/29/24	1-16-3-3800	COM. DEV - REIMBURSEABLE EXPEN		1,775.86
VENDOR TOTAL:						17,956.24
TOTAL --- ALL INVOICES:						78,388.12

INVOICES DUE ON/BEFORE 07/16/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80040	AEF100	AEP ENERGY					
	070524 29051	07/05/24	01	ACCOUNT 3013129051	1-17-3-1000		1,718.40
					INVOICE TOTAL:		1,718.40 *
	070524 29062	07/05/24	01	ACCOUNT 3013129062	1-17-3-1000		365.60
					INVOICE TOTAL:		365.60 *
	070524 29073	07/05/24	01	ACCOUNT 3013129073	1-17-3-1000		1,365.68
					INVOICE TOTAL:		1,365.68 *
					CHECK TOTAL:		3,449.68
80041	ALA102	ALARM DETECTION SYSTEMS, INC.					
	246132-1004	07/07/24	01	SEARS ALARM AUG-OCT '24	5-01-3-1000		408.00
					INVOICE TOTAL:		408.00 *
	248028-1003	07/07/24	01	MACY'S ALARM AUG-OCT '24	5-02-3-1000		493.50
					INVOICE TOTAL:		493.50 *
					CHECK TOTAL:		901.50
80042	ALL111	ALLEGRA PRINT & IMAGING					
	70177	07/08/24	01	102 2ND 2000 WNDW ENVELOPES	1-12-3-0100		339.21
					INVOICE TOTAL:		339.21 *
					CHECK TOTAL:		339.21
80043	APT100	APTIM ENVIROMENTAL & INFRASTRU					
	635986	06/26/24	01	SPRG HILL REDEV PHASE II ESA	H-12-3-3000		19,470.45
					INVOICE TOTAL:		19,470.45 *
					CHECK TOTAL:		19,470.45

INVOICES DUE ON/BEFORE 07/16/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80044	AYR100	AYRE PRODUCTIONS					
	2024 BIKE RACE	07/11/24	01	STAGE 7/18/24-7/20/24	5-00-3-3620		3,000.00
			02	STAGE DEPOSIT	5-00-3-3500		-1,250.00
					INVOICE TOTAL:		1,750.00 *
					CHECK TOTAL:		1,750.00
80045	CAR120	CARTRONICS AUTO & TRUCK REPAIR					
	1925	07/09/24	01	2011 F450 AMB LIMP & CEL ON	1-15-4-0600		230.00
					INVOICE TOTAL:		230.00 *
					CHECK TOTAL:		230.00
80046	CHI103	CHICAGO TRIBUNE					
	070324 62706	07/03/24	01	M-F THRU 10/2/24	1-11-3-1600		152.84
					INVOICE TOTAL:		152.84 *
					CHECK TOTAL:		152.84
80047	CIT105	CITGO					
	6/11-7/9/24 FD	07/09/24	01	ACCT 0470-00-463085-1	1-15-4-0200		2,100.00
					INVOICE TOTAL:		2,100.00 *
					CHECK TOTAL:		2,100.00
80048	CIT105	CITGO					
	6/11-7/9/24 PD	07/09/24	01	ACCT 0470-00-463148-7	1-14-4-0200		2,500.00
					INVOICE TOTAL:		2,500.00 *
					CHECK TOTAL:		2,500.00
80049	CIT105	CITGO					

INVOICES DUE ON/BEFORE 07/16/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80049	CIT105	CITGO					
	6/11-7/9/24 PW	07/09/24	01	ACCT 0470-00-463148-7	1-17-4-0200		1,200.00
			02	ACCT 0470-00-463148-7	1-18-4-0200		600.00
			03	ACCT 0470-00-463148-7	2-21-4-0200		600.00
			04	ACCT 0470-00-463148-7	2-22-4-0200		600.00
				INVOICE TOTAL:			3,000.00 *
				CHECK TOTAL:			3,000.00
80050	COM117	COMED					
	062924 97000	06/29/24	01	ACCOUNT 6795097000	5-00-3-9519		2,145.96
				INVOICE TOTAL:			2,145.96 *
				CHECK TOTAL:			2,145.96
80051	COM120	COMCAST					
	062824 16127	06/28/24	01	ACCOUNT 8771 10 003 0316127	1-12-3-0510		233.66
				INVOICE TOTAL:			233.66 *
	070224 48889	07/02/24	01	ACCOUNT 8771 10 008 0348889	2-22-3-1000		205.85
				INVOICE TOTAL:			205.85 *
	070524 63755	07/05/24	01	ACCOUNT 8771 10 008 0363755	2-21-3-1000		142.85
				INVOICE TOTAL:			142.85 *
				CHECK TOTAL:			582.36
80052	CRO103	CROWN RESTROOMS					
	PS610315	06/27/24	01	6-21-24 PMP HOUSE EVNT RSTRMS	5-00-3-3500		360.00
				INVOICE TOTAL:			360.00 *
				CHECK TOTAL:			360.00

INVOICES DUE ON/BEFORE 07/16/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80053	FIR125	FIRST AMERICAN BANK					
	7/3-7/10/24	07/10/24	01	INNOVATIVE CREDIT	1-12-3-3000		75.00
			02	IACE-K CONRAD	1-16-2-2500		75.00
			03	GODADDY	1-12-3-3001		23.17
			04	MAILCHIMP	1-12-3-3001		45.90
			05	IPHONE WRSE-VILLAGE PHONES	4-42-5-1000		2,057.09
				INVOICE TOTAL:			2,276.16 *
				CHECK TOTAL:			2,276.16
80054	KAR104	KARDS INC					
	230310	06/19/24	01	2000 PIERCE TOWER-ACCIDENT	1-15-4-0600		26,409.91
				INVOICE TOTAL:			26,409.91 *
				CHECK TOTAL:			26,409.91
80055	KEN101	KLOA INC					
	30492	07/03/24	01	IL72 & WESEMANN SIGNAL STUDY	5-00-3-9519		1,330.00
				INVOICE TOTAL:			1,330.00 *
				CHECK TOTAL:			1,330.00
80056	LAN109	LANER MUCHIN LTD					
	669436	07/01/24	01	COUNSELING	1-13-3-7300		312.50
				INVOICE TOTAL:			312.50 *
				CHECK TOTAL:			312.50
80057	LEG104	LEGACY FIRE APPARATUS					
	INV-19041	05/28/24	01	2000 PIERCE T-381 PNL PWR LOSS	1-15-4-0600		5,888.78
				INVOICE TOTAL:			5,888.78 *
				CHECK TOTAL:			5,888.78

INVOICES DUE ON/BEFORE 07/16/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80058	MOT100	MOTOROLA SOLUTIONS, INC.					
	8532920240604	07/01/24	01	JUL24 17X\$26 4X\$46 1X\$16	1-15-4-1000		642.00
					INVOICE TOTAL:		642.00 *
					CHECK TOTAL:		642.00
80059	NOR133	NORTHWEST MUNICIPAL CONFERENCE					
	11096	05/01/24	01	FY '24-25 NW MUN CONF MEM DUES	1-11-2-3000		5,421.00
					INVOICE TOTAL:		5,421.00 *
					CHECK TOTAL:		5,421.00
80060	OTT102	OTTOSEN DINOLFO HASENBALG &					
	8038	06/30/24	01	ROUTE 31 TIF FUND 5	1-13-3-7300		282.00
					INVOICE TOTAL:		282.00 *
	8039	06/30/24	01	TIF #5 FUND 5	1-13-3-7300		552.25
					INVOICE TOTAL:		552.25 *
	8040	06/30/24	01	HARVEST VIEW	1-13-3-7300		176.25
					INVOICE TOTAL:		176.25 *
	8071	06/30/24	01	RETAINER	1-13-3-7000		1,200.00
					INVOICE TOTAL:		1,200.00 *
	8072	06/30/24	01	GENERAL	1-13-3-7300		4,136.00
			02	TIF #4	G-12-3-7300		658.00
			03	TIF #5	H-12-3-7300		517.00
					INVOICE TOTAL:		5,311.00 *
					CHECK TOTAL:		7,521.50
80061	PIT104	PITNEY BOWES BANK INC.					

INVOICES DUE ON/BEFORE 07/16/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80061	PIT104	PITNEY BOWES BANK INC.					
	071124	07/11/24	01	ACCT 10708394 METER REPLENISH	1-12-3-2000		1,000.00
					INVOICE TOTAL:		1,000.00 *
					CHECK TOTAL:		1,000.00
80062	SCO101	TIMOTHY SCOTT					
	071124	07/11/24	01	CONGRESS FOR THE NEW URBANISM	1-16-2-3000		125.00
					INVOICE TOTAL:		125.00 *
					CHECK TOTAL:		125.00
80063	SHI102	SHIELD COMMUNICATIONS INC					
	10532	07/09/24	01	CABLING-VH, PS1, PS2&PW	4-42-5-1000		27,138.50
					INVOICE TOTAL:		27,138.50 *
	10533	07/11/24	01	CABLING PS2, PS1	4-42-5-1000		4,823.00
					INVOICE TOTAL:		4,823.00 *
					CHECK TOTAL:		31,961.50
80064	SPA103	SPA BLEU					
	080124 SPA BLEU	07/11/24	01	ECON DEV AGRMNT PMT 10 OF 10	5-00-3-3800		7,936.44
					INVOICE TOTAL:		7,936.44 *
					CHECK TOTAL:		7,936.44
80065	TER103	TERRACE SUPPLY COMPANY					
	0071046937	07/08/24	01	OXYGEN CYLINDERS	1-15-3-0300		90.26
					INVOICE TOTAL:		90.26 *
					CHECK TOTAL:		90.26

INVOICES DUE ON/BEFORE 07/16/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80066	VON100	VONAGE BUSINESS INC					
	INV10786243	07/11/24	01	ACCOUNT 412942	1-16-3-0500		456.53
			02	ACCOUNT 412942	1-15-3-0500		456.53
			03	ACCOUNT 412942	1-17-3-0500		456.53
			04	ACCOUNT 412942	1-18-3-0500		456.53
			05	ACCOUNT 412942	2-21-3-0500		456.53
			06	ACCOUNT 412942	2-22-3-0500		456.53
			08	ACCOUNT 412942	1-14-3-0500		456.53
			09	ACCOUNT 412942	1-15-3-0500		456.53
			10	ACCOUNT 412942	1-12-3-0500		456.50
			11	SH ACCOUNT 412942	1-12-3-3800		740.13
			12	RDFPD ACCOUNT 412942	1-12-3-3800		708.54
					INVOICE TOTAL:		5,557.41 *
	INV10797659	07/09/24	01	ACCOUNT 412942	1-12-3-0500		23.01
					INVOICE TOTAL:		23.01 *
					CHECK TOTAL:		5,580.42
80067	ZUK100	ZUKOWSKI, ROGERS, FLOOD &					
	169360	06/30/24	01	AT&T/VERIZON/TOWER NORTH	1-13-3-7300		323.75
					INVOICE TOTAL:		323.75 *
					CHECK TOTAL:		323.75
					TOTAL AMOUNT PAID:		133,801.22

JOURNAL DATE: 07/16/24

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
GENERAL OPERATIONS DEPARTMENT							
01	1-11-2-3000	DUES AND MEMBERSHIPS	NOR133	11096	FY '24-25 NW MUN CONF MEM DU	5,421.00	
02	1-11-3-1600	SUBSCRIPTIONS AND PUBLICATIO	CHI103	070324 62706	M-F THRU 10/2/24	152.84	
03	1-12-3-0100	OFFICE SUPPLIES	ALL111	70177	102 2ND 2000 WNDW ENVELOPES	339.21	
04	1-12-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.50	
05	1-12-3-0500	TELEPHONE	VON100	INV10797659	ACCOUNT 412942	23.01	
06	1-12-3-0510	DATA INTERNET/EMAIL SERVICES	COM120	062824 16127	ACCOUNT 8771 10 003 0316127	233.66	
07	1-12-3-2000	POSTAGE	FIT104	071124	ACCT 10708394 METER REPLENIS	1,000.00	
08	1-12-3-3000	CONTRACTUAL SERVICES	FIR125	7/3-7/10/24	INNOVATIVE CREDIT	75.00	
09	1-12-3-3001	CONTRACTUAL - COMPUTER SUPPO	FIR125	7/3-7/10/24	GODADDY	23.17	
10	1-12-3-3001	CONTRACTUAL - COMPUTER SUPPO	FIR125	7/3-7/10/24	MAILCHIMP	45.90	
11	1-12-3-3800	REIMBURSABLE	VON100	INV10786243	SH ACCOUNT 412942	740.13	
12	1-12-3-3800	REIMBURSABLE	VON100	INV10786243	RDFPD ACCOUNT 412942	708.54	
13	1-13-3-7000	VILLAGE ATTORNEY RETAINER	OTT102	8071	RETAINER	1,200.00	
14	1-13-3-7300	ATTORNEY FEES-OTHER	LAN109	669436	COUNSELING	312.50	
15	1-13-3-7300	ATTORNEY FEES-OTHER	OTT102	8038	ROUTE 31 TIF FUND 5	282.00	
16	1-13-3-7300	ATTORNEY FEES-OTHER	OTT102	8039	TIF #5 FUND 5	552.25	
17	1-13-3-7300	ATTORNEY FEES-OTHER	OTT102	8040	HARVEST VIEW	176.25	
18	1-13-3-7300	ATTORNEY FEES-OTHER	OTT102	8072	GENERAL	4,136.00	
19	1-13-3-7300	ATTORNEY FEES-OTHER	ZUK100	169360	AT&T/VERIZON/TOWER NORTH	323.75	
20	1-14-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
21	1-14-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PD	ACCT 0470-00-463148-7	2,500.00	
22	1-15-3-0300	MEDICAL SUPPLIES	TER103	0071046937	OXYGEN CYLINDERS	90.26	
23	1-15-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
24	1-15-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
25	1-15-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 FD	ACCT 0470-00-463085-1	2,100.00	
26	1-15-4-0600	AUTOMOTIVE MAINT. & REPAIRS	CAR120	1925	2011 F450 AMB LIMP & CEL ON	230.00	
27	1-15-4-0600	AUTOMOTIVE MAINT. & REPAIRS	KAR104	230310	2000 PIERCE TOWER-ACCIDENT	26,409.91	
28	1-15-4-0600	AUTOMOTIVE MAINT. & REPAIRS	LEG104	INV-19041	2000 PIERCE T-381 PNL PWR LO	5,888.78	
29	1-15-4-1000	FLEET RADIO	MOT100	8532920240604	JUL24 17X\$26 4X\$46 1X\$16	642.00	
30	1-16-2-2500	TRAINING	FIR125	7/3-7/10/24	IACE-K CONRAD	75.00	
31	1-16-2-3000	DUES AND MEMBERSHIPS	SCO101	071124	CONGRESS FOR THE NEW URBANIS	125.00	
32	1-16-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
33	1-17-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
34	1-17-3-1000	ELECTRICITY	AEP100	070524 29051	ACCOUNT 3013129051	1,718.40	
35	1-17-3-1000	ELECTRICITY	AEP100	070524 29062	ACCOUNT 3013129062	365.60	
36	1-17-3-1000	ELECTRICITY	AEP100	070524 29073	ACCOUNT 3013129073	1,365.68	
37	1-17-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PW	ACCT 0470-00-463148-7	1,200.00	
38	1-18-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	

DATE: 07/16/24
TIME: 09:58:15
ID: AP213000

VILLAGE OF WEST DUNDEE
DISTRIBUTION JOURNAL # AP-071624

PAGE: 2
F-YR: 25

JOURNAL DATE: 07/16/24

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
GENERAL OPERATIONS DEPARTMENT							
39	1-18-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PW	ACCT 0470-00-463148-7	600.00	
40	1-00-1-1010	FAB - AP CHECKING			ACCOUNTS PAYABLE OFFSET		62,251.52
SEWER & WATER DEPARTMENT							
41	2-21-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
42	2-21-3-1000	ELECTRICITY	COM120	070524 63755	ACCOUNT 8771 10 008 0363755	142.85	
43	2-21-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PW	ACCT 0470-00-463148-7	600.00	
44	2-22-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
45	2-22-3-1000	ELECTRICITY	COM120	070224 48889	ACCOUNT 8771 10 008 0348889	205.85	
46	2-22-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PW	ACCT 0470-00-463148-7	600.00	
47	2-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		2,461.76
VILLAGE FACILITIES DEPARTMENT							
48	4-42-5-1000	ADMINISTRATION/FINANCE	FIR125	7/3-7/10/24	IPHONE WRSE-VILLAGE PHONES	2,057.09	
49	4-42-5-1000	ADMINISTRATION/FINANCE	SHI102	10532	CABLING-VH, PS1, PS2&PW	27,138.50	
50	4-42-5-1000	ADMINISTRATION/FINANCE	SHI102	10533	CABLING PS2, PS1	4,823.00	
51	4-00-5-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		34,018.59
COMMUNITY DEVELOPMENT FUND							
52	5-00-3-3500	VILLAGE AND COMMUNITY EVENTS	AYR100	2024 BIKE RACE	STAGE DEPOSIT		1,250.00
53	5-00-3-3500	VILLAGE AND COMMUNITY EVENTS	CRO103	PS610315	6-21-24 PMP HOUSE EVNT RSTRM	360.00	
54	5-00-3-3620	BIKE RACE EVENT EXPENSES	AYR100	2024 BIKE RACE	STAGE 7/18/24-7/20/24	3,000.00	
55	5-00-3-3800	ECONOMIC DEVELOPMENT INCENTI	SPA103	080124 SPA BLEU	ECON DEV AGRMNT PMT 10 OF 1	7,936.44	
56	5-00-3-9519	TRAFFIC/PEDESTRIAN SAFETY	COM117	062924 97000	ACCOUNT 6795097000	2,145.96	
57	5-00-3-9519	TRAFFIC/PEDESTRIAN SAFETY	KEN101	30492	IL72 & WESEMANN SIGNAL STUDY	1,330.00	
58	5-01-3-1000	CONTRACTUAL SERVICES-SEARS	ALA102	246132-1004	SEARS ALARM AUG-OCT '24	408.00	
59	5-02-3-1000	CONTRACTUAL SERVICES-MACY'S	ALA102	248028-1003	MACY'S ALARM AUG-OCT '24	493.50	
60	5-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		14,423.90
TIF #4 - RT 72/31 CORRIDOR							
61	G-12-3-7300	LEGAL FEES	OTT102	8072	TIF #4	658.00	
62	G-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		658.00

TIF #5 - SHM REDEVELOPMNT AREA

DATE: 07/16/24
TIME: 09:58:15
ID: AP213000

VILLAGE OF WEST DUNDEE
DISTRIBUTION JOURNAL # AP-071624

PAGE: 3
F-YR: 25

JOURNAL DATE: 07/16/24

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
TIF #5 - SHM REDEVELOPMNT AREA							
63	H-12-3-3000	CONTRACTUAL EXPENSES	APT100	635986	SPRG HILL REDEV PHASE II ESA	19,470.45	
64	H-12-3-7300	LEGAL FEES	OTT102	8072	TIF #5	517.00	
65	H-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		19,987.45
INTERFUND SUMMARY							
66	1-00-1-1290	DUE TO/FROM FND 2 SEWER&WATE			ACCTS PAYABLE INTERFUND OFFS	2,461.76	
67	1-00-1-1330	DUE TO/FROM FND 4 VILLAGE FA			ACCTS PAYABLE INTERFUND OFFS	34,018.59	
68	1-00-1-1340	DUE TO/FROM FND 5 COMM DEVEL			ACCTS PAYABLE INTERFUND OFFS	14,423.90	
69	1-00-1-1485	DUE TO/FROM FND G TIF#4 R72/			ACCTS PAYABLE INTERFUND OFFS	658.00	
70	1-00-1-1487	DUE TO/FROM FND H TIF#5 SHM			ACCTS PAYABLE INTERFUND OFFS	19,987.45	
71	1-00-1-1010	FAB - AP CHECKING			ACCTS PAYABLE INTERFUND OFFS		71,549.70
TOTALS:						206,600.92	206,600.92

ENTRY DATE: 07/16/2024

JOURNAL #: AP-071624

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
GENERAL OPERATIONS DEPARTMENT							
01	1-11-2-3000	DUES AND MEMBERSHIPS	NOR133	11096	FY '24-25 NW MUN CONF MEM DU	5,421.00	
02	1-11-3-1600	SUBSCRIPTIONS AND PUBLICATIO	CHI103	070324 62706	M-F THRU 10/2/24	152.84	
03	1-12-3-0100	OFFICE SUPPLIES	ALL111	70177	102 2ND 2000 WNDW ENVELOPES	339.21	
04	1-12-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.50	
05	1-12-3-0500	TELEPHONE	VON100	INV10797659	ACCOUNT 412942	23.01	
06	1-12-3-0510	DATA INTERNET/EMAIL SERVICES	COM120	062824 16127	ACCOUNT 8771 10 003 0316127	233.66	
07	1-12-3-2000	POSTAGE	PIT104	071124	ACCT 10708394 METER REPLENIS	1,000.00	
08	1-12-3-3000	CONTRACTUAL SERVICES	FIR125	7/3-7/10/24	INNOVATIVE CREDIT	75.00	
09	1-12-3-3001	CONTRACTUAL - COMPUTER SUPPO	FIR125	7/3-7/10/24	GODADDY	23.17	
10	1-12-3-3001	CONTRACTUAL - COMPUTER SUPPO	FIR125	7/3-7/10/24	MAILCHIMP	45.90	
11	1-12-3-3800	REIMBURSABLE	VON100	INV10786243	SH ACCOUNT 412942	740.13	
12	1-12-3-3800	REIMBURSABLE	VON100	INV10786243	RDFPD ACCOUNT 412942	708.54	
13	1-13-3-7000	VILLAGE ATTORNEY RETAINER	OTT102	8071	RETAINER	1,200.00	
14	1-13-3-7300	ATTORNEY FEES-OTHER	LAN109	669436	COUNSELING	312.50	
15	1-13-3-7300	ATTORNEY FEES-OTHER	OTT102	8038	ROUTE 31 TIF FUND 5	282.00	
16	1-13-3-7300	ATTORNEY FEES-OTHER	OTT102	8039	TIF #5 FUND 5	552.25	
17	1-13-3-7300	ATTORNEY FEES-OTHER	OTT102	8040	HARVEST VIEW	176.25	
18	1-13-3-7300	ATTORNEY FEES-OTHER	OTT102	8072	GENERAL	4,136.00	
19	1-13-3-7300	ATTORNEY FEES-OTHER	ZUK100	169360	AT&T/VERIZON/TOWER NORTH	323.75	
20	1-14-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
21	1-14-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PD	ACCT 0470-00-463148-7	2,500.00	
22	1-15-3-0300	MEDICAL SUPPLIES	TER103	0071046937	OXYGEN CYLINDERS	90.26	
23	1-15-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
24	1-15-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
25	1-15-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 FD	ACCT 0470-00-463085-1	2,100.00	
26	1-15-4-0600	AUTOMOTIVE MAINT. & REPAIRS	CAR120	1925	2011 F450 AMB LIMP & CEL ON	230.00	
27	1-15-4-0600	AUTOMOTIVE MAINT. & REPAIRS	KAR104	230310	2000 PIERCE TOWER-ACCIDENT	26,409.91	
28	1-15-4-0600	AUTOMOTIVE MAINT. & REPAIRS	LEG104	INV-19041	2000 PIERCE T-381 PNL PWR LO	5,888.78	
29	1-15-4-1000	FLEET RADIO	MOT100	8532920240604	JUL24 17X\$26 4X\$46 1X\$16	642.00	
30	1-16-2-2500	TRAINING	FIR125	7/3-7/10/24	IACE-K CONRAD	75.00	
31	1-16-2-3000	DUES AND MEMBERSHIPS	SCO101	071124	CONGRESS FOR THE NEW URBANIS	125.00	
32	1-16-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
33	1-17-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
34	1-17-3-1000	ELECTRICITY	AEP100	070524 29051	ACCOUNT 3013129051	1,718.40	
35	1-17-3-1000	ELECTRICITY	AEP100	070524 29062	ACCOUNT 3013129062	365.60	
36	1-17-3-1000	ELECTRICITY	AEP100	070524 29073	ACCOUNT 3013129073	1,365.68	
37	1-17-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PW	ACCT 0470-00-463148-7	1,200.00	

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
GENERAL OPERATIONS DEPARTMENT							
38	1-18-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
39	1-18-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PW	ACCT 0470-00-463148-7	600.00	
40	1-00-1-1010	FAB - AP CHECKING			ACCOUNTS PAYABLE OFFSET		62,251.52
SEWER & WATER DEPARTMENT							
41	2-21-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
42	2-21-3-1000	ELECTRICITY	COM120	070524 63755	ACCOUNT 8771 10 008 0363755	142.85	
43	2-21-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PW	ACCT 0470-00-463148-7	600.00	
44	2-22-3-0500	TELEPHONE	VON100	INV10786243	ACCOUNT 412942	456.53	
45	2-22-3-1000	ELECTRICITY	COM120	070224 48889	ACCOUNT 8771 10 008 0348889	205.85	
46	2-22-4-0200	VEHICLE FUEL	CIT105	6/11-7/9/24 PW	ACCT 0470-00-463148-7	600.00	
47	2-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		2,461.76
VILLAGE FACILITIES DEPARTMENT							
48	4-42-5-1000	ADMINISTRATION/FINANCE	FIR125	7/3-7/10/24	IPHONE WRSE-VILLAGE PHONES	2,057.09	
49	4-42-5-1000	ADMINISTRATION/FINANCE	SHI102	10532	CABLING-VH,PS1,PS2&PW	27,138.50	
50	4-42-5-1000	ADMINISTRATION/FINANCE	SHI102	10533	CABLING PS2, PS1	4,823.00	
51	4-00-5-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		34,018.59
COMMUNITY DEVELOPMENT FUND							
52	5-00-3-3500	VILLAGE AND COMMUNITY EVENTS	AYR100	2024 BIKE RACE	STAGE DEPOSIT		1,250.00
53	5-00-3-3500	VILLAGE AND COMMUNITY EVENTS	CRO103	PS610315	6-21-24 PMP HOUSE EVNT RSTRM	360.00	
54	5-00-3-3620	BIKE RACE EVENT EXPENSES	AYR100	2024 BIKE RACE	STAGE 7/18/24-7/20/24	3,000.00	
55	5-00-3-3800	ECONOMIC DEVELOPMENT INCENTI	SPA103	080124 SPA BLEU	ECON DEV AGRMNT PMT 10 OF 1	7,936.44	
56	5-00-3-9519	TRAFFIC/PEDESTRIAN SAFETY	COM117	062924 97000	ACCOUNT 6795097000	2,145.96	
57	5-00-3-9519	TRAFFIC/PEDESTRIAN SAFETY	KEN101	30492	IL72 & WESEMANN SIGNAL STUDY	1,330.00	
58	5-01-3-1000	CONTRACTUAL SERVICES-SEARS	ALA102	246132-1004	SEARS ALARM AUG-OCT '24	408.00	
59	5-02-3-1000	CONTRACTUAL SERVICES-MACY'S	ALA102	248028-1003	MACY'S ALARM AUG-OCT '24	493.50	
60	5-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		14,423.90
TIF #4 - RT 72/31 CORRIDOR							
61	G-12-3-7300	LEGAL FEES	OTT102	8072	TIF #4	658.00	
62	G-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		658.00

TIF #5 - SHM REDEVELOPMNT AREA

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
TIF #5 - SHM REDEVELOPMNT AREA							
63	H-12-3-3000	CONTRACTUAL EXPENSES	APT100	635986	SPRG HILL REDEV PHASE II ESA	19,470.45	
64	H-12-3-7300	LEGAL FEES	OTT102	8072	TIF #5	517.00	
65	H-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		19,987.45

INTERFUND POSTED SUMMARY

66	1-00-1-1290	DUE TO/FROM FND 2 SEWER&WATE	ACCTS PAYABLE INTERFUND OFFS	2,461.76	
67	1-00-1-1330	DUE TO/FROM FND 4 VILLAGE FA	ACCTS PAYABLE INTERFUND OFFS	34,018.59	
68	1-00-1-1340	DUE TO/FROM FND 5 COMM DEVEL	ACCTS PAYABLE INTERFUND OFFS	14,423.90	
69	1-00-1-1485	DUE TO/FROM FND G TIF#4 R72/	ACCTS PAYABLE INTERFUND OFFS	658.00	
70	1-00-1-1487	DUE TO/FROM FND H TIF#5 SHM	ACCTS PAYABLE INTERFUND OFFS	19,987.45	
71	1-00-1-1010	FAB - AP CHECKING	ACCTS PAYABLE INTERFUND OFFS		71,549.70
				-----	-----
TOTALS:				206,600.92	206,600.92

CHECK DATE: 07/16/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80040	AEP100	AEP ENERGY					
	070524	29051	07/05/24	01	ACCOUNT 3013129051	1-17-3-1000	1,718.40
					INVOICE TOTAL:		1,718.40 *
	070524	29062	07/05/24	01	ACCOUNT 3013129062	1-17-3-1000	365.60
					INVOICE TOTAL:		365.60 *
	070524	29073	07/05/24	01	ACCOUNT 3013129073	1-17-3-1000	1,365.68
					INVOICE TOTAL:		1,365.68 *
					CHECK TOTAL:		3,449.68
80041	ALA102	ALARM DETECTION SYSTEMS, INC.					
	246132	-1004	07/07/24	01	SEARS ALARM AUG-OCT '24	5-01-3-1000	408.00
					INVOICE TOTAL:		408.00 *
	248028	-1003	07/07/24	01	MACY'S ALARM AUG-OCT '24	5-02-3-1000	493.50
					INVOICE TOTAL:		493.50 *
					CHECK TOTAL:		901.50
80042	ALL111	ALLEGRA PRINT & IMAGING					
	70177		07/08/24	01	102 2ND 2000 WNDW ENVELOPES	1-12-3-0100	339.21
					INVOICE TOTAL:		339.21 *
					CHECK TOTAL:		339.21
80043	APT100	APTIM ENVIROMENTAL & INFRASTRU					
	635986		06/26/24	01	SPRG HILL REDEV PHASE II ESA	H-12-3-3000	19,470.45
					INVOICE TOTAL:		19,470.45 *
					CHECK TOTAL:		19,470.45

CHECK DATE: 07/16/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80044	AYR100	AYRE PRODUCTIONS					
	2024	BIKE RACE	07/11/24	01	STAGE 7/18/24-7/20/24	5-00-3-3620	3,000.00
				02	STAGE DEPOSIT	5-00-3-3500	-1,250.00
					INVOICE TOTAL:		1,750.00 *
					CHECK TOTAL:		1,750.00
80045	CAR120	CARTRONICS AUTO & TRUCK REPAIR					
	1925		07/09/24	01	2011 F450 AMB LIMP & CEL ON	1-15-4-0600	230.00
					INVOICE TOTAL:		230.00 *
					CHECK TOTAL:		230.00
80046	CHI103	CHICAGO TRIBUNE					
	070324	62706	07/03/24	01	M-F THRU 10/2/24	1-11-3-1600	152.84
					INVOICE TOTAL:		152.84 *
					CHECK TOTAL:		152.84
80047	CIT105	CITGO					
	6/11-7/9/24	FD	07/09/24	01	ACCT 0470-00-463085-1	1-15-4-0200	2,100.00
					INVOICE TOTAL:		2,100.00 *
					CHECK TOTAL:		2,100.00
80048	CIT105	CITGO					
	6/11-7/9/24	PD	07/09/24	01	ACCT 0470-00-463148-7	1-14-4-0200	2,500.00
					INVOICE TOTAL:		2,500.00 *
					CHECK TOTAL:		2,500.00
80049	CIT105	CITGO					

CHECK DATE: 07/16/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80049	CIT105	CITGO					
	6/11-7/9/24	PW	07/09/24	01	ACCT 0470-00-463148-7	1-17-4-0200	1,200.00
				02	ACCT 0470-00-463148-7	1-18-4-0200	600.00
				03	ACCT 0470-00-463148-7	2-21-4-0200	600.00
				04	ACCT 0470-00-463148-7	2-22-4-0200	600.00
					INVOICE TOTAL:		3,000.00 *
					CHECK TOTAL:		3,000.00
80050	COM117	COMED					
	062924	97000	06/29/24	01	ACCOUNT 6795097000	5-00-3-9519	2,145.96
					INVOICE TOTAL:		2,145.96 *
					CHECK TOTAL:		2,145.96
80051	COM120	COMCAST					
	062824	16127	06/28/24	01	ACCOUNT 8771 10 003 0316127	1-12-3-0510	233.66
					INVOICE TOTAL:		233.66 *
	070224	48889	07/02/24	01	ACCOUNT 8771 10 008 0348889	2-22-3-1000	205.85
					INVOICE TOTAL:		205.85 *
	070524	63755	07/05/24	01	ACCOUNT 8771 10 008 0363755	2-21-3-1000	142.85
					INVOICE TOTAL:		142.85 *
					CHECK TOTAL:		582.36
80052	CRO103	CROWN RESTROOMS					
	PS610315		06/27/24	01	6-21-24 PMP HOUSE EVNT RSTRMS	5-00-3-3500	360.00
					INVOICE TOTAL:		360.00 *
					CHECK TOTAL:		360.00

CHECK DATE: 07/16/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80053	FIR125	FIRST AMERICAN BANK					
	7/3-7/10/24		07/10/24	01	INNOVATIVE CREDIT	1-12-3-3000	75.00
				02	IACE-K CONRAD	1-16-2-2500	75.00
				03	GODADDY	1-12-3-3001	23.17
				04	MAILCHIMP	1-12-3-3001	45.90
				05	IPHONE WRSE-VILLAGE PHONES	4-42-5-1000	2,057.09
					INVOICE TOTAL:		2,276.16 *
					CHECK TOTAL:		2,276.16
80054	KAR104	KARDS INC					
	230310		06/19/24	01	2000 PIERCE TOWER-ACCIDENT	1-15-4-0600	26,409.91
					INVOICE TOTAL:		26,409.91 *
					CHECK TOTAL:		26,409.91
80055	KEN101	KLOA INC					
	30492		07/03/24	01	IL72 & WESEMANN SIGNAL STUDY	5-00-3-9519	1,330.00
					INVOICE TOTAL:		1,330.00 *
					CHECK TOTAL:		1,330.00
80056	LAN109	LANER MUCHIN LTD					
	669436		07/01/24	01	COUNSELING	1-13-3-7300	312.50
					INVOICE TOTAL:		312.50 *
					CHECK TOTAL:		312.50
80057	LEG104	LEGACY FIRE APPARATUS					
	INV-19041		05/28/24	01	2000 PIERCE T-381 PNL PWR LOSS	1-15-4-0600	5,888.78
					INVOICE TOTAL:		5,888.78 *
					CHECK TOTAL:		5,888.78

CHECK DATE: 07/16/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80058	MOT100	MOTOROLA SOLUTIONS, INC.					
	8532920240604		07/01/24	01	JUL24 17X\$26 4X\$46 1X\$16	1-15-4-1000	642.00
					INVOICE TOTAL:		642.00 *
					CHECK TOTAL:		642.00
80059	NOR133	NORTHWEST MUNICIPAL CONFERENCE					
	11096		05/01/24	01	FY '24-25 NW MUN CONF MEM DUES	1-11-2-3000	5,421.00
					INVOICE TOTAL:		5,421.00 *
					CHECK TOTAL:		5,421.00
80060	OTT102	OTTOSEN DINOLFO HASENBALG &					
	8038		06/30/24	01	ROUTE 31 TIF FUND 5	1-13-3-7300	282.00
					INVOICE TOTAL:		282.00 *
	8039		06/30/24	01	TIF #5 FUND 5	1-13-3-7300	552.25
					INVOICE TOTAL:		552.25 *
	8040		06/30/24	01	HARVEST VIEW	1-13-3-7300	176.25
					INVOICE TOTAL:		176.25 *
	8071		06/30/24	01	RETAINER	1-13-3-7000	1,200.00
					INVOICE TOTAL:		1,200.00 *
	8072		06/30/24	01	GENERAL	1-13-3-7300	4,136.00
				02	TIF #4	G-12-3-7300	658.00
				03	TIF #5	H-12-3-7300	517.00
					INVOICE TOTAL:		5,311.00 *
					CHECK TOTAL:		7,521.50
80061	PIT104	PITNEY BOWES BANK INC.					

CHECK DATE: 07/16/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80061	PIT104	PITNEY BOWES BANK INC.					
	071124		07/11/24	01	ACCT 10708394 METER REPLENISH	1-12-3-2000	1,000.00
					INVOICE TOTAL:		1,000.00 *
					CHECK TOTAL:		1,000.00
80062	SCO101	TIMOTHY SCOTT					
	071124		07/11/24	01	CONGRESS FOR THE NEW URBANISM	1-16-2-3000	125.00
					INVOICE TOTAL:		125.00 *
					CHECK TOTAL:		125.00
80063	SHI102	SHIELD COMMUNICATIONS INC					
	10532		07/09/24	01	CABLING-VH, PS1, PS2&PW	4-42-5-1000	27,138.50
					INVOICE TOTAL:		27,138.50 *
	10533		07/11/24	01	CABLING PS2, PS1	4-42-5-1000	4,823.00
					INVOICE TOTAL:		4,823.00 *
					CHECK TOTAL:		31,961.50
80064	SPA103	SPA BLEU					
	080124	SPA BLEU	07/11/24	01	ECON DEV AGRMNT PMT 10 OF 10	5-00-3-3800	7,936.44
					INVOICE TOTAL:		7,936.44 *
					CHECK TOTAL:		7,936.44
80065	TER103	TERRACE SUPPLY COMPANY					
	0071046937		07/08/24	01	OXYGEN CYLINDERS	1-15-3-0300	90.26
					INVOICE TOTAL:		90.26 *
					CHECK TOTAL:		90.26

CHECK DATE: 07/16/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80066	VON100	VONAGE BUSINESS INC					
	INV10786243		07/11/24	01	ACCOUNT 412942	1-16-3-0500	456.53
				02	ACCOUNT 412942	1-15-3-0500	456.53
				03	ACCOUNT 412942	1-17-3-0500	456.53
				04	ACCOUNT 412942	1-18-3-0500	456.53
				05	ACCOUNT 412942	2-21-3-0500	456.53
				06	ACCOUNT 412942	2-22-3-0500	456.53
				08	ACCOUNT 412942	1-14-3-0500	456.53
				09	ACCOUNT 412942	1-15-3-0500	456.53
				10	ACCOUNT 412942	1-12-3-0500	456.50
				11	SH ACCOUNT 412942	1-12-3-3800	740.13
				12	RDFPD ACCOUNT 412942	1-12-3-3800	708.54
					INVOICE TOTAL:		5,557.41 *
	INV10797659		07/09/24	01	ACCOUNT 412942	1-12-3-0500	23.01
					INVOICE TOTAL:		23.01 *
					CHECK TOTAL:		5,580.42
80067	ZUK100	ZUKOWSKI, ROGERS, FLOOD &					
	169360		06/30/24	01	AT&T/VERIZON/TOWER NORTH	1-13-3-7300	323.75
					INVOICE TOTAL:		323.75 *
					CHECK TOTAL:		323.75
					TOTAL AMOUNT PAID:		133,801.22

INVOICES DUE ON/BEFORE 07/17/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80068	AFL100	AFLAC					
	720523	07/12/24	01	7-11-24 & 7-25-24 PAYROLL DED	1-00-2-2450		259.78
					INVOICE TOTAL:		259.78 *
					CHECK TOTAL:		259.78
80069	ASSO100	ASSOCIATED TECHNICAL SERVICES					
	38434	05/03/24	01	LEAK DETECTION 2120 STEWART	2-21-3-3000		1,080.00
					INVOICE TOTAL:		1,080.00 *
					CHECK TOTAL:		1,080.00
80070	COM120	COMCAST					
	070124 12345	07/01/24	01	ACCOUNT 8771 10 008 0012345	1-12-3-0510		118.33
					INVOICE TOTAL:		118.33 *
	071324 50424	07/13/24	01	ACCOUNT 8771 10 008 0250424	1-12-3-0510		312.85
					INVOICE TOTAL:		312.85 *
					CHECK TOTAL:		431.18
80071	COM128	COMCAST					
	209160123	07/01/24	01	ACCT 939750878	1-16-3-0500		581.46
			02	ACCT 939750878	1-15-3-0500		249.19
			03	ACCT 939750878	1-17-3-0500		484.54
			04	ACCT 939750878	1-18-3-0500		484.54
			05	ACCT 939750878	2-21-3-0500		484.54
			06	ACCT 939750878	2-22-3-0500		484.55
			07	ACCT 939750878	1-14-3-0500		553.76
			08	ACCT 939750878	1-15-3-0500		138.44
			09	ACCT 939750878	1-12-3-0500		692.20
			10	QUADCOM ACCT 939750878	1-12-3-3800		830.65
					INVOICE TOTAL:		4,983.87 *

INVOICES DUE ON/BEFORE 07/17/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80071	COM128	COMCAST					
	209160127	07/01/24	01	EDFPD ACCT 980839313	1-12-3-3800		793.25
					INVOICE TOTAL:		793.25 *
	209160128	07/01/24	01	SH ACCT 980839317	1-12-3-3800		200.60
	*** VOID---LEADER CHECK ***						
80072	COM128	COMCAST					
			02	RDFFD ACCT 980839317	1-12-3-3800		200.60
			03	QUADCOM ACCT 980839317	1-12-3-3800		200.59
					INVOICE TOTAL:		601.79 *
					CHECK TOTAL:		6,378.91
80073	KOR102	BRUCE C KORT					
	071424	07/14/24	01	BAND 7-14-24 PUMP HOUSE EVENT	5-00-3-3500		700.00
					INVOICE TOTAL:		700.00 *
					CHECK TOTAL:		700.00
80074	PAH100	PAHCS II / NORTHWESTERN MED					
	552747	06/28/24	01	BEVERS-DRUG SCRNL&ALCOHOL TEST	2-21-2-2000		69.60
			02	BEVERS-DRUG SCRNL&ALCOHOL TEST	2-22-2-2000		17.40
					INVOICE TOTAL:		87.00 *
					CHECK TOTAL:		87.00
80075	TOU101	STEPHEN D. TOUSEY LAW OFFICES					
	050124	05/01/24	01	MAY 2024 PROSECUTION	1-13-3-7100		750.00
					INVOICE TOTAL:		750.00 *
					CHECK TOTAL:		750.00

INVOICES DUE ON/BEFORE 07/17/2024

CHECK #	VENDOR # INVOICE #	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	PROJECT CODE	ITEM AMT
80076	VIL100	PETTY CASH					
	071724 VH	07/17/24	01	USPS-BMO LOC FRED SEASONS	1-12-3-2000		30.90
			02	USPS-NAPERVILLE IL	1-12-3-2000		12.20
			03	USPS-WINFIELD IL	1-12-3-2000		10.80
			04	COFFEE	1-12-3-0100		36.38
			05	COFFEE FILTERS	1-12-3-0100		5.51
			06	USPS-CLEVELAND OH	1-12-3-2000		9.80
			07	BABCOCK-EPA	2-21-2-2000		10.00
			08	KIRK-EPA	2-21-2-2000		10.00
			09	RIVERA-CDL	1-17-2-2000		61.35
			10	USPS-EPA BABCOCK & KIRK	2-21-2-2000		30.75
				INVOICE TOTAL:			217.69 *
				CHECK TOTAL:			217.69
80077	WES102	WEST DUNDEE FIREFIGHTER					
	071724	07/17/24	01	3RD PROPERTY TAX DISTRIBUTION	1-15-2-0500		37,301.05
				INVOICE TOTAL:			37,301.05 *
				CHECK TOTAL:			37,301.05
80078	WES104	WEST DUNDEE POLICE PENSION					
	071724	07/17/24	01	3RD PROPERTY TAX DISTRIBUTION	1-14-2-0500		84,142.29
				INVOICE TOTAL:			84,142.29 *
				CHECK TOTAL:			84,142.29
				TOTAL AMOUNT PAID:			131,347.90

JOURNAL DATE: 07/17/24

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
GENERAL OPERATIONS DEPARTMENT							
01	1-00-2-2450	AFLAC	AFL100	720523	7-11-24 & 7-25-24 PAYROLL DE	259.78	
02	1-12-3-0100	OFFICE SUPPLIES	VIL100	071724 VH	COFFEE	36.38	
03	1-12-3-0100	OFFICE SUPPLIES	VIL100	071724 VH	COFFEE FILTERS	5.51	
04	1-12-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	692.20	
05	1-12-3-0510	DATA INTERNET/EMAIL SERVICES	COM120	070124 12345	ACCOUNT 8771 10 008 0012345	118.33	
06	1-12-3-0510	DATA INTERNET/EMAIL SERVICES	COM120	071324 50424	ACCOUNT 8771 10 008 0250424	312.85	
07	1-12-3-2000	POSTAGE	VIL100	071724 VH	USPS-BMO LOC FRED SEASONS	30.90	
08	1-12-3-2000	POSTAGE	VIL100	071724 VH	USPS-NAPERVILLE IL	12.20	
09	1-12-3-2000	POSTAGE	VIL100	071724 VH	USPS-WINFIELD IL	10.80	
10	1-12-3-2000	POSTAGE	VIL100	071724 VH	USPS-CLEVELAND OH	9.80	
11	1-12-3-3800	REIMBURSABLE	COM128	209160123	QUADCOM ACCT 939750878	830.65	
12	1-12-3-3800	REIMBURSABLE	COM128	209160127	EDFPD ACCT 980839313	793.25	
13	1-12-3-3800	REIMBURSABLE	COM128	209160128	SH ACCT 980839317	200.60	
14	1-12-3-3800	REIMBURSABLE	COM128	209160128	RDFPD ACCT 980839317	200.60	
15	1-12-3-3800	REIMBURSABLE	COM128	209160128	QUADCOM ACCT 980839317	200.59	
16	1-13-3-7100	VILLAGE PROSECUTOR RETAINER	TOU101	050124	MAY 2024 PROSECUTION	750.00	
17	1-14-2-0500	VILLAGE CONTRIBUTION - PENSI	WES104	071724	3RD PROPERTY TAX DISTRIBUTIO	84,142.29	
18	1-14-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	553.76	
19	1-15-2-0500	VILLAGE CONTRIBUTION - PENSI	WES102	071724	3RD PROPERTY TAX DISTRIBUTIO	37,301.05	
20	1-15-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	249.19	
21	1-15-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	138.44	
22	1-16-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	581.46	
23	1-17-2-2000	SAFETY EQUIPMENT & PROGRAMS	VIL100	071724 VH	RIVERA-CDL	61.35	
24	1-17-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	484.54	
25	1-18-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	484.54	
26	1-00-1-1010	FAB - AP CHECKING			ACCOUNTS PAYABLE OFFSET		128,461.06
SEWER & WATER DEPARTMENT							
27	2-21-2-2000	SAFETY EQUIPMENT PROGRAM	PAH100	552747	BEVERS-DRUG SCRNLALCOHOL TES	69.60	
28	2-21-2-2000	SAFETY EQUIPMENT PROGRAM	VIL100	071724 VH	BABCOCK-EPA	10.00	
29	2-21-2-2000	SAFETY EQUIPMENT PROGRAM	VIL100	071724 VH	KIRK-EPA	10.00	
30	2-21-2-2000	SAFETY EQUIPMENT PROGRAM	VIL100	071724 VH	USPS-EPA BABCOCK & KIRK	30.75	
31	2-21-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	484.54	
32	2-21-3-3000	CONTRACTUAL SERVICES	ASSO100	38434	LEAK DETECTION 2120 STEWART	1,080.00	
33	2-22-2-2000	SAFETY EQUIPMENT PROGRAM	PAH100	552747	BEVERS-DRUG SCRNLALCOHOL TES	17.40	
34	2-22-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	484.55	
35	2-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		2,186.84

DATE: 07/17/24
TIME: 16:02:10
ID: AP213000

VILLAGE OF WEST DUNDEE
DISTRIBUTION JOURNAL # AP-071724

PAGE: 2
F-YR: 25

JOURNAL DATE: 07/17/24

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT

COMMUNITY DEVELOPMENT FUND							
36	5-00-3-3500	VILLAGE AND COMMUNITY EVENTS	KOR102	071424	BAND 7-14-24 PUMP HOUSE EVEN	700.00	
37	5-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		700.00
INTERFUND SUMMARY							
38	1-00-1-1290	DUE TO/FROM FND 2 SEWER&WATE			ACCTS PAYABLE INTERFUND OFFS	2,186.84	
39	1-00-1-1340	DUE TO/FROM FND 5 COMM DEVEL			ACCTS PAYABLE INTERFUND OFFS	700.00	
40	1-00-1-1010	FAB - AP CHECKING			ACCTS PAYABLE INTERFUND OFFS		2,886.84
TOTALS:						134,234.74	134,234.74

ENTRY DATE: 07/17/2024

JOURNAL #: AP-071724

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
GENERAL OPERATIONS DEPARTMENT							
01	1-00-2-2450	AFLAC	AFL100	720523	7-11-24 & 7-25-24 PAYROLL DE	259.78	
02	1-12-3-0100	OFFICE SUPPLIES	VIL100	071724 VH	COFFEE	36.38	
03	1-12-3-0100	OFFICE SUPPLIES	VIL100	071724 VH	COFFEE FILTERS	5.51	
04	1-12-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	692.20	
05	1-12-3-0510	DATA INTERNET/EMAIL SERVICES	COM120	070124 12345	ACCOUNT 8771 10 008 0012345	118.33	
06	1-12-3-0510	DATA INTERNET/EMAIL SERVICES	COM120	071324 50424	ACCOUNT 8771 10 008 0250424	312.85	
07	1-12-3-2000	POSTAGE	VIL100	071724 VH	USPS-BMO LOC FRED SEASONS	30.90	
08	1-12-3-2000	POSTAGE	VIL100	071724 VH	USPS-NAPERVILLE IL	12.20	
09	1-12-3-2000	POSTAGE	VIL100	071724 VH	USPS-WINFIELD IL	10.80	
10	1-12-3-2000	POSTAGE	VIL100	071724 VH	USPS-CLEVELAND OH	9.80	
11	1-12-3-3800	REIMBURSABLE	COM128	209160123	QUADCOM ACCT 939750878	830.65	
12	1-12-3-3800	REIMBURSABLE	COM128	209160127	EDFPD ACCT 980839313	793.25	
13	1-12-3-3800	REIMBURSABLE	COM128	209160128	SH ACCT 980839317	200.60	
14	1-12-3-3800	REIMBURSABLE	COM128	209160128	RDFPD ACCT 980839317	200.60	
15	1-12-3-3800	REIMBURSABLE	COM128	209160128	QUADCOM ACCT 980839317	200.59	
16	1-13-3-7100	VILLAGE PROSECUTOR RETAINER	TOU101	050124	MAY 2024 PROSECUTION	750.00	
17	1-14-2-0500	VILLAGE CONTRIBUTION - PENSI	WES104	071724	3RD PROPERTY TAX DISTRIBUTIO	84,142.29	
18	1-14-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	553.76	
19	1-15-2-0500	VILLAGE CONTRIBUTION - PENSI	WES102	071724	3RD PROPERTY TAX DISTRIBUTIO	37,301.05	
20	1-15-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	249.19	
21	1-15-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	138.44	
22	1-16-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	581.46	
23	1-17-2-2000	SAFETY EQUIPMENT & PROGRAMS	VIL100	071724 VH	RIVERA-CDL	61.35	
24	1-17-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	484.54	
25	1-18-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	484.54	
26	1-00-1-1010	FAB - AP CHECKING			ACCOUNTS PAYABLE OFFSET		128,461.06
SEWER & WATER DEPARTMENT							
27	2-21-2-2000	SAFETY EQUIPMENT PROGRAM	PAH100	552747	BEVERS-DRUG SCRNL&ALCOHOL TES	69.60	
28	2-21-2-2000	SAFETY EQUIPMENT PROGRAM	VIL100	071724 VH	BABCOCK-EPA	10.00	
29	2-21-2-2000	SAFETY EQUIPMENT PROGRAM	VIL100	071724 VH	KIRK-EPA	10.00	
30	2-21-2-2000	SAFETY EQUIPMENT PROGRAM	VIL100	071724 VH	USPS-EPA BABCOCK & KIRK	30.75	
31	2-21-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	484.54	
32	2-21-3-3000	CONTRACTUAL SERVICES	ASSO100	38434	LEAK DETECTION 2120 STEWART	1,080.00	
33	2-22-2-2000	SAFETY EQUIPMENT PROGRAM	PAH100	552747	BEVERS-DRUG SCRNL&ALCOHOL TES	17.40	
34	2-22-3-0500	TELEPHONE	COM128	209160123	ACCT 939750878	484.55	

DATE: 07/17/24
TIME: 16:04:12
ID: AP214000

VILLAGE OF WEST DUNDEE
POST INVOICES TO GENERAL LEDGER

PAGE: 2
F-YR: 25

ENTRY DATE: 07/17/2024

JOURNAL #: AP-071724

ACCOUNTING PERIOD: 03

ITEM	ACCOUNT #	ACCOUNT DESCRIPTION	VENDOR	INVOICE	TRANSACTION DESCRIPTION	DEBIT AMT	CREDIT AMT
35	2-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		2,186.84
COMMUNITY DEVELOPMENT FUND							
36	5-00-3-3500	VILLAGE AND COMMUNITY EVENTS	KOR102	071424	BAND 7-14-24 PUMP HOUSE EVEN	700.00	
37	5-00-1-1999	DUE TO/FROM OTHER FUNDS			ACCOUNTS PAYABLE OFFSET		700.00
INTERFUND POSTED SUMMARY							
38	1-00-1-1290	DUE TO/FROM FND 2 SEWER&WATE			ACCTS PAYABLE INTERFUND OFFS	2,186.84	
39	1-00-1-1340	DUE TO/FROM FND 5 COMM DEVEL			ACCTS PAYABLE INTERFUND OFFS	700.00	
40	1-00-1-1010	FAB - AP CHECKING			ACCTS PAYABLE INTERFUND OFFS		2,886.84
TOTALS:						134,234.74	134,234.74

CHECK DATE: 07/17/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80068	AFL100	AFLAC					
	720523		07/12/24	01	7-11-24 & 7-25-24 PAYROLL DED	1-00-2-2450	259.78
					INVOICE TOTAL:		259.78 *
					CHECK TOTAL:		259.78
80069	ASSO100	ASSOCIATED TECHNICAL SERVICES					
	38434		05/03/24	01	LEAK DETECTION 2120 STEWART	2-21-3-3000	1,080.00
					INVOICE TOTAL:		1,080.00 *
					CHECK TOTAL:		1,080.00
80070	COM120	COMCAST					
	070124 12345		07/01/24	01	ACCOUNT 8771 10 008 0012345	1-12-3-0510	118.33
					INVOICE TOTAL:		118.33 *
	071324 50424		07/13/24	01	ACCOUNT 8771 10 008 0250424	1-12-3-0510	312.85
					INVOICE TOTAL:		312.85 *
					CHECK TOTAL:		431.18
80071	COM128	VOIDED---LEADER CHECK					
	209160123		07/01/24	01	ACCT 939750878	1-16-3-0500	581.46
				02	ACCT 939750878	1-15-3-0500	249.19
				03	ACCT 939750878	1-17-3-0500	484.54
				04	ACCT 939750878	1-18-3-0500	484.54
				05	ACCT 939750878	2-21-3-0500	484.54
				06	ACCT 939750878	2-22-3-0500	484.55
				07	ACCT 939750878	1-14-3-0500	553.76
				08	ACCT 939750878	1-15-3-0500	138.44
				09	ACCT 939750878	1-12-3-0500	692.20

CHECK DATE: 07/17/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80071	COM128	VOIDED---LEADER CHECK					
	209160123		07/01/24	10	QUADCOM ACCT 939750878	1-12-3-3800	830.65
					INVOICE TOTAL:		4,983.87 *
	209160127		07/01/24	01	EDFPD ACCT 980839313	1-12-3-3800	793.25
					INVOICE TOTAL:		793.25 *
	209160128		07/01/24	01	SH ACCT 980839317	1-12-3-3800	200.60
					INVOICE TOTAL:		200.60 *
80072	COM128	COMCAST					
	209160128		07/01/24	02	RDFFD ACCT 980839317	1-12-3-3800	200.60
				03	QUADCOM ACCT 980839317	1-12-3-3800	200.59
					INVOICE TOTAL:		401.19 *
					CHECK TOTAL:		6,378.91
80073	KOR102	BRUCE C KORT					
	071424		07/14/24	01	BAND 7-14-24 PUMP HOUSE EVENT	5-00-3-3500	700.00
					INVOICE TOTAL:		700.00 *
					CHECK TOTAL:		700.00
80074	PAH100	PAHCS II / NORTHWESTERN MED					
	552747		06/28/24	01	BEVERS-DRUG SCRNL&ALCOHOL TEST	2-21-2-2000	69.60
				02	BEVERS-DRUG SCRNL&ALCOHOL TEST	2-22-2-2000	17.40
					INVOICE TOTAL:		87.00 *
					CHECK TOTAL:		87.00
80075	TOU101	STEPHEN D. TOUSEY LAW OFFICES					
	050124		05/01/24	01	MAY 2024 PROSECUTION	1-13-3-7100	750.00
					INVOICE TOTAL:		750.00 *
					CHECK TOTAL:		750.00

CHECK DATE: 07/17/24

CHECK #	VENDOR #	INVOICE NUMBER	INVOICE DATE	ITEM #	DESCRIPTION	ACCOUNT #	ITEM AMT
80076	VIL100	PETTY CASH					
	071724 VH		07/17/24	01	USPS-BMO LOC FRED SEASONS	1-12-3-2000	30.90
				02	USPS-NAPERVILLE IL	1-12-3-2000	12.20
				03	USPS-WINFIELD IL	1-12-3-2000	10.80
				04	COFFEE	1-12-3-0100	36.38
				05	COFFEE FILTERS	1-12-3-0100	5.51
				06	USPS-CLEVELAND OH	1-12-3-2000	9.80
				07	BABCOCK-EPA	2-21-2-2000	10.00
				08	KIRK-EPA	2-21-2-2000	10.00
				09	RIVERA-CDL	1-17-2-2000	61.35
				10	USPS-EPA BABCOCK & KIRK	2-21-2-2000	30.75
					INVOICE TOTAL:		217.69 *
					CHECK TOTAL:		217.69
80077	WES102	WEST DUNDEE FIREFIGHTER					
	071724		07/17/24	01	3RD PROPERTY TAX DISTRIBUTION	1-15-2-0500	37,301.05
					INVOICE TOTAL:		37,301.05 *
					CHECK TOTAL:		37,301.05
80078	WES104	WEST DUNDEE POLICE PENSION					
	071724		07/17/24	01	3RD PROPERTY TAX DISTRIBUTION	1-14-2-0500	84,142.29
					INVOICE TOTAL:		84,142.29 *
					CHECK TOTAL:		84,142.29
					TOTAL AMOUNT PAID:		131,347.90

Village of West Dundee
Spring Hill Redevelopment

Date	Check #	Payee	Account	Account Description	Purpose	Check Amount
7/15/2024	1520	Village of Carpentersville	5-03-3-1100	Utilities - Mall	Water	\$ 110.87
7/26/2024	1521	ComEd	5-03-3-1100	Utilities - Mall	Electricity	\$ 118.98
8/1/2024	1522	Winger	5-03-3-1000	Contractual Services - Mall	General Maintenance	\$ 14,272.30

Village of
West Dundee

TO: Village President and Board of Trustees

FROM: Eric Babcock, Director of Public Works 

DATE: July 30, 2024

SUBJECT: Recommendation to Approve Carrington Reserve Maintenance

INTRODUCTION:

Each year, the Village contracts with Resource Environmental Solutions, LLC (RES) for maintenance of the Village-owned natural areas in Carrington Reserve. This year's agreement has been prepared for the Village Board's consideration.

BACKGROUND:

The proposed scope of services under the attached agreement is the same as it has been in previous years, which is as follows:

Service Item	Cost
Remove select dead & invasive shrubs and trees from natural areas as needed.	\$12,000
Spot herbicide, spot mow, etc. in and around all detention basins and other natural areas.	\$18,500
Conduct controlled burn within the Jelkes Creek Corridor in the spring of 2025.	\$9,500
Total	\$40,000

For several years, RES has performed this work to the Village's satisfaction. They conduct the work proficiently and make certain that affected residents are properly notified of maintenance activities in advance.

FISCAL IMPACT:

The Fiscal Year 2024/25 Budget in SSA # 4 includes funding in the amount of \$45,000 for the contractual natural area maintenance. The attached agreement from RES represents a savings of \$5,000.

RECOMMENDATION:

Therefore, it is respectfully requested and recommended that:

MOTION: Move to approve an agreement with Resource Environmental Solutions, LLC for maintenance of Village-owned natural areas in the Carrington Reserve subdivision during Fiscal Year 2024/25 at a cost of \$40,000.



11714 Powder Park Road
Huntley, IL 60142

Corporate Headquarters
6575 West Loop South, Suite 300
Bellaire, TX 77401

Project Information

Carrington Reserve 2024 Management and Spring 2025 Prescribed Burn
RES # 111165

June 6, 2024

Eric Babcock
West Dundee Public Works Department
900 Angle Tarn
West Dundee, IL 60118

Dear Eric,

Thank you for the opportunity to submit a quote for the 2024 management at Carrington Reserve along with a Spring 2025 prescribed burn of Jelkes Creek Corridor. We have been involved with this project since the design which started in 1998. We helped install and manage this site since construction in 2002. Throughout this time, we have been able to maintain a strong relationship with the community and create and maintain a high-quality habitat, all while staying within the budgets that were allocated. We have been committed to this site to ensure long term sustainability. We have had some changes over the past year but our commitment to providing quality work for the projects that we chose to work on has not waived. If you continue to work with RES, you will continue to see us manage this site to meet the goals and objectives of West Dundee and the Carrington Community. We will be happy to answer any questions that you may have about our proposal.

Sincerely,

A handwritten signature in black ink that reads "Josh LaPointe".

Josh LaPointe, Regional Operations Manager
RES
608-214-2355
jlapointe@res.us

A handwritten signature in blue ink that reads "Derek Brehm".

Derek Brehm, Operations Manager
RES
262-352-9572
dbrhem@res.us

Scope of Work and Estimate

Carrington Reserve 2024 Fiscal Year Management Task List

Task #	Description	Qty	Unit	Unit Cost	Extended
1	Remove select dead & invasive shrubs and trees from natural areas as needed.	1	LS	\$12,000.00	\$12,000.00
2	Herbicide invasive species around all detention basins and phragmites throughout Jelkes Creek Corridor.	1	LS	\$18,500.00	\$18,500.00
3	Conduct Controlled Burn at Jelkes Creek Corridor of Carrington Reserve in Spring 2025	1	LS	\$9,500.00	\$9,500.00
Total					\$40,000.00

Spring 2024 Burn Map- Jelkes Creek Corridor Unit



Notes:

1. This quote is valid for 60 days.
2. RES is a non-union shop and the scope of work proposed is considered maintenance work so Prevailing Wages rates have not been included in the above price.

3. Upon acceptance of this quote by the Owner/Client, RES Great Lakes LLC (RES) will provide a Services Agreement necessary for acceptance of the contract by each party.
4. **Quote is exclusive of sales tax.** Client/Owner shall pay all applicable sales or use taxes, or provide RES with a sales tax exemption certificate to support any exemption.

SERVICES AGREEMENT

THIS SERVICES AGREEMENT (this “**Agreement**”) is entered into effective as of 8/5/2024 (the “**Effective Date**”), by and between West Dundee Public Works Department with offices located at 900 Angle Tarn West Dundee, IL 60118 (hereinafter called “**Customer**”), and RES Great Lakes, LLC with its principal place of business located at c/o Resource Environmental Solutions, LLC, 6575 West Loop South, Suite 300, Bellaire, Texas 77401 (hereinafter called “**RES**” and, together with Customer, the “**Parties**” and, each individually, a “**Party**”).

RECITALS

WHEREAS, Customer desires to engage RES to provide the Services (defined below), and RES is willing to perform such Services, subject to the terms and conditions of this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants herein contained and of other good and valuable consideration, the Parties agree as follows:

AGREEMENTS

1. Scope of Services. RES shall perform the services described on Exhibit 1 attached hereto (collectively, the “**Services**”). The Parties may agree in writing to amend Exhibit 1 from time to time. If any provision of an Exhibit is inconsistent or conflicts with any provision of this Agreement, the terms of the Exhibit shall control.

2. Prime Contracts. From time to time, Customer may enter into a contract or contracts (each, a “**Prime Contract**”) with an end customer (each such customer, an “**End Customer**”) for the provision of certain services specified therein, a copy of which contract has been provided to RES prior to the Effective Date of this Agreement. If permitted under a Prime Contract, Customer may subcontract to RES its obligation to perform a portion of the services under the Prime Contract. To the extent that the terms of a Prime Contract are agreeable to RES, such terms shall be incorporated into the terms of this Agreement.

3. Term. The term of this Agreement (the “**Term**”) shall commence on the Effective Date and shall continue until the date upon which the Services are completed by RES, unless sooner terminated pursuant to Section 4.

4. Termination.

(a) Either Party may terminate this Agreement, effective upon written notice to the other Party (the “**Defaulting Party**”) in the event the Defaulting Party materially breaches this Agreement, and such breach is incapable of cure, or with respect to a material breach capable of cure, the Defaulting Party fails to commence curing of such breach after receipt of written notice of such breach and thereafter fails to diligently continue curing such breach, subject to any delays or interruptions which may occur as a result of unseasonal conditions for planting or any Force Majeure event (as defined in Section 14(a)) in which case the applicable cure period shall be tolled until the unseasonal conditions or Force Majeure Event has subsided.

(b) Notwithstanding anything to the contrary herein, if Customer fails to pay any amount when due hereunder and such failure continues for ten (10) days after Customer’s receipt of written notice of nonpayment, then RES (1) may retain all prior payments received from Customer in relation to the Services (even if such Services have not yet been performed) (2) cease providing Services unless and until such

breach is cured to RES's reasonable satisfaction, and (3) in addition to its other remedies at law or in equity, terminate this Agreement by written notice to Customer.

(c) Upon expiration or earlier termination of this Agreement, Customer shall pay RES for (i) all Services satisfactorily performed prior to the effective date of termination, including any milestone payments, and (ii) all costs, including court costs, any attorney's or expert's fees, incurred by RES prior to, and up to, the effective date of termination.

5. Payment to RES.

(a) Customer shall pay RES the amounts set forth on Exhibit 2, which amounts shall become fully due and payable on the earlier of (i) the date specified on Exhibit 2 and (ii) within thirty (30) days after the receipt by Customer of an invoice.

(b) All amounts required to be paid by Customer under this Agreement shall be in US Dollars and paid by check or wire transfer in accordance with instructions to be provided by RES, in good and sufficient funds, or by other method reasonably acceptable to RES.

(c) Customer shall be responsible for all sales, use and excise taxes, and any other similar taxes, duties and charges of any kind imposed by any federal, state or local governmental entity on any amounts payable by Customer hereunder; provided, that, in no event shall Customer pay or be responsible for any taxes imposed on, or with respect to, RES's income, revenues, gross receipts, personnel or real or personal property or other assets.

(d) Customer will not retain any amounts from or set-off against any payment due and payable to RES.

6. Customer's Responsibilities. The Customer shall:

(a) timely respond to any reasonable requests from RES for instructions, information or approvals required by RES to provide the Services.

(b) reasonably cooperate with RES in its performance of the Services and provide access to Customer's premises, employees, contractors, and equipment as required to enable RES' timely provision of the Services, including the right to enter and exit the property on which the Services will be performed (the "**Property**") at such reasonable times to allow such parties to perform the Services.

(c) take all steps necessary, including fulling cooperating with RES and obtaining any required licenses, permits or consents, to prevent delay of RES's provision of the Services and to allow RES access to the Property.

7. RES Warranties.

(a) RES warrants that it shall perform the Services (x) in accordance with the terms and subject to the conditions set out in this Agreement; (y) using personnel of required skill, experience and qualifications; and (z) in a timely, workmanlike, and professional manner in accordance with generally recognized industry standards for similar services.

(b) RES's sole and exclusive liability and Customer's sole and exclusive remedy for breach of the warranties set forth in Section 7(a) shall be as follows:

i. RES shall use commercially reasonable efforts to promptly cure any such breach; provided, that if such breach is incapable of cure, or with respect to a material breach capable of cure, RES fails to commence to cure such breach after receipt of written notice from the Customer of such breach, or thereafter fails to continue curing such breach with diligence, Customer may, at its option, terminate this Agreement in accordance with Section 4(a).

ii. The foregoing remedy shall not be available unless Customer provides written notice of such breach within 30 days following completion of the Services by RES.

(c) EXCEPT FOR THOSE WARRANTIES EXPRESSLY PROVIDED FOR IN THIS SECTION 7, RES MAKES NO OTHER ORAL OR WRITTEN WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY WARRANTY OF MERCHANTABILITY, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OR TRADE, AND ALL OTHER ORAL OR WRITTEN WARRANTIES, EXPRESS AND IMPLIED, ARE HEREBY EXPRESSLY DISCLAIMED. CUSTOMER FURTHER ACKNOWLEDGES THAT IT HAS NOT RELIED UPON ANY REPRESENTATIONS OR WARRANTIES (OTHER THAN THOSE SET FORTH IN THIS SECTION 7) MADE BY ANY OTHER PERSON IN ENTERING INTO THIS AGREEMENT.

8. Limitation of Liability.

(a) IN NO EVENT SHALL RES OR ANY OF ITS AFFILIATES BE LIABLE TO CUSTOMER, OR ANY OTHER THIRD PARTY OR PERSON, FOR CLAIMS OR LOSSES ARISING OUT OF THIS AGREEMENT WHICH EXCEED THE AMOUNT OF RECOVERABLE INSURANCE, REGARDLESS OF WHETHER ANY ACTION OR CLAIM IS BASED UPON CONTRACT, WARRANTY, TORT (INCLUDING NEGLIGENCE) OR STRICT LIABILITY.

(b) NOTWITHSTANDING ANY PROVISION OF THIS AGREEMENT TO THE CONTRARY, NO PARTY TO THIS AGREEMENT SHALL BE LIABLE TO THE OTHER PARTY OR TO ANY THIRD PARTY FOR ANY LOSS OF USE, REVENUE, OR PROFIT, BUSINESS OPPORTUNITY OR DIMINUTION IN VALUE, LOSS OF FACILITIES OR RIG DOWNTIME, OR FOR ANY CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, OR PUNITIVE DAMAGES WHETHER ARISING OUT OF BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE, REGARDLESS OF WHETHER SUCH DAMAGE WAS FORESEEABLE AND WHETHER OR NOT RES HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND NOTWITHSTANDING THE FAILURE OF ANY AGREED OR OTHER REMEDY OF ITS ESSENTIAL PURPOSE.

9. Insurance. Both Parties shall, during the Term of the Agreement, obtain and maintain the following minimum types and limits of insurance: (i) commercial general liability insurance, including bodily injury and property damage, with coverage limits no less than \$1,000,000 per occurrence and \$2,000,000 in the aggregate, which policy shall include contractual liability coverage insuring the activities of each respective Party under this Agreement; (ii) Worker's Compensation insurance as required by statute, with no less than the greater of (i) \$1,000,000 per occurrence, or (ii) the minimum amount required by applicable law; (iii)

commercial automobile liability insurance, including bodily injury and property damage, for vehicles used in connection with the performance of the Services, whether owned, leased, or hired by either Party, with limits no less than \$1,000,000, combined single limit per occurrence; and (iv) if RES is supplying engineering and/or design services, professional liability insurance with limits no less than \$1,000,000.00, combined single limit per occurrence, including errors and omissions. All insurance policies of a Party, excluding Workers' Compensation and professional liability, shall name the other Party as an additional insured but only to the extent of those liabilities assumed by a Party under this Agreement, and shall be primary and non-contributory to any insurance otherwise carried in the name of and/or for the benefit of the other Party. Each Party shall require its insurer to waive all rights of recovery from or subrogation against the other Party.

10. Confidentiality. From time to time during the Term of this Agreement, either Party (as the **"Disclosing Party"**) may disclose or make available to the other Party (as the **"Receiving Party"**), non-public, proprietary, and confidential information of Disclosing Party, including, but not limited to, any reports, plans, drawings, specifications, calculations, maps, surveys, plats, blueprints, sketches, notes, data and samples of Disclosing Party (**"Confidential Information"**). The Receiving Party shall protect and safeguard the confidentiality of the Disclosing Party's Confidential Information with at least the same degree of care as the Receiving Party would protect its own Confidential Information and not disclose any such Confidential Information to any person or entity, except to the Receiving Party's employees who need to know the Confidential Information to perform its obligations under this Agreement.

11. Indemnification.

(a) RES' INDEMNITY. RES AGREES TO PROTECT, DEFEND, INDEMNIFY, AND HOLD HARMLESS CUSTOMER, ITS AFFILIATES, ITS CONTRACTORS AND SUBCONTRACTORS (OTHER THAN THOSE FALLING UNDER THE UMBRELLA OF THE RES GROUP), AND ITS AND THEIR OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, REPRESENTATIVES AND INVITEES (**"CUSTOMER GROUP"**) FROM AND AGAINST ALL CLAIMS, DEMANDS, LOSSES, AND CAUSES OF ACTION (OF EVERY KIND AND CHARACTER AND WITHOUT LIMIT AND WITHOUT REGARD TO THE CAUSE OR CAUSES THEREOF) (COLLECTIVELY **"CLAIMS"**) THAT ARISE OUT OF OR ARE RELATED TO THIS AGREEMENT AND ARE BEING ASSERTED BY ANY PERSON ON ACCOUNT OF THE BODILY INJURY OR DEATH OF A MEMBER OF RES, ITS AFFILIATES AND SUBCONTRACTORS, AND ITS AND THEIR OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, REPRESENTATIVES AND INVITEES (**"RES GROUP"**), OR DAMAGE TO OR LOSS OF PROPERTY OF RES GROUP, REGARDLESS OF WHETHER SUCH DAMAGE OR LOSS IS CAUSED BY THE NEGLIGENCE (SOLE, JOINT, CONCURRENT, ACTIVE OR PASSIVE) OR FAULT, OR STRICT LIABILITY, OF CUSTOMER GROUP, EXCEPTING ONLY THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF CUSTOMER GROUP.

(b) CUSTOMER'S INDEMNITY. CUSTOMER AGREES TO PROTECT, DEFEND, INDEMNIFY, AND HOLD HARMLESS RES GROUP FROM AND AGAINST ALL CLAIMS THAT ARISE OUT OF OR ARE RELATED TO THIS AGREEMENT AND ARE BEING ASSERTED BY ANY PERSON ON ACCOUNT OF THE BODILY INJURY OR DEATH OF A MEMBER OF CUSTOMER GROUP, OR DAMAGE TO OR LOSS OF PROPERTY OF CUSTOMER GROUP, REGARDLESS OF WHETHER SUCH DAMAGE OR LOSS IS CAUSED BY THE NEGLIGENCE (SOLE, JOINT,

CONCURRENT, ACTIVE OR PASSIVE) OR FAULT, OR STRICT LIABILITY, OF RES GROUP, EXCEPTING ONLY THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF RES GROUP.

(c) SUBJECT TO SECTION 11(A) AND SECTION 11(B) ABOVE, EACH PARTY AGREES THAT IT SHALL PROTECT, DEFEND, INDEMNIFY, AND HOLD HARMLESS THE OTHER PARTY FROM AND AGAINST ANY THIRD-PARTY CLAIM TO THE EXTENT CAUSED BY THE NEGLIGENCE (SOLE, JOINT, CONCURRENT, ACTIVE OR PASSIVE) OR FAULT, OR STRICT LIABILITY OF THE INDEMNIFYING PARTY'S GROUP (INCLUDING ANY INTENTIONAL OR WILLFUL MISCONDUCT) IN CONNECTION WITH THE PERFORMANCE OF ITS OBLIGATIONS UNDER THIS AGREEMENT.

12. RES Subcontractors. RES, at its sole cost and expense, may subcontract, delegate, or otherwise engage the services of any third-party contractor or subcontractor (each, a "**Subcontractor**") to perform all or any portion of the Services.

13. Intellectual Property. All intellectual property rights, including copyrights, patents, patent disclosures and inventions (whether patentable or not), trademarks, service marks, trade secrets, know-how and other confidential information, trade dress, trade names, logos, corporate names and domain names, together with all of the goodwill associated therewith, derivative works and all other rights (collectively, "**Intellectual Property Rights**") in and to all documents, work product and other materials that are delivered to Customer under this Agreement or prepared by or on behalf of the RES in the course of performing the Services (collectively, the "**Deliverables**") shall be owned by RES. RES hereby grants Customer a license to use all intellectual property rights in the Deliverables free of additional charge and on a non-exclusive, worldwide, non-transferable, non-sublicensable, fully paid-up, royalty-free and perpetual basis to the extent necessary to enable Customer to make reasonable use of the Deliverables and the Services.

14. Miscellaneous.

(a) Force Majeure. Except for the payment of monetary amounts due pursuant to Section 5 hereof, any delay or failure of either Party to perform its obligations under this Agreement will be excused to the extent that the delay or failure was caused directly by an event beyond such Party's reasonable control, without such Party's fault or negligence, and that by its nature could not have been foreseen by such Party or, if it could have been foreseen, was unavoidable, which events may include natural disasters, floods, fires, or explosions, strikes, riots, acts of God, diseases, epidemics, pandemics, including the Covid-19 pandemic, or quarantines, shortages of labor or materials, war, terrorist acts or activities, orders, laws, regulations, or restrictions, national, or regional, or local emergencies, governmental shutdowns or disturbances, or adverse determinations from any governing authority (each, a "**Force Majeure Event**"). In addition, RES may (b) cancel the project and any Services performed in connection therewith, without liability, if such cancellation is (i) recommended or required by any recognized governmental or regulatory body or non-governmental organization having at least a city-wide reputation for protecting public health and welfare, or (ii) in the judgment of RES required to protect the health and well-being of any employees, officers, directors, agents or representatives of RES. The Party alleging a Force Majeure Event shall give the other Party prompt written notice of any event or circumstance resulting in a Force Majeure Event, and the anticipated duration of such Force Majeure Event. The Party affected by a Force Majeure Event shall use all diligent efforts to end the Force Majeure Event, ensure that the effects of any Force Majeure Event are minimized, and resume full performance under this Agreement.

(b) Amendments. This Agreement may not be changed, amended or modified except by an instrument in writing signed by all Parties.

(c) Governing Law. This Agreement shall be governed by and construed under the laws of the state in which the project site is located, without reference to choice of law provisions.

(d) Counterparts; Execution. This Agreement may be executed in multiple counterparts, including a facsimile or PDF scanned version thereof, each of which when so executed will constitute an original, but all of which taken together will constitute one and the same instrument. The Parties agree that the electronic signature of a Party to this Agreement shall be as valid as an original signature of such Party and shall be effective to bind such Party to this Agreement. Each Party represents that the person signing this Agreement on its behalf is duly authorized to sign.

(e) Notices. All notices required or permitted hereunder shall be in writing and shall be served on the Parties at the physical or electronic mail addresses set forth on their signature pages hereto (or to such other address that the receiving Party may designate from time to time in accordance with this Section).

(f) Severability; Waiver; Entire Agreement. If any portion of this Agreement is held invalid or inoperative, then so far as is reasonable and possible the remainder of this Agreement shall be deemed valid and operative, and, to the greatest extent legally possible, effect shall be given to the intent manifested by the portion held invalid or inoperative. No waiver by any Party of any of the provisions of this Agreement shall be effective unless explicitly set forth in writing and signed by the Party so waiving. This Agreement (including any schedule, exhibits, or amendments) embodies the entire agreement between the Parties and supersedes all prior agreements and understandings relating to the provision of the Services.

(g) No Third-Party Beneficiaries. This Agreement benefits solely the Parties to this Agreement and their respective permitted successors and assigns and nothing in this Agreement, express or implied, confers on any other person any legal or equitable right, benefit or remedy of any nature whatsoever under or by reason of this Agreement

(h) Assignment; Successors and Assigns. This Agreement shall be binding upon the Parties and their respective successors and assigns; however, this Agreement may not be assigned by either Party without the prior written consent of the other Party, which consent shall not be unreasonably withheld, conditioned or delayed. The foregoing restriction shall not be deemed to prohibit (i) the assignment or transfer of this Agreement by either Party to (A) any third party that controls, is controlled by, or is under common control with, the assigning Party, or (B) any purchaser of all, or substantially all, of the assets of the assigning Party, as long as, in each case, the assignee agrees to assume all obligations of the assigning Party hereunder, or (ii) the pledge or collateral assignment of this Agreement, or any rights and/or remedies hereunder, by any Party to its primary lender(s) as collateral for such Party's obligations under any secured credit facility.

(i) Relationship of the Parties. The relationship between the Parties is that of independent contractors. Nothing contained in this Agreement shall be construed as creating any agency, partnership, joint venture or other form of joint enterprise, employment or fiduciary relationship between the parties, and neither party shall have authority to contract for or bind the other party in any manner whatsoever.

(j) **Equal Opportunity Clause.** To the extent not exempt, Customer and RES will comply with the requirements of 41 CFR §§ 60-1.4(a), 60-300.5(a), and 60-741.5(a). These regulations prohibit discrimination against all individuals based on their race, color, religion, sex, sexual orientation, gender identity, national origin, protected veteran status, or status as a qualified individual with a disability. These regulations require that covered prime contractors and subcontractors take affirmative action to employ and advance in employment individuals without regard to race, color, religion, sex, sexual orientation, gender identity, national origin, protected veteran status or status as a qualified individual with a disability. To the extent not exempt, Customer and RES will also comply with the requirements of 29 CFR Part 471, Appendix A.

[THE REMAINDER OF THIS PAGE IS INTENTIONALLY LEFT BLANK.]

IN WITNESS WHEREOF, Customer and RES have executed this Agreement effective as of the Effective Date.

RES:

RES Great Lakes, LLC

By: 
Name: Derek Brehm
Title: Operations Manager, IL

Address: 11714 Powder Park Road, Unit B
Huntley, IL 60142

Attn: Derek Brehm
Email: dbrehm@res.us

With copies of all notices to:

c/o Resource Environmental Solutions, LLC
6575 West Loop South, Suite 300
Bellaire, Texas 77401
Attn: Legal Department
Email: contracting@res.us

IN WITNESS WHEREOF, Customer and RES have executed this Agreement effective as of the Effective Date.

CUSTOMER:

West Dundee Public Works Department

By: _____

Name: _____

Title: _____

Address:

Attn: _____

Email: _____

EXHIBIT 1
SERVICES

See Schedule 2 for Services and Compensation

EXHIBIT 2
COMPENSATION

1. **PAYMENT.**

Customer shall pay to RES the following amount(s):

Carrington Reserve 2024 Fiscal Year Management Task List

Task #	Description	Qty	Unit	Unit Cost	Extended
1	Remove select dead & invasive shrubs and trees from natural areas as needed.	1	LS	\$12,000.00	\$12,000.00
2	Herbicide invasive species around all detention basins and phragmites throughout Jelkes Creek Corridor.	1	LS	\$18,500.00	\$18,500.00
3	Conduct Controlled Burn at Jelkes Creek Corridor of Carrington Reserve in Spring 2025	1	LS	\$9,500.00	\$9,500.00
Total					\$40,000.00

2. **INVOICING.**

RES shall invoice Customer on a monthly basis.

3. **PAYMENT.**

Customer shall pay to RES all undisputed amounts of an invoice within thirty (30) days of receiving RESs' invoice, subject to any withholdings permitted by the Agreement. Except for invoiced payments that Customer has successfully disputed, all late payments shall bear interest at the lesser of the rate of 1.5% per month or the highest rate permissible under applicable law, calculated daily and compounded monthly.



TO: Village President and Board of Trustees

FROM: Downtown Community Events Committee Members

DATE: August 05, 2024

SUBJECT: Special Event & Daily Liquor Permit Request – Finally Friday

INTRODUCTION:

Attached please find a request to hold a Village sponsored event from the downtown events committee and a Daily Liquor Request for Friday, August 9, 2024 from 6:30 pm – 9:30 pm at the Pump House. The Downtown Event Committee is looking to hold an event that is family friendly and community oriented. This event will include live music by Controlled Burn and alcohol sales by Bamboozels.

BACKGROUND:

Special Event Hours: The proposed event will be from 6:30 pm to 9:30 pm. It is expected that set up will take place at 2:00pm and tear down be completed by 10:30 pm.

Street Closures and No Parking Hours. The municipal parking lot between 105 and 117 S. 1st Street as well as the municipal lot to the east behind the structures will be closed from 2:30 pm to 10:30 pm the day of the event. Attached is the graphic showing the parking lot closure.

Barriers: Barricades will be provided by Public Works and will be used to contain the area where open liquor will be allowed.

Restroom Facilities and Refuse Management: In addition to the Pump House facilities, there will be Refuse receptacles provided by Public Works and strategically placed throughout the event area. Refuse will be kept within the dumpster enclosure to the north of the Pump House and then hauled off site after the event.

Village Resources: Village resources will include delivery of barricades by Public Works and use of Village owned barricades and refuse receptacles. In addition, Village electricity will be used to provide power for the live band.

Alcohol Restrictions: Outdoor alcohol privileges have been requested in conjunction with this event. As proposed, alcohol will only be permitted in the fenced in municipal parking lot and river walk area. There will only be one entry point into the event area that will be monitored. Bamboozels will be the alcohol vendor and will operate out of the Pump House concession area. They will provide Bassett certified servers.

FISCAL IMPACT:

The budgeted cost of the event, which includes live music, a stage with a canopy, and table/chair rentals is \$2500. This will be taken from the Village and Community Events line item. A copy of the financial recap is attached.

RECOMMENDATION:

It is respectfully requested that the Local Liquor Control Commission recommend, and the Village Board approve the issuance of a Daily Liquor Permit for Bamboozels and for the Village Board to approve a Special Event Permit for the event Finally Friday at the Pump House.

LLCC MOTION: Move to recommend the approval of a Daily Liquor Permit Request for Bamboozels for the Finally Friday event at the Pump House on Friday, August 9, 2024 between the hours of 6:30 pm – 9:30 pm.

BOARD MOTION: Move to approve a Special Event Application and Daily Liquor Permit Request, Parking Restriction, and Draft Budget for the Finally Friday event at the Pump House on Friday, August 9, 2024.

Attachments: Special Event Permit Application
 Daily Liquor License Permit Application
 Map of Parking Lot Closure
 Draft Budget

cc: Department Managers

Date Received: _____

SPONSOR & CONTACT INFORMATION

EVENT SPONSOR

Name: Village of West Dundee
 Address: 102 S. 2nd Street
 Phone: 847-551-3800
 Email: villagehall@wdundee.org

PRIMARY CONTACT

Name: Dan Wilbrant/Cheryl Anderley/Thomas Moszczynski
 Address: 102 S. 2nd Street
 Phone: 847-551-3800
 Email: canderley@wdundee.org

DESCRIPTION OF EVENT

Event Name: Finally Friday at the Pump House
 Event Date (s): August 9, 2024 Hours: 6:30 pm - 9:30 pm
 Location: West Dundee Municipal Lot between 105 and 117 S. 1st Street Expected Attendance: 100+
 Description of Event: Community event with free attendance, live music and alcohol sales.

EVENT DETAILS – Check all boxes below that apply

- | | |
|---|--|
| ☐ Fireworks | ☒ Entertainment / Music |
| ☒ Alcohol | ☒ Sound Amplification |
| ☒ Signs / Banners | ☒ Outside Electrical Service |
| ☒ Street Closures | ☐ Outside Water Service |
| ☐ Itinerant Merchants | ☒ Temporary Structures |

Detailed plans & schedules shall be attached for all checked items. These plans should include dates, locations, times, maps noting street closures etc.
Please Note: Barricades for street closures must be arranged with Public Works Department.
Also Please Note: Permit applications are required for signage, fireworks, and Liquor.

- ✓ Attach detailed plans for Trash Collection & Removal, Security, Parking, and Restrooms.
- ✓ Attach additional maps, drawings or written information you feel are necessary to process your application.
- ✓ Submit this application & all attachments to the Community Development Dept., 100 Carrington Dr., West Dundee.

Approval of this application will reserve for the above mentioned applicant/organization the requested event date/place providing all requirements outlined by the Village of West Dundee have been met.

ASSUMPTION OF LIABILITY AND INDEMNIFICATION

If the special event request is approved, the sponsor shall assume full responsibility for compliance with all conditions, fees, or any cost associated with this event. The sponsor shall be strictly liable for the acts of its agents, volunteers, officers and employees and shall indemnify and hold harmless the Village of West Dundee, its officers, agents, and employees from any claim, suit or liability whatsoever including, but not limited to, any court costs or reasonable attorney's fees arising out of or in any way connected with any acts or omissions of sponsor, it's agents, volunteers, officers and employees, or the special event. The applicant will provide a certificate of insurance naming the Village as an additional, primary, non-contributory insured as may be required by the Village.

Applicant's Signature: _____ Date: _____

Note: All requests, depending on the type of event, shall be submitted at least 60-30 days prior to event date, as per Village Ordinance 3.8.

FOR OFFICE USE ONLY

Copies to:

Date Received: _____ () Police Dept () Public Works
 Date Approved: _____ () Fire Dept () Community Development

**VILLAGE OF WEST DUNDEE
DAILY LIQUOR LICENSE PERMIT APPLICATION**

Date: 08/09/2024

Name of Organization: VILLAGE OF WEST DUNDEE

Address: 98 OREGON ST.

Name of Applicant/Contact: VILLAGE OF WEST DUNDEE

Phone (day): 847-551-3800 (evening): —

Email Address: TMOSZCZYNSKI @ WADUNDEE.ORG

Event Name: FRIDAY EVENT AT PUMP HOUSE

Date(s) & Time of the Event: FRIDAY 8/9 6:30pm - 9:30pm

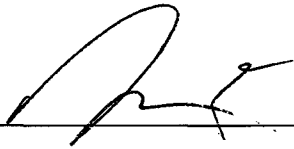
Event Location: PUMP HOUSE 98 OREGON

Type of Alcohol to be served: BEER + COCKTAILS

Description of the security measures you will be utilizing for both liquor services and the event:

BARRICADES AND VOLUNTEERS

Description of the area in which alcoholic liquor will be available for service and for consumption (attach map):

Applicant's Signature  Date 8/1

PLEASE NOTE: Request must be submitted at least 30 days prior to event date.

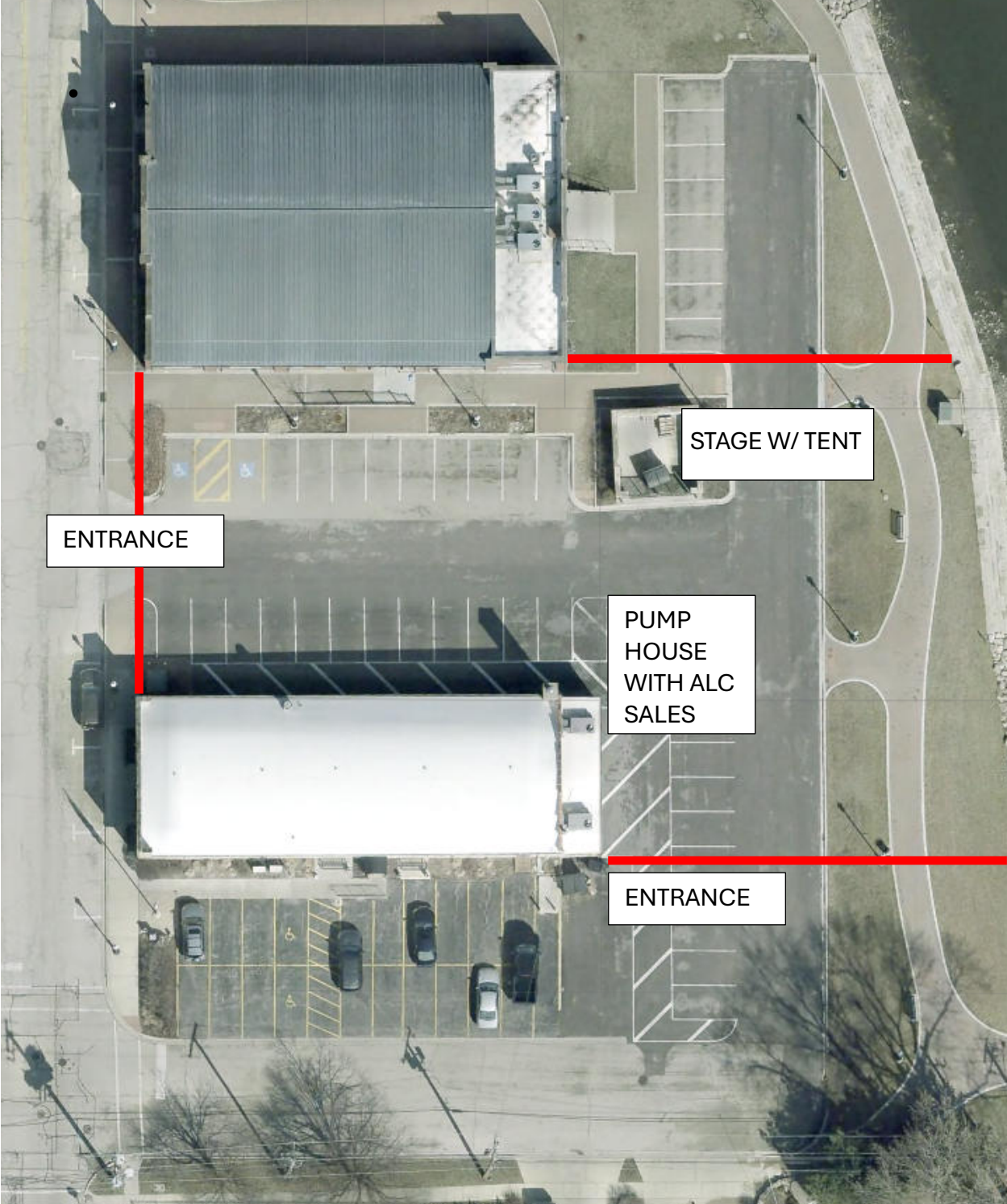
Submit this application to Village Hall, 102 S. Second Street, West Dundee, IL 60118

FOR OFFICE USE:

Date Received: _____ Fee Received (\$50.00 per day): _____

Date Approved: by Local Liquor Commission: _____

by Village Board: _____



ENTRANCE

STAGE W/ TENT

PUMP
HOUSE
WITH ALC
SALES

ENTRANCE

Village of West Dundee Pump House 8/9 Event Recap & Budget

					Budget	Actual Amount	Under (-) / Over (+) Budget - Actual
Expenditures							
Entertainment							
Controlled Burn					600.00		
Total Entertainment					600.00	0.00	0.00
Festival Logistics							
Stage					850.00		
Rentals (Tents, Tables, Chairs)					475.00		
Supplies (Wristbands, Trashbags, Incidentals)					100.00		
Total Festival Logistics					1,425.00	0.00	0.00
Marketing							
Advertising/Signage					300.00	0.00	
Total Marketing					300.00	0.00	0.00
Total Expenditures					2,325.00	0.00	0.00

REGULAR BOARD MEETING
Village Hall, 102 S. 2nd Street

June 3, 2024 – 7:30 pm
Village of West Dundee

I. CALL TO ORDER:

President Nelson called the Regular Board Meeting to order at 7:30 p.m.

II. ROLL CALL:

Present were Village President Christopher Nelson, Village Manager, Joseph Cavallaro, Village Trustees Mark Johnson, Cheryl Alopogianis, Cheryl Anderley, Dan Wilbrandt, Tom Price, and Andy Yuscka.

Also present were Village Attorney Michael Castaldo, Director of Public Works Eric Babcock, Police Chief Anthony Gorski, and Fire Chief Michael Spiro.

There were eight (8) people in the audience.

III. PLEDGE OF ALLEGIANCE:

Trustee Alopogianis led the Board and those in attendance in the Pledge of Allegiance.

IV. APPROVAL OF AGENDA:

MOTION: Moved by Trustee Yuscka and seconded by Trustee Alopogianis to approve the agenda as presented. Upon roll call, the motion was approved by acclamation.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price

NAYS: None

ABSENT: None

V. VILLAGE PRESIDENT'S REPORT:

President Nelson noted that Emmett's 25th Anniversary and Spa Bleu's 20th Anniversary, along with Susan Harkin's retirement are coming up and asked Manager Cavallaro to have staff create proclamations recognizing these milestones.

President Nelson thanked Trustees Anderley, Alopogianis, Price, Johnson, and Yuscka for volunteering their time at The Wall That Heals over the weekend.

VI. REPORTS AND QUESTIONS FROM TRUSTEES AND WORKING GROUPS

Trustee Alopogianis reported that she was able to attend a VIP event for the Village Squire's 50th Anniversary and said it was a lovely event with a great turnout. She said that Bob Karas thanked her again for the framed proclamation that she presented to him on behalf of the Village.

VII. STAFF REPORTS: None

VIII. QUESTIONS FROM THE AUDIENCE:

Sue Berna, 535 South Second Street, said that her comments this evening were mostly questions. She asked 1) How the zoning violation could have occurred when there was an annual inspection during

which this should have been brought to the staff's attention 2) Why the proposed correction should penalize residents and neighbors while the owners would get what they want, 3) How this potential change in zoning would affect housing values resulting with unhappy neighbors. She feels it would be negligent for the Village not to address these questions.

Bernadette Stoecker, 219 South Third Street, approached the Board and said she feels that there is someone who would be desirous of purchasing and restoring this historic home if the Village does not destroy it with zoning. As a resident, she takes great pride and ownership in the community and feels the riverwalk, the downtown, and great parks provide so much for residents to enjoy. She feels the Village should make better choices without worrying about "what ifs".

Michael Mulcrone, unincorporated Dundee Township, approached the Board and asked if any other development for the property at Randall Road and Binnie is being considered. He pointed out that the Village of West Dundee took a strong stance against Carpentersville and the proposed plan, and it didn't move forward. His hope is that if another developer comes forward with a plan, the Village will give it the same consideration.

IX. CONSENT AGENDA:

- A. Approval of Bill List: 06/03/2024
- B. Approve Purchase: Video Laryngoscopes
- C. AXON Contract Renewals
- D. First American Bank – Revolving Line of Credit Authorization
- E. Approval of Minutes: Regular Board Meeting – May 6, 2024
- F. Authorization to Approve a Stop Sign at Fairhills and Angle Tarn

Trustee Anderley requested that Item A under New Business in the Minutes dated May 6, 2024, be amended to accurately reflect her comment that she does not believe that the Village should fund for-profit business events.

MOTION: Moved by Trustee Anderley and seconded by Trustee Johnson to approve the Consent Agenda items A-D and F and Item E as amended. Upon roll call, the motion was approved.

AYES: Trustees Anderley, Wilbrandt, Price, Yuscka, Johnson and Alopogianis

NAYS: None

ABSENT: None

X. UNFINISHED BUSINESS

A. Recommendation to Award 2024 Street Improvements

Trustee Yuscka said that the Village received 7 proposals for the 2024 Street Improvements Project.

The low bid for Option 1 was received by J.A. Johnson Paving Company for \$848,457.63. The FY 2024/25 Budget for the Capital Projects Fund for street improvements includes the amount of \$1,100,000 for Bid Option 1. Due to the low bid for Option 1 and an additional \$1,000,000 in Cares Act funds available in this year's Capital Budget, Bid Option 2 (Bid Option 1 + Expanded Area) was conceived as a potential utilization of those funds. J.A. Johnson's low bid for Option 2 is \$1,612,131.52. Based on the favorable pricing for pavement work this year, staff recommends awarding the full project scope represented by Bid Option 2.

Baxter & Woodman also submitted a Construction Engineering Services proposal at a cost not to exceed \$168,417 for Bid Option 2. Considering the complexity and expense of this project, the engineer's expertise is valuable to ensure the work is completed following contract specifications.

MOTION: Moved by Trustee Yuscka and seconded by Trustee Price to award a contract to J.A. Johnson Paving Co. of Arlington Heights, IL for Bid Option 2 of the 2024 Street Improvements Project at \$1,612,131.52.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price

NAYS: None

ABSENT: None

MOTION: Moved by Trustee Yuscka and seconded by Trustee Alopogianis to approve a proposal with Baxter & Woodman for construction engineering services at a cost not to exceed \$168,417.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price

NAYS: None

ABSENT: None

XI. NEW BUSINESS

A. Staffing, Authorization to Promote & SRO Position

Trustee Wilbrandt explained that there are a lot of moving parts within the Police Department and recruiting issues have been discussed at length. Recruiting issues are not unique to West Dundee and are difficult all over. He said that the West Dundee Police Department has had a hard time keeping the officer count to the authorized number of 23. Trustee Wilbrandt reviewed the items being requested which include a School Resource Officer at the elementary schools, the proposed changes to shifts, and promotions/new hires to keep a fully staffed department.

Trustee Alopogianis asked if the budget was for salary and benefits only and asked about the overtime costs incurred. Manager Cavallaro said that both the Police and Fire Departments are significantly over budget when it comes to overtime. Trustee Wilbrandt pointed out that overtime costs should be offset by the fact that we haven't paid full salaries for all the authorized positions because they haven't been able to fill those positions, along with the salaries of officers who have left the department.

Trustee Price asked for clarification regarding the School Resource Officer. He said it's his understanding that we are not authorizing the position now but in the future. Chief Gorski said that based on staffing issues, the best the department can do now is to have Officer Hicks teach the DARE curriculum at the schools and to provide a police presence before and after school and at school events.

Trustee Wilbrandt and Trustee Johnson indicated that they would still like to move forward with the SRO position when we have the numbers, even if there is pushback from the School District, and feel it is important for the community

MOTION: Moved by Trustee Wilbrandt and seconded by Trustee Anderley to:

- 1) Authorization to hire five (5) officers from the entry-level eligibility list, currently being created
- 2) Approve the immediate promotions of Detective Michael Slager and Detective Paul Shipley to the rank of Sergeant from the current Sergeant Promotion list.

- 3) Authorize the twenty-third (23rd) officer position to be authorized but placed on hold until Officer Highland's possible active-duty deployment is finalized and some of the current staffing crisis subsides.

AYES: Trustees Wilbrandt, Price, Yuscka, Johnson, Alopogianis and Anderley
NAYS: None
ABSENT: None

B. Staffing Authorization: Part-Time Deputy Chief Position

Trustee Wilbrandt explained that much like the Police Department, the Fire Department has had difficulties with recruiting and keeping firefighters. He explained that as outlined in the memo to the Board, the department needs deeper leadership at the top. Chief Spiro explained that the department needs someone who is well-versed within the department and on the floor when he is not there.

Trustee Anderley asked why the Village isn't going through GovHR to fill this position instead of appointing someone. Trustee Price pointed out that the Village only uses GovHR for Department Manager positions. She pointed out that the position was just created and has not been approved, and someone is already being appointed to the position. She feels that others might apply for the position if it was posted.

Trustee Johnson said that the Board is seeing the resume for someone before the position is approved and feels this is backward.

Manager Cavallaro said that if the Board wishes to create this position, like Chief Gorski, it will be Chief Spiro's decision on whom to hire and the request before them today is to create the Part-Time Deputy Chief position.

President Nelson said that this could have been telegraphed to the Board earlier but said the Fire Department is young and feels it needs depth at the top of the department.

Trustee Johnson questioned the sentence "not adequately mentored" in the Board Memo. Chief Spiro explained that he is stationed at PS2 and not PS1, so he does not have daily interactions with the firefighters there. They have worked hard to increase the training, but to be there on a day-to-day basis stretches him thin.

Trustee Wilbrandt asked how much time Chief Spiro spends on his Fire duties versus IT. Chief Spiro explained that his IT duties take up about 2%-5% of his time and are down to 1-2 hours/week.

MOTION: Moved by Trustee Yuscka and seconded by Trustee Price to authorize creating the position of Part-Time Deputy Fire Chief.

AYES: Trustees Yuscka, Alopogianis, Price, and President Nelson
NAYS: Trustees Johnson, Anderley and Wilbrandt
ABSENT: None

C. Staffing Authorization: Part-Time Firefighter Pay Scale

Trustee Wilbrandt explained that the staff is proposing a restructuring of the part-time firefighter pay system over the next 2 years which should help keep us competitive with neighboring Fire Departments. He said that the Fire Department relies heavily on part-time firefighters to ensure consistent and effective shift coverage and they play a crucial role in the department. Currently, our part-time pay scale falls behind what neighboring departments offer.

To simplify the process and recognize the dedication and reliability of the firefighters, staff suggest consolidating different pay rates into a clear system based on experience and time with the Department. This would reward loyalty and commitment and encourage long-term engagement with the department.

Chief Spiro gave a brief overview of the proposed pay system.

MOTION: Moved by Trustee Wilbrandt and seconded by Trustee Yuscka to authorize adopting the proposed pay restructuring plan as outlined.

AYES: Trustees Wilbrandt, Price, Yuscka, Johnson, Alopogianis and Anderley

NAYS: None

ABSENT: None

D. PSA and Authorization to Solicit Proposals – Well 1 Maintenance

Trustee Yuscka explained that PLC upgrades are done on an annual basis and staff had Baxter & Woodman prepare a proposal for design and bidding services for the replacement of the programmable logic controller and motor control center at Well 1. The existing system has become obsolete and more susceptible to frequent failures with few repair options. Director Babcock explained that the motor control needs to be replaced due to its poor condition and the lack of available replacement parts because of its 1960 technology.

The motion was amended to show that the work needed at Well 1 should not exceed \$53,100.

MOTION: Moved by Trustee Yuscka and seconded by Trustee Price to authorize a Professional Services Agreement for the design of the Well 1 Maintenance Project and to solicit proposals in an amount not to exceed \$53,100.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price

NAYS: None

ABSENT: None

E. Professional Services Agreement – PLC Upgrades

Trustee Yuscka explained that the staff requested that Concentric Integration prepare proposals to facilitate PLC upgrades at the Randall Road Water Treatment Plant and the Grand Pointe Lift Station. The existing PLCs are extremely old, have become obsolete, and suffer operational failures on a more frequent basis. They are not able to be prepared in their current form as well. The recommended Professional Services Agreement represents all programming work and technical equipment necessary to bring the projects to both facilities to completion.

MOTION: Moved by Trustee Yuscka and seconded by Trustee Alopogianis to authorize a Professional Services Agreement with Concentric Integration to complete PLC upgrades at Randall Road WTP and the Grant Pointe Lift Station at a total cost of \$109,000

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price

NAYS: None

ABSENT: None

F. Annual Grinder Maintenance

Trustee Yuscka explained that staff collected quotes for the replacement of the grinder at the Oakview Lift Station and is seeking authorization to proceed with the work. The grinder is being replaced due to excessive wear compromising its reliability. The pump replacement is part of the annual maintenance commitment for grinders as outlined in the 5-Year Capital Plan.

Public Works will perform all removal and installation services in-house, which will cost up to an additional \$1,000 for the necessary equipment.

MOTION: Moved by Trustee Yuscka and seconded by Trustee Price to authorize staff to complete annual grinder maintenance for the Oakview Lift Station at a cost of \$12,800.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price

NAYS: None

ABSENT: None

G. Authorization to Conduct HVAC Repair at Public Safety Center 1

Trustee Yuscka explained that the HVAC system at Public Safety Center #1 has failed and needs to be replaced. The replacement includes the new compressor and all the necessary installation work including shutdown and startup, refrigerant recovery, electrical circuit isolation, new electrical wiring, contractor and liquor line drier replacement and testing.

MOTION: Moved by Trustee Yuscka and seconded by Trustee Alopogianis authorizing PremiStar to conduct replacement of the compressor for the HVAC system at Public Safety Center #1 at a cost of \$6,937.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price

NAYS: None

ABSENT: None

H. Authorization to Proposals – Downtown Railing Refurbishment

Trustee Yuscka explained that Public Works is requesting authorization to solicit proposals for Phase 3 of the Annual Downtown / Riverwalk Railing Refurbishment Program. He explained that Phase 1 and Phase 2 were completed, and this is authorization to solicit proposals for Phase 3. Phase 3 of the program includes the replacement of black railing in the planter boxes on Main Street, consisting of the installation of new steel railings, priming, and painting.

MOTION: Moved by Trustee Yuscka and seconded by Trustee Alopogianis to authorize staff to solicit proposals for the Downtown Railing Refurbishment, Phase 3 Project.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price
NAYS: None
ABSENT: None

XIII. MISCELLANEOUS / FUTURE AGENDA ITEMS

XIV. ADJOURNMENT:

MOTION: Moved by Trustee Price and seconded by Trustee Yuscka to adjourn the Regular Board Meeting. The motion was approved by acclamation.

The Regular Board Meeting adjourned at 8:33 p.m.

ATTEST:

Mary Jo Pape
Village Clerk

Christopher Nelson
Village President

Village of
West Dundee



TO: Village President & Board of Trustees
Local Liquor Control Commission

FROM: Joseph A. Cavallaro, Village Manager

DATE: August 5, 2024

SUBJECT: Special Event and Daily Liquor Permit Request – VFW Post 2298 Bags & Brews Bags Tournament

INTRODUCTION:

Attached please find a Special Event Application and Daily Liquor Permit Request submitted by Commander Daniel Pearson on behalf of VFW Post 2298 to host a Bags & Brews Bags Tournament on Sunday, August 25, 2024, at the VFW located at 117 S. First Street. Last year the VFW held this event without Village approval, so they have formally submitted the required application for this year's event.

BACKGROUND:

Special Event Dates and Hours: The event would be held on Sunday, August 25, 2024, from 12:00 pm to 5:00 pm.

Special Event Description: The proposed event is a Bags and Brews Bags Tournament to be held in the parking lot on the east side of the building. Outdoor service or consumption of alcohol has been requested. Canned beer will be sold out of coolers outdoors and mixed drinks will be sold indoors. IDs will be checked by VFW members and wristbands will be utilized. VFW members will be in attendance to enforce the rules and laws. 50 people are expected to be in attendance.

The use of amplified music has been requested. It is recommended that speakers face away from nearby residences and that the volume be maintained at a level that will not disrupt the neighborhood.

Special Event Area: The VFW has requested the use of the public parking areas to the east of the VFW. A map of the requested event area is attached, with the event boundaries outlined in red.

Village Services: The VFW has requested that the Public Works Department provide snow fencing to block the north and south sides of the parking lot which is public parking. Customers would be allowed to exit the building from the south side of the building and walk to the parking lot on the east side of the building where the tournament will be held.

The VFW has also requested the use of the Pump House restroom facilities for this event.

RECOMMENDATION:

With the Village having reviewed the special event application, staff respectfully recommends that approval be granted to the VFW Post 2298 to conduct their described event. If the Village Board and the Local Liquor Control Commission concur, the following motion would be appropriate.

LLC MOTION: Move to approve a Daily Liquor Permit for the VFW Post 2298 to conduct a Bags & Brews Tournament on August 25, 2024, from 12:00 pm to 5:00 pm in the east parking lot of the VFW, 117 S. First Street, as described within this memo.

VILLAGE BOARD MOTION: Move to approve the Special Event Application for the VFW Post 2298 to conduct a Bags and Brews Tournament on August 25, 2024, from 12:00 pm to 5:00 pm in the east parking lot of the VFW, 117 S. First Street, as described within this memo.



SPECIAL EVENT APPLICATION

Date Received: _____

SPONSOR & CONTACT INFORMATION

EVENT SPONSOR

Name: West Dundee VFW Post 2298
Address: 117 South 1st Street
Phone: 847-428-9006
Email: vfwpost2298@hotmail.com

PRIMARY CONTACT

Name: Daniel Pearson
Address: 117 South 1st Street
Phone: 847-652-7463
Email: vfwpost2298@hotmail.com

DESCRIPTION OF EVENT

Event Name: Bags & Brews Bags Tournament

Event Date (s): August 25, 2024 Hours: 12:00 - 5:00 p.m.

Location: East side of building Expected Attendance: 50

Description of Event: Bags tournament with alcohol outside.

EVENT DETAILS – Check all boxes below that apply

- | | |
|---|---|
| ☐ Fireworks | ☐ Entertainment / Music |
| ☒ Alcohol | ☒ Sound Amplification |
| ☐ Signs / Banners | ☐ Outside Electrical Service |
| ☒ Street Closures | ☐ Outside Water Service |
| ☐ Itinerant Merchants | ☐ Temporary Structures |

Detailed plans & schedules shall be attached for all checked items. These plans should include dates, locations, times, maps noting street closures etc.

Please Note: Barricades for street closures must be arranged with Public Works Department.

Also Please Note: Permit applications are required for signage, fireworks, and Liquor.

- ✓ Attach detailed plans for Trash Collection & Removal, Security, Parking, and Restrooms.
- ✓ Attach additional maps, drawings or written information you feel are necessary to process your application.
- ✓ Submit this application & all attachments to the Community Development Dept., 100 Carrington Dr., West Dundee.

Approval of this application will reserve for the above mentioned applicant/organization the requested event date/place providing all requirements outlined by the Village of West Dundee have been met.

ASSUMPTION OF LIABILITY AND INDEMNIFICATION

If the special event request is approved, the sponsor shall assume full responsibility for compliance with all conditions, fees, or any cost associated with this event. The sponsor shall be strictly liable for the acts of its agents, volunteers, officers and employees and shall indemnify and hold harmless the Village of West Dundee, its officers, agents, and employees from any claim, suit or liability whatsoever including, but not limited to, any court costs or reasonable attorney's fees arising out of or in any way connected with any acts or omissions of sponsor, its agents, volunteers, officers and employees, or the special event. The applicant will provide a certificate of insurance naming the Village as an additional, primary, non-contributory insured as may be required by the Village.

Applicant's Signature:  Date: 7/15/24

Note: All requests, depending on the type of event, shall be submitted at least 60-30 days prior to event date, as per Village Ordinance 3.8.

FOR OFFICE USE ONLY

Copies to:

Date Received: _____ () Police Dept () Public Works
Date Approved: _____ () Fire Dept () Community Development

**VILLAGE OF WEST DUNDEE
DAILY LIQUOR LICENSE PERMIT APPLICATION**

Date: 7/15/24

Name of Organization: West Dundee VFW Post 2298

Address: 1 71 South 1st Street

Name of Applicant/Contact: Daniel Pearson

Phone (day): 84 765 2746 3 (evening): 847-652-7463

Email Address: vfwpost2298@hotmail.com

Event Name: Bags & Brews Bags Tournament

Date(s) & Time of the Event: August 25, 2024 12:00 - 5:00 p.m.

Event Location: East side of building

Type of Alcohol to be served: Beer and mixed drinks

Description of the security measures you will be utilizing for both liquor services and the event:
Snow fence and wrist bands. Members will be in attendance to enforce rules and laws.

Description of the area in which alcoholic liquor will be available for service and for consumption (attach map):

Customers will be allowed to exit building out of south side of building and walk to the east side parking lot. This is the villages parking lot which will be closed to traffic by a snow fence on both sides lot. We will also be selling canned beer out of coolers, mixed drinks will be inside.

Applicant's Signature  Date 7/15/24

PLEASE NOTE: Request must be submitted at least 30 days prior to event date.

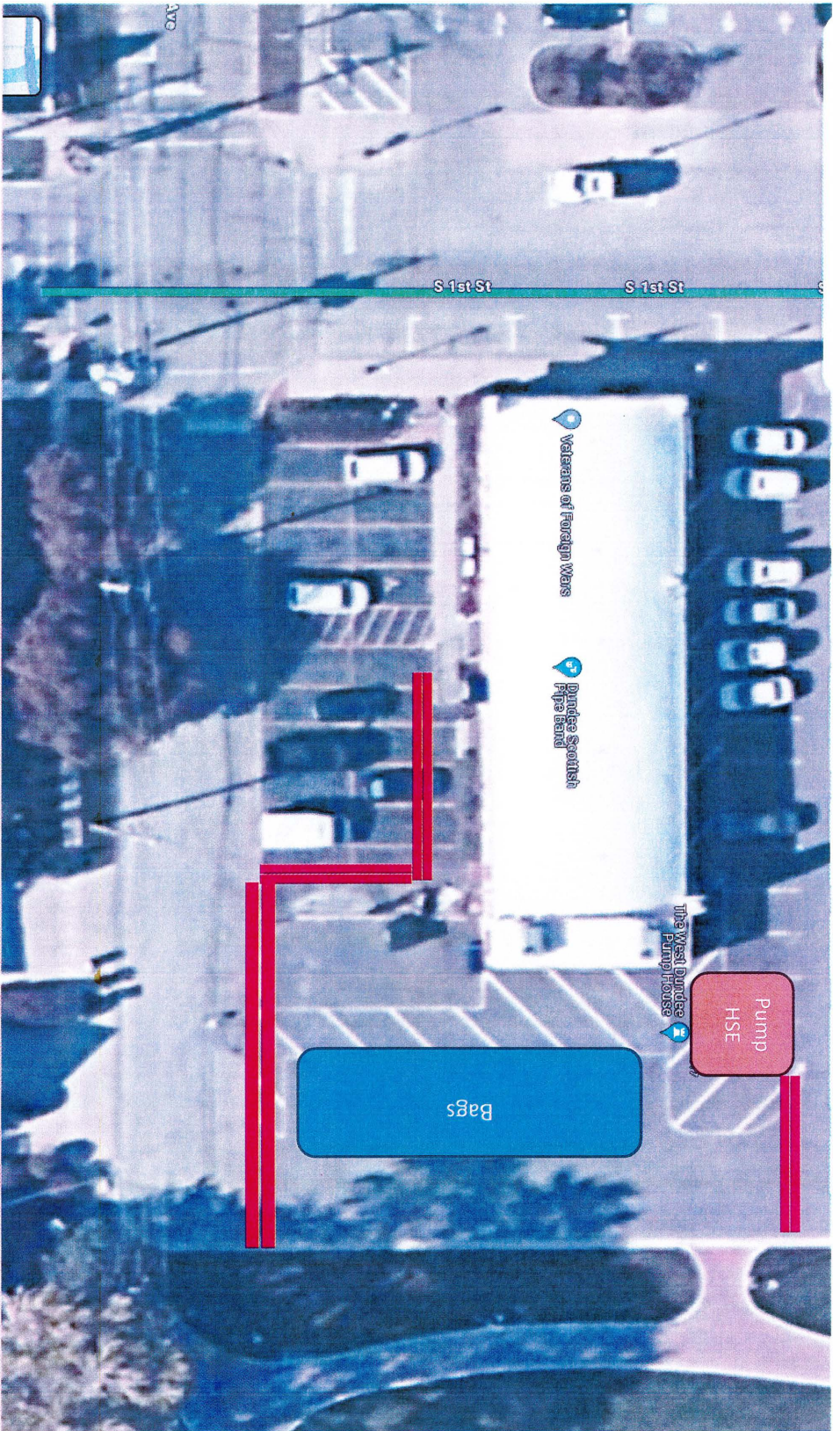
Submit this application to Village Hall, 102 S. Second Street, West Dundee, IL 60118

FOR OFFICE USE:

Date Received: _____ Fee Received (\$50.00 per day): _____

Date Approved: by Local Liquor Commission: _____

by Village Board: _____



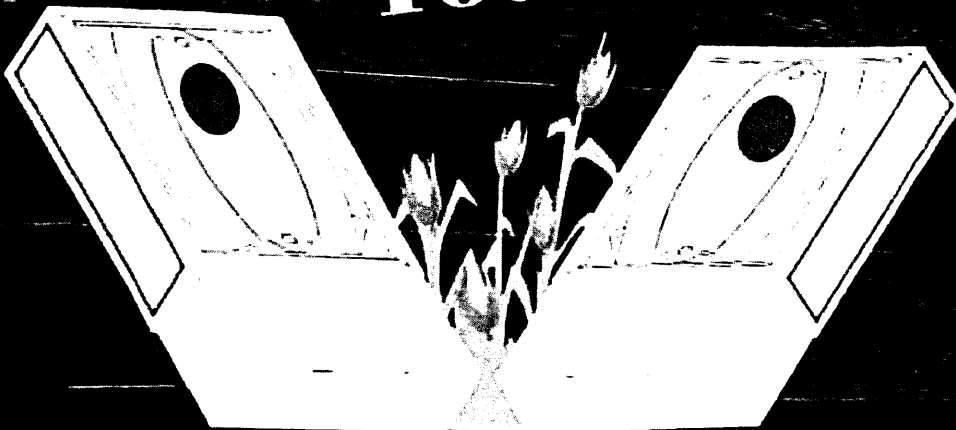
Snow fence provided by village.

VFW #2298 AUXILIARY PRESENTS

BAGS & BREWS AT THE BUNKER II

BLIND DRAW

Tournament!



Sunday,
August 25

12:00PM - 5:00PM

VFW POST #2298

117 SOUTH FIRST STREET
WEST DUNDEE, IL

LET THE GAMES BEGIN!

CASH PRIZES - RAFFLES - GOOD EATS & DRINKS!



\$25 PER PERSON TO ENTER



Registration includes entry into the tournament and a complimentary Soda or Beer
Cash prizes for 1st and 2nd place teams

You must be 21 and over to play

<https://ticketleap.events/tickets/dundee-vfw-post-2298-auxiliary/bags-at-the-bunker>

Teams will be drawn at 12:30 - First round games will start immediately following the draw



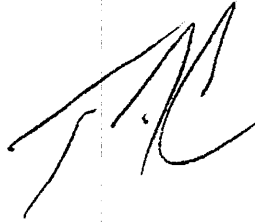
Village of
West Dundee

TO: Local Liquor Control Commission
Village President & Board of Trustees

FROM: Joseph A. Cavallaro, Village Manager

DATE: August 5, 2024

SUBJECT: Liquor License Renewal – Sonesta Select Elgin



BACKGROUND:

At the January 22, 2024, Local Liquor Control Commission meeting, Sonesta Select Elgin's application was reviewed and approved. Staff sent them their Local Liquor License along with a letter that the State requires to secure their State license.

During the annual liquor license review process at the April 15th Local Liquor Control Commission meeting, Sonesta Select indicated that they had not yet secured their State License, so they were not part of the annual approvals.

UPDATE:

Sonesta Select's Elgin's Local Liquor License expired at the end of April. They are requesting approval of their 2024/25 Class A Local Liquor License which is a requirement for their application for their State License.

The staff has reviewed their paperwork, and everything is in order and their fee has been paid.

RECOMMENDATION:

It is respectfully requested and recommended that Sonesta Select Elgin's Class A Local Liquor License be renewed for the period of August 5, 2024 – April 30, 2025.

MOTION: Moved to approve the renewal of Sonesta Select Elgin's Class A Local Liquor License for the period of August 5, 2024 – April 30, 2025.

CC: Kathleen Field Orr, Village Attorney
Dan Haines, Interim Police Chief
Romin Patel, Sonesta Select Elgin
Nehal Patel, Sonesta Select Elgin



Village Hall – Administration Department
102 S. Second Street, West Dundee, IL 60118
Phone: 847-551-3800 Fax: 847-551-3809

APPLICATION FOR ALCOHOLIC LIQUOR LICENSE

License Period May 1, 2024 - April 30, 2025

LEGAL NAME OF BUSINESS: Sahana Hotels LLC DATE: 04/18/24
DBA NAME: Sonesta Select ELGIN IL SALES TAX #: 4479-8334
BUSINESS ADDRESS: 2175 Marriott Dr, WEST DUNDEE, IL PHONE: 847-429-0300
MAILING ADDRESS (if different): Same as Above
NAME OF APPLICANT: Nehal K Patel PHONE: 215-239-4152
E-MAIL ADDRESS: Nehal@orionhosp.com ☐ Send a copy of license by email

Pursuant to the provisions of Title 3, Chapter 2, Alcoholic Liquor Regulations, of the Municipal Code of West Dundee, Illinois, as amended, and pursuant to Chapter 43 of the Illinois Revised Statutes, as amended, the undersigned hereby makes application for an Alcoholic Liquor License as follows:

1. License Classifications and Fees: Check mark, circle or highlight each applicable fee for Class A, A1, AA, AAA, E & F.
- | | |
|---|---|
| ☐ New Applicant | \$150.00 one-time processing fee |
| ☒ Class A \$ 1,900 (1 st bar) | Restaurants, taverns, hotels, etc. with dining service |
| \$ 500 (2 nd bar) | (on premises consumption) |
| \$ 400 (each additional bar) | |
| ☐ Class A1 ... \$ 1,600 (1 st bar) | Restaurants with no liquor service between the |
| \$ 500 (2 nd bar) | hours of 9:00 pm and 6:00 am |
| | (on premises consumption) |
| ☐ Class AA ... \$ 2,500 (1 st bar) | Entertainment venue (on premises consumption) |
| \$ 500 (2 nd bar) | |
| ☐ Class AAA .. \$ 3,000 (1 st bar) | Bars without dining service (on premises consumption) |
| \$ 500 (2 nd bar) | |
| \$ 400 (each additional bar) | |
| ☐ Class B \$ 1,300 | Beer & wine only with dining (on premises) |
| ☐ Class C \$ 1,500 | Package form only (off premises consumption) |
| ☐ Class CC ... \$ 1,800 | Package form (off premises) AND |
| | Dining establishments with 1 bar (on premises) |
| ☐ Class CCC .. \$ 1,100 | Package form – Beer & wine only (off premises) |
| ☐ Class D \$ 900 | Not-for-profit clubs (on premises) |
| ☐ Class E \$ 100 (up to 5 tables) | Outdoor dining in conjunction with Class A, B, D |
| \$ 400 (more than 5 tables) | or F (on premises) |
| ☐ Class F \$ 2,600 | Microbrewery with dining service (on premises) AND |
| \$ 500 (each additional bar) | in package form (off premises) |
| ☐ Class G \$ 900 | Park district operations (on premises) |
| ☐ Class H \$ 500 | Restaurants BYOB beer & wine service (on premises) |
| ☐ Class K \$ 2,500 | Movie theatre concessions (on premises) |
| ☐ Class L \$ 750 | Arts, crafts & entertainment studios (on premises) |
| ☐ Class M ... \$ 750 | Caterers, for events located in West Dundee |
| ☐ Class N \$ 150 | To Go Liquor Privileges |

Total Fee: \$ 1900

REGULAR BOARD MEETING
Village Hall, 102 S. 2nd Street

June 17, 2024 – 7:30 pm
Village of West Dundee

I. CALL TO ORDER:

President Nelson called the Regular Board Meeting to order at 7:30 p.m.

II. ROLL CALL:

Present were Village President Christopher Nelson, Village Manager Joseph Cavallaro, Village Trustees Mark Johnson, Cheryl Alopogianis, Cheryl Anderley, Dan Wilbrandt, Tom Price, and Andy Yuscka.

Also present were Village Attorney Michael Castaldo, Economic Director Tim Scott, Community Development Director Thomas Moszczynski, Police Commander Nathan Herman, and Deputy Village Clerk Kelly Mastera.

There were several people in the audience.

III. PLEDGE OF ALLEGIANCE:

Trustee Johnson led the Board and those in attendance in the Pledge of Allegiance.

IV. APPROVAL OF AGENDA:

MOTION: Moved by Trustee Yuscka and seconded by Trustee Alopogianis to approve the agenda as presented. Upon voice vote, the motion was approved by all.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price

NAYS: None

ABSENT: None

V. VILLAGE PRESIDENT’S REPORT: No report.

VI. REPORTS AND QUESTIONS FROM TRUSTEES AND WORKING GROUPS

Trustee Anderley stated that she thought it was important they follow the ongoing process regarding The Mansion.

Trustee Alopogianis said she attended the recent ribbon cutting at Candy Quest, the new business in West Dundee. She said the owners had great things to say about the community and that they wanted to reinvest in the community.

Trustee Wilbrandt stated that the ribbon cutting event for the Pump House was coming up. He said that volunteers have been going door-to-door distributing flyers to advertise the event. Trustee Wilbrandt explained that there is a link on the back of the flyers to a survey that residents can take and answer what types of events they have attended and what ones they would like to happen in the future. He said the committee has good momentum right now and is hoping to plan more upcoming events, some which could be reoccurring. He said he left additional flyers in the lobby of Village Hall for any residents that stop in. He also thanked Community Development Director Moszczynski for helping to plan the event.

VII. STAFF REPORTS: None

VIII. QUESTIONS FROM THE AUDIENCE:

Bernadette Stoecker said she wanted to speak again about the Board's ongoing discussion about the potential rezoning of The Mansion at 305 Oregon, and her opposition to it. Ms. Stoecker gave the history of her own property which she and her husband purchased back in 1975, and detailed the conditions of the house and property, including the restoration projects they completed which dealt with both the interior and exterior of the house, such as the roof replacement, inground pool, and overgrown landscape. She stated she and her husband took pride in the property in both a financial and emotional way. Ms. Stoecker said that she believed 305 Oregon could be restored to a single-family residence and said she has spoken with other residents who do not like the idea of single room occupancy as it may attract a more transient type of occupant. Ms. Stoecker reiterated her belief that someone is out there who will restore the building.

IX. CONSENT AGENDA:

- A. Approval of Minutes: Regular Board Meeting – May 20, 2024
- B. Ratification of Checks: 06/17/2024
- C. Approval of Bill List: 06/17/2024
- D. Special Event Application: VFW, 117 S First Street, Corvette Car Show on July 27, 2024
- E. Special Event Request – Dundee Historical Society Car Show Fundraiser on October 26, 2024
- F. Daily Liquor Permit Request – Dundee Highlanders Wrestling Club – June 23, 2024
- G. Daily Liquor Permit Request – West Dundee River Challenge Bike Race
- H. Daily Liquor Permit Request – Holzlager Brewing Company for DTPD Brew at Zoo – July 6, 2024

MOTION: Moved by Trustee Yuscka and seconded by Trustee Johnson to approve the Consent Agenda items A-H. Upon roll call, the motion was approved.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt, and Price
NAYS: None
ABSENT: None

X. RESOLUTIONS AND ORDINANCES:

A. An Ordinance Authorizing the Execution of a Revolving Line of Credit with First American Bank

Manager Cavallaro briefly stated that the Board had already given their authorization to enter into the revolving line of credit to fund non-TIF eligible related expenses for the Spring Hill Redevelopment Project at the June 3, 2024, Village Board meeting. He explained this would be the Board formally approving the documents related to the loan.

MOTION: Moved by Trustee Yuscka and seconded by Trustee Alopogianis to authorize the execution of a revolving loan from First American Bank in an amount up to \$3 million for the Spring Hill Redevelopment project.

AYES: Trustees Yuscka, Johnson, Alopogianis, Anderley, Wilbrandt and Price
NAYS: None
ABSENT: None

B. 120 West Main Street: An Ordinance Approving a Third Amendment to the Redevelopment Agreement by and between the Village of West Dundee and 120 Main Dundee LLC

Trustee Price reviewed the project's background and explained the basis for the extension of the Redevelopment Agreement.

MOTION: Moved by Trustee Price and seconded by Trustee Yuscka to approve the Third Amendment to the Redevelopment Agreement by and between the Village of West Dundee and 120 Main Dundee LLC and the associated ordinance.

AYES: Trustees Price, Yuscka, Johnson, Alopogianis, Anderley, and Wilbrandt

NAYS: None

ABSENT: None

C. An Ordinance Amending the Tobacco Vending Machine Ordinance

Trustee Price clarified with Director Moszczynski what the Village's current ordinance is and Director Moszczynski explained how this amendment completely bans the use of vending machines for the sale of tobacco products.

MOTION: Moved by Trustee Alopogianis and seconded by Trustee Johnson to adopt An Ordinance Amending Title Three Chapter Six Section 6 Vending Machines of the Village of West Dundee.

AYES: Trustees Alopogianis, Anderley, Wilbrandt, Price, Yuscka, and Johnson.

NAYS: None

ABSENT: None

XI. NEW BUSINESS:

A. Schroeder Cemetery Preservation Project Contribution

Trustee Alopogianis briefly reviewed the details of the project which the Board had been aware of. Manager Cavallaro gave an overview of how the Village could contribute to the project in terms of assistance by the Public Works Department as well as a financial contribution.

Trustee Price clarified that the Village would be providing reimbursement, and Manager Cavallaro explained that Village staff would work with Mimi Garcia, the Volunteer Project Lead, on necessary paperwork.

Trustee Johnson said he thought the project restoring the historical site was awesome. Ms. Garcia explained a bit about the equipment that would be used at the site, and upon a question from Trustee Johnson, confirmed that they will be working on ways to involve kids from Dundee Middle School on the project.

MOTION: Moved by Trustee Alopogianis and seconded by Trustee Yuscka to authorize the Village of West Dundee's Public Works Department to assist with the site work for the Schroeder Cemetery Preservation Project and to provide a monetary contribution to the project in the amount of \$5,000.

AYES: Trustees Alopogianis, Anderley, Wilbrandt, Price, Yуска, and Johnson
NAYS: None
ABSENT: None

B. Heritage Fest 2024 – Requests for Approval

Trustee Alopogianis reminded everyone that this agenda item was for multiple requests which all had to do with the annual Heritage Fest weekend which is scheduled this year for the weekend of September 13-15. Manager Cavallaro provided more specific details on certain aspects of the Fest. He explained that last year a resident and his company anonymously stepped up to sponsor the fireworks at the Heritage Fest, and this year the same company, Bravingbird, is willing to cover the host and sponsor the fireworks again if the Board agrees to continue the fireworks display this year. Manager Cavallaro stated staff did investigate drone shows again, but they still have higher costs.

Manager Cavallaro also indicated that the staff is looking for direction on increasing the cost of drink ticket sales by \$1 to keep up with rising costs. He stated that the Village has not increased the cost in over 10 years, and the recommendation is the cost goes from \$5 to \$6 and \$6 to \$7 on the respective beverages.

The Board members discussed the option of raising the price on drink tickets. Trustee Wilbrandt stated it was still cheaper than other festivals he had attended. Trustee Johnson said that in his volunteer work he has been to many festivals and noticed that some events such as Gilberts' Community Days use cans instead of poured drinks.

The Board members then discussed whether to have a fireworks display. President Nelson asked to take a general poll of the Board to gauge each member's interest. Trustee Yуска stated that he has been advocating for years to be done with the fireworks display, even now with financial sponsorship. He said he believes it harms the environment and takes people away from the vendors, and that it also is inconvenient when IL Rte. 72 needs to be shut down. Trustee Anderley said she did not like the fireworks. Trustee Alopogianis said she personally doesn't really like them but is okay with having them this year at Heritage Fest. Trustee Johnson said he is fine with them. Trustee Price stated he sympathized with the concerns that others had brought up, but he believes the fireworks bring people to the event. Trustee Wilbrandt stated he is a huge proponent of having the fireworks display and he does not think it detracts at all from Heritage Fest. President Nelson said that it seems the consensus is to keep the fireworks display this year.

MOTION: Moved by Trustee Alopogianis and seconded by Trustee Johnson to approve the Special Event Application, Fireworks Permit Application, Daily Liquor Permit Request, Road Closure & Parking Restriction Plan and Draft Budget for Heritage Fest on September 13, 14, and 15, 2024.

AYES: Trustees Alopogianis, Anderley, Wilbrandt, Price, Yуска, and Johnson
NAYS: None
ABSENT: None

C. Authorization to Purchase Two Night Vision Devices

Trustee Wilbrandt provided a brief overview of the request by the Police Department to order two night vision devices for SWAT Operator use. Trustee Wilbrandt said the one staff presented was lesser in cost, but still seemed of good quality. He said he was in favor of the purchase, and then asked Police Commander Herman for clarification on the difference between the two devices and why Kane County

uses the more expensive ones. Commander Herman provided further detail about the clarity levels. Trustee Johnson and Commander Herman discussed the longevity of devices.

President Nelson asked staff for further details about the budgeted amount and funding available for the equipment purchase. Manager Cavallaro confirmed if the higher-range night vision devices were purchased they would be over budget. Trustee Wilbrandt said he would not want to leave a SWAT Operator in a hard situation and would support the higher-range devices.

MOTION: Moved by Trustee Wilbrandt and seconded by Trustee Johnson to approve the purchase of the higher cost L3 Harris BNVD (AN/PVS-31A) at a price of approximately \$13,700 each for two units at a cost not to exceed \$29,000 with mounts.

AYES: Trustees Wilbrandt, Johnson, Alopogianis and Anderley
NAYS: Trustee Yuscka
ABSTAIN: Trustee Price
ABSENT: None

XIII. MISCELLANEOUS / FUTURE AGENDA ITEMS: None

XIII. ADJOURNMENT:

MOTION: Moved by Trustee Yuscka and seconded by Trustee Alopogianis to adjourn the Regular Board Meeting. The motion was approved by all by voice vote.

The Regular Board Meeting adjourned at 8:02 p.m.

ATTEST:

By: Kelly Mastera
Deputy Village Clerk

Christopher Nelson
Village President

Village of
West Dundee

TO: President Nelson and Village Board of Trustees (VBT)

FROM: Timothy J. Scott, AICP, CNU-A
Director of Economic Development, Planning, Zoning & Urban Design 

DATE: August 5, 2024

SUBJECT: Ordinance Approving a Commercial Security Agreement Assigning Reimbursement Rights Pursuant to a Redevelopment Agreement by and between the Village of West Dundee, Illinois and 120 Main Dundee LLC

INTRODUCTION

The Village has been informed by 120 Main Dundee LLC's lender, Sterling Bank, is requiring that the Redevelopment Agreement (RDA) be assigned to them as collateral for the project.

BACKGROUND

Pursuant to the terms of the RDA, the Village must acknowledge and consent to its assignment (as noted in Section 10.2. This is standard industry practice for securing full financing of such projects. Past assignments approved by the VBT via Ordinance include those for projects of an even larger scale, with Woodlands at Canterfield and Seasons at Randall Road of particular note.

Attorney Orr will provide a final review to ensure that such assignment is in concert with the approved terms of the RDA.

RECOMMENDATION

Staff respectfully recommends Village Board approval of the attached subject to the final review and approval by Village Attorney Orr.

MOTION: Move to Adopt an Ordinance Approving a Commercial Security Agreement Assigning Reimbursement Rights Pursuant to a Redevelopment Agreement by and between the Village of West Dundee, Illinois and 120 Main Dundee LLC subject to final review and approval by the Village Attorney.

If you have any questions or comments, please contact me by phone at (847) 551-3806 or via e-mail at tscott@wdundee.org.

Attachments (3):

- Draft Ordinance Approving a Commercial Security Agreement Assigning Reimbursement Rights Pursuant to a Redevelopment Agreement
- Acknowledgement of Developer Obligations
- Redevelopment Agreement, as Amended June 17, 2024

CC: Joseph A. Cavallaro – Village Manager
Kathleen Field Orr – Village Attorney
Andrew Burns – 120 Main Dundee LLC

ORDINANCE No. 2024-__

ORDINANCE APPROVING A COMMERCIAL SECURITY AGREEMENT ASSIGNING REIMBURSEMENT RIGHTS PURSUANT TO A REDEVELOPMENT AGREEMENT BY AND BETWEEN THE VILLAGE OF WEST DUNDEE, ILLINOIS AND 120 MAIN DUNDEE LLC

WHEREAS, the Village of West Dundee, Kane County, Illinois (the “*Village*”) is a home rule unit of local government pursuant to Article VII, Section 6(a) of the 1970 Constitution of the State of Illinois and as such has the power and authority to perform any function pertaining to its government and affairs and to promote the health, safety and welfare of its citizens; and,

WHEREAS, the President and Board of Trustees of the Village (the “*Corporate Authorities*”) have acknowledged that one of the primary goals of local government is to promote the health, safety and welfare of its citizens by encouraging private investment in industry, business and housing in order to enhance the Village’s tax base and provide job opportunities for its residents; and,

WHEREAS, 120 Main Dundee, LLC an Illinois limited liability company (the “*Developer*”) acquired the property at 120 West Main Street for the purpose of rehabilitating an existing two-story building to provide new commercial space on the ground floor for an upscale restaurant and boutique short-term rental lodging on the upper floor (the “*Project*”); and,

WHEREAS, to induce the Developer to construct the Project, the Village entered into a Redevelopment Agreement on February 20, 2024 (the “*Agreement*”) by which the Village agreed to reimburse the Developer for certain “Redevelopment Project Costs”, as defined in the Agreement, incurred by the Developer in connection with the Project, subject to the terms and conditions stated in the Agreement; and,

WHEREAS, for the Developer to finance the Project, Sterling Bank has requested an assignment of the Developer’s rights to reimbursement pursuant to the Agreement of the eligible the Redevelopment Project Costs; and

WHEREAS, the Corporate Authorities believe it to be in the best interest of the Village to consent to the requested assignment as set forth in the Commercial Security Agreement attached hereto on the condition that the Developer acknowledges, in writing, it remains solely responsible for all of the Developer’s obligations under the Agreement.

NOW, THEREFORE, BE IT ORDAINED by the President and Board of Trustees of the Village of West Dundee, Kane County, Illinois, as follows:

Section 1. All of the recitals hereinabove set forth are hereby incorporated into this Ordinance as if fully restated in this Section 1.

Section 2. The Commercial Security Agreement by and between the Village of West Dundee and Sterling Bank of Saint Charles, Illinois is hereby approved in the form attached hereto and made a part hereof and the Village President and Village Clerk are hereby authorized to execute and deliver said Agreement.

Section 3. The Village Clerk is authorized to deliver said Commercial Security Agreement to Sterling Bank upon receipt of a written certification from 120 Main Dundee, LLC of its sole responsibility and liability for any and all obligations of it as the Developer under said Redevelopment Agreement.

Section 4. This Ordinance shall be in full force and effect upon its passage and approval, as provided by law.

PASSED this 5th day of August, 2024.

AYES:

NAYS:

ABSENT:

ABSTAIN:

APPROVED:

Christopher Nelson
Village President

ATTEST:

Mary Jo Pape
Village Clerk



ACKNOWLEDGMENT OF DEVELOPER OBLIGATIONS

The undersigned, the Managing Partner of 120 Main Dundee, LLC, hereby acknowledges and agrees that, notwithstanding the assignment of the rights to reimbursement to Sterling Bank pursuant to a Collateral Security Agreement by and between said Bank and the Village of West Dundee, 120 Main Dundee, LLC shall remain solely liable and responsible for any and all obligations of the Developer under that certain Redevelopment Agreement, dated February 20, 2024 by and between the Village of West Dundee and 120 Main Dundee, LLC.

120 Main Dundee, LLC,
an Illinois limited liability company

Managing Partner

Dated this _____ day of August, 2024

VILLAGE HALL
102 South Second Street
West Dundee, IL 60118
(847) 551-3800
FAX 551-3809

POLICE DEPARTMENT
555 South Eighth Street
West Dundee, IL 60118
(847) 551-3810
FAX 551-3843

COMMUNITY DEVELOPMENT & FIRE
100 Carrington Drive
West Dundee, IL 60118
(847) 551-3806 / 3805
FAX 551-3814

PUBLIC WORKS
900 Angle Tarn
West Dundee, IL 60118
(847) 551-3815
FAX 551-3842

**A THIRD AMENDMENT TO THE REDEVELOPMENT AGREEMENT, AS AMENDED, BY AND
BETWEEN THE VILLAGE OF WEST DUNDEE, KANE COUNTY, ILLINOIS
AND 120 MAIN DUNDEE LLC**

(120 West Main Street – El Pato Loco & Sinclair Suites)

THIS THIRD AMENDMENT TO THE REDEVELOPMENT AGREEMENT (*"Agreement"*) is entered into as of the 17th day of June, 2024 (*"Effective Date"*), by and between the Village of West Dundee, Kane County, Illinois, an Illinois municipal corporation (*"Village"*), and 120 Main Dundee LLC, a limited liability company of the State of Illinois (the *"Developer"*).

In consideration of the mutual covenants and agreements set forth in this Agreement, the Village and Developer hereby agree as follows:

ARTICLE 1: RECITALS

1.1 The Village is a duly organized and validly existing home-rule municipality of the State of Illinois created in accordance with Section 6(a) of Article VII of the Constitution of the State of Illinois of 1970 and thus may utilize any power and function to further its governmental affairs.

1.2 The Village is engaged in the revitalization and development of its commercial, residential and vacant properties along Illinois Route 31 and Illinois Route 72 (Main Street) including the property commonly known as 120 West Main Street, identified as Parcel No. 03-22-479-025 and legally described as follows:

The West 27 feet 7 inches of the East 35 feet 6 inches of Lot 4 in Block 14 of Plat of Dundee (excepting therefrom the North 51 feet), on the West side of Fox River (the *"Subject Property"*).

1.3 The Village has the authority pursuant to the laws of the State of Illinois, to promote the health, safety and welfare of its inhabitants, to prevent the spread of blight, to encourage private development in order to enhance the local tax base, to increase job opportunities, and to enter into contractual agreements with third parties for the purpose of achieving these goals.

1.4 Pursuant to the Tax Increment Allocation Redevelopment Act of the State of Illinois, 65 ILCS 5/11-74.4-1, *et seq.*, as from time to time amended (the *"TIF Act"*), the President and Board of Trustees of the Village (collectively, the *"Corporate Authorities"*) are empowered to undertake the development or the redevelopment of a designated area within its municipal boundaries in which existing conditions permit such area to be classified as a "blighted area" or a "conservation area" as such terms are defined in the TIF Act.

1.5 To stimulate and induce development and redevelopment pursuant to the TIF Act, the Village, after giving all required notices, conducting a public hearing and making all findings required by law, on the 7th day of May, 2017, pursuant to Ordinance Nos. 2018-07, 2018-08 and 2018-09, approved a Redevelopment Plan and Program (the *"Redevelopment Plan"*) for an area designated as the Main Street/Illinois Route 31 Tax Increment Financing District (the *"Project Area"*) which Project Area includes the Subject Property, and adopted tax increment financing for the payment and financing of "Redevelopment Project Costs", as defined in Section 4.1 hereof, incurred within the Project Area as authorized by the TIF Act.

1.6 The Developer has submitted a proposal to the Village to renovate and repurpose the Subject Property and construct 2,200 square feet of commercial space for an upscale restaurant on the first floor and 2,200 square feet of short-term rental apartments on the second floor (the *"Project"*).

1.7 The Developer has advised the Village that its proposal shall require an investment of approximately \$1,800,000 and, therefore, is contingent upon financial assistance to construct the Project and has requested the Village provide reimbursement of "Redevelopment Project Costs" as defined in Section 4.1 hereof, available to it as a result of the Village's adoption of the TIF Act from "Incremental Taxes" generated by the Subject Property and other taxes as generated from the operations of a restaurant as hereinafter set forth. For purposes of this Agreement, "Incremental Taxes" shall mean the amount of ad valorem taxes attributable to the increase of the equalized assessed value of the Project Area over the initial equalized assessed value of the Project Area as of the date of the adoption of the TIF Act by the Village.

1.8 The Village believes the Project is in furtherance of the Redevelopment Plan and shall increase the tax base for the Village and taxing districts authorized to levy taxes upon the Subject Property and provide job opportunities for its residents; and, therefore, is prepared to assist the Developer with certain costs associated with the Project, subject to the terms of this Agreement, the TIF Act and all other applicable provisions of law.

ARTICLE 2: CONDITIONS PRECEDENT TO VILLAGE OBLIGATIONS

The Developer agrees to satisfy the following conditions to be eligible to receive any financial assistance from the Village for the Project:

- (a) on or before September 30, 2023, the Developer shall have submitted final plans and specifications for the Project for its approval;
- (b) within sixty (60) days of approval of the final plans and specifications for the Project, the Developer shall have delivered to the Village proof of the equity contribution and such financing from a recognized lending institution as required to construct and complete the Project;
- (c) within sixty (60) days of approval of the final plans and specifications for the Project, the Developer shall have submitted applications for all permits required to construct the Project.

ARTICLE 3: OBLIGATIONS OF THE DEVELOPER TO COMPLETE CONSTRUCTION OF THE PROJECT

3.1 On or before October 31, 2023, the Developer shall have acquired all necessary permits to construct the Project and shall proceed as follows:

- (a) Commence construction of the Project in accordance with all approved plans, permits and all applicable Village codes;
- (b) Continue construction without interruption until the Project is completed (subject only to Force Majeure as set forth in Section 7.3 hereof); and obtain a certificate of occupancy for both floors of the Subject Property on or before September 1, 2024; and,
- (c) Upon completion of the Project and commencement of the operation of an upscale Mexican restaurant (the "Business"); and,
- (d) Create no less than thirty-eight (38) jobs during construction and eighteen (18) restaurant jobs upon commencement of Business at the Subject Property.

3.2 Upon completion of the Project, the Developer shall submit to the Village all paid invoices, receipts and any other documentation as deemed necessary to evidence an investment of approximately \$1,800,000 to acquire the Subject Property and construct and complete the Project (the "*Total Project Cost*").

ARTICLE 4: REIMBURSEMENT TO THE DEVELOPER

4.1 Upon completion of the Project and so long as no notice of default has been issued pursuant to Article 6 hereof and remains outstanding, the Village agrees to reimburse the Developer for Redevelopment Project Costs incurred in connection with the Project in an amount not to exceed \$400,000 in the manner and from the sources hereinafter enumerated. For purposes of this Agreement, "Redevelopment Project Costs" shall mean and include all costs defined as "redevelopment project costs" in Section 11-74.4-3(q) of the TIF Act which are eligible for reimbursement.

- (a) In connection with the establishment and ongoing administration of the Redevelopment Project Area, the Village has established a special tax allocation fund pursuant to the requirements of the TIF Act (the "STAF"), into which the Village deposits all "Incremental Taxes" (as hereinafter defined) generated by the Project Area. The Village agrees to reimburse the Developer for Redevelopment Project Costs in the amount of \$400,000 from the STAF upon receipt of paid invoices, amount of bills or other documentation deemed necessary to evidence the expenditure of Redevelopment Project Costs in connection with the Project as required by Section 3.2, as amended.
- (b) The Developer has already received reimbursement of \$50,000 for redevelopment project costs as the result of submitting paid invoices for costs incurred in connection with the Project.
- (c) The Village hereby agrees to reimburse the Developer \$350,000 as follows:
 - (i) \$100,000 within ten (10) days of the issuance of a Certificate of Occupancy for the restaurant and short term rental apartments to be constructed at the Subject Property;
 - (ii) \$50,000 on the anniversary date of the issuance of the certificate of occupancy and annually thereafter for an additional four (4) years.
- (c) On the date which is ten (10) days following the date upon which the Village receives Incremental Taxes from the payment of the final installment of real estate taxes (the "*STAF Allocation Date*"), seventy-five percent (75%) of the Incremental Taxes generated by the Subject Property during the period from the immediately respective STAF Allocation Date to, but not including, the current STAF Allocation Date shall be deposited into the 120 Main Dundee Subaccount of the STAF (which Subaccount shall be automatically created by the ordinance approving this Agreement); and used to pay the Developer during the term of this Agreement the balance due of the total reimbursement of an amount not to exceed \$400,000 less the \$100,000 received including the following tax revenues generated by the Business as listed in (d) below.
- (d) The Village further agrees to deposit into the 120 Main Dundee Subaccount of the STAF, fifty percent (50%) of the following sales taxes (collectively, "*Sales Taxes*") generated by the Business until such time as a total of \$400,000 reimbursement is achieved:
 - (i) All sales taxes (2.5% total) generated from the Business (retailers' occupation tax and a service occupation tax both home-rule and non-home rule);

- (ii) One percent (1%) tax imposed pursuant to Business District Development and Redevelopment Law (65 ILCS 5/11-74.3-1 *et seq.*) on all retail sales from the Business; and,
- (iii) Food and beverage tax of one percent (1%) imposed by the Village on the Business.

4.2 THE VILLAGE'S OBLIGATION TO REIMBURSE THE DEVELOPER UNDER ARTICLE 4 OF THIS AGREEMENT IS A LIMITED OBLIGATION PAYABLE SOLELY FROM INCREMENTAL TAXES AND SALES TAXES DEPOSITED IN THE 120 MAIN DUNDEE SUBACCOUNT OF THE STAF FROM TIME TO TIME AND SHALL NOT BE SECURED BY THE FULL FAITH AND CREDIT OF THE VILLAGE.

ARTICLE 5. REPRESENTATIONS, WARRANTIES, AND COVENANTS

5.1 Developer's Representations Warranties and Covenants. To induce the Village to enter into this Agreement, Developer represents, covenants, warrants, and agrees that:

- (a) Recitals. All representations and agreements made by Developer in Article 1 are true, complete, and accurate in all respects.
- (b) Organization and Authorization. The Developer is a duly formed and existing limited liability company of the State of Illinois and the Developer has the power to enter into, and by proper action has been duly authorized to execute, deliver, and perform, this Agreement. The Developer will do, or cause to be done, all things necessary to preserve and keep in full force and effect its existence and standing as a limited liability company authorized to do business in the State of Illinois for so long as the Developer is developing, constructing and operating the Project.
- (c) Non-Conflict or Breach. The execution, delivery, and performance of this Agreement by the Developer, the consummation of the transactions contemplated hereby, and the fulfillment of or compliance with the terms and conditions of this Agreement shall not conflict with or result in a violation or breach of any of the terms, conditions, or provisions of any offering or disclosure statement made, or to be made, on behalf of the Developer, or any restriction, organizational document, agreement, or instrument to which the Developer, or any of its partners or venturers, is now a party or by which the Developer, or any of its partners or venturers, is bound, or constitute a default under any of the foregoing.
- (d) The Developer has the financial ability to construct and complete the Project.
- (e) The Developer agrees to pay, when due, all taxes, fines, utility bills, including real estate tax assessed upon the Subject Property and any other amounts due and owing to the Village and the State of Illinois.
- (f) Pending Lawsuits. There are no actions at law or similar proceedings either pending or, to the best of the Developer's knowledge, threatened against the Developer that would materially or adversely affect:
 - (i) The ability of the Developer to proceed with the construction and development of the Subject Property;
 - (ii) The Developer's financial condition;

- (iii) The level or condition of the Developer's assets as of the date of this Agreement; or
- (i) The Developer's reputation.

5.2 Village Representations, Warranties and Covenants. To induce the Developer to enter into this Agreement and to undertake the performance of its obligations under this Agreement, the Village represents, covenants, warrants and agrees as follows:

- (a) Recitals. All representations and agreements made by the Village in Article 1 are true, complete, and accurate in all respects.
- (b) Authorizations. The Village has the power to enter into and perform its obligations under this Agreement and by proper action has duly authorized the Village President and the Village Clerk to execute and deliver this Agreement.
- (c) Non-Conflict or Breach. The execution, delivery, and performance of this Agreement by the Village, the consummation of the transactions contemplated hereby and the fulfillment of or compliance with the terms and conditions of this Agreement shall not conflict with or result in a violation or breach of the terms of any order, agreement, or other instrument to which the Village is a party or by which the Village is now bound.
- (d) Pending Lawsuits. There are no actions at law or similar proceedings either pending or to the best of the Village's knowledge being threatened against the Village that would materially or adversely affect:
 - (i) The ability of the Developer to proceed with the construction of the Development.
 - (ii) The ability of the Village to perform its obligations under this Agreement.

ARTICLE 6: ENFORCEMENT AND REMEDIES

6.1 Enforcement: Remedies. The Village may enforce or compel the Developer's performance of its obligations under this Agreement, in law or in equity, by suit, action, mandamus, or any other proceeding, including specific performance, and in an action to enforce or compel the Developer's performance of its obligations under this Agreement, the Village shall also have the right to recover its reasonable attorneys' fees and other cost of litigation.

6.2 Notice: Cure. The Village shall give notice to the Developer that it shall have thirty (30) days to cure any default by the Developer.

6.3 Events of Default by the Developer. Subject to Section 6.2, any of the following events or circumstances shall be an event of default by the Developer with respect to this Agreement:

- (a) If any material representation made by the Developer in this Agreement, or in any certificate; notice, demand to the Village; or request made by the Village in connection with any documents, permit applications or license applications shall prove to be untrue or incorrect in any material respect as of the date made.
- (b) Default by the Developer in the performance or breach of any agreement, material covenant, or warranty contained in this Agreement concerning the existence, structure, or financial condition of the Developer.

- (c) The entry of a decree or order for relief by a court having jurisdiction in the premises in respect of the Developer involuntary case under the federal bankruptcy laws, as now or hereafter constituted, or any other applicable federal or state bankruptcy, insolvency, or other similar law, or appointing a receiver, liquidator, assignee, custodian, trustee, sequestrator, or similar official of the Developer for any substantial part of its property, or ordering the winding-up or liquidation of its affairs and the continuance of any such decree or order un-stayed and in effect for a period of 60 consecutive days. There shall be no cure period for this event of default.
 - (d) The commencement by the Developer of a voluntary case under the federal bankruptcy laws, as now or hereafter constituted, or any other applicable federal or state bankruptcy, insolvency, or other similar law, or the consent by the Developer to the appointment of or taking possession, by a receiver, liquidator, assignee, trustee, custodian, sequestrator, or similar official of the Developer or of any substantial part of the Developer's property, or the making by any such entity of any assignment for the benefit of creditors or the failure of the Developer generally to pay such entity's debts as such debts become due or the taking of action by Developer in furtherance of any of the foregoing. There shall be no cure period for this event of default.
- 6.4 Subject to the provisions of this Agreement, in the case of an event of default by the Developer after notice as required by Section 6.2 has been sent, the Village shall have the right to terminate this Agreement and institute such proceedings as may be necessary or desirable in its opinion to cure or remedy such default or breach or to compel specific performance by the Developer of its obligations under this Agreement. In the event of the Developer's failure to cure an event of default, the Developer shall repay the Village all sums paid to it pursuant to this Agreement for Redevelopment Project Costs.
- 6.5 The Developer agrees to indemnify the Village, and all of its elected and appointed officials, officers, employees, agents, representatives, engineers, consultants, and attorneys, against any and all claims that may be asserted at any time against any of such parties in connection with or as a result of (i) Developer's development, construction, maintenance, or use of the Subject Property; or, (ii) the Developer's default under the provisions of this Agreement. Such indemnification obligation, however, shall not extend to claims asserted against the Village or any of the aforesaid parties in connection with or as a result of any act, omission, negligence or misconduct of the Village or any of the aforesaid parties. If Developer shall commit an event of default and the Village should employ an attorney or attorneys or incur other expenses for the collection of the payments due under this Agreement or the enforcement of performance or observance of any obligation or agreement on the part of the Developer herein contained, Developer, on the Village's demand, shall pay to the Village the reasonable fees of such attorneys and such other reasonable expenses so incurred by the Village.

ARTICLE 7: GENERAL PROVISIONS

- 7.1 Maintain Improvements in Good and Clean Condition:
- (a) The Developer shall maintain the Subject Property in reasonably good and clean condition at all times during the construction of the Project by the Developer at the Subject Property, which shall include promptly removing all mud, dirt, and debris that is deposited on any street, sidewalk, or other public property in or adjacent to the Subject Property by the Developer or any agent of or contractor hired by, or on behalf

of the Developer and repair any damage to any public property that may be caused by the activities of the Developer or any agent of or contractor hired by, or on behalf of, the Developer.

- (b) The Developer covenants and agrees to maintain the Subject Property in accordance with all applicable ordinances of the Village and to operate the Business in accordance with the ordinances of the Village and the laws of the State of Illinois and the United States.

7.2 Liability and Indemnity of Village.

- (a) No liability for Village Review. The Developer acknowledges and agrees that (i) the Village is not, and shall not be, in any way liable for any damages or injuries that may be sustained as the result of the Village's review and approval of any plans or improvements or as a result of the issuance of any approvals, permits, certificates, or acceptances for the development or use of any portion of the Subject Property or the improvements and (ii) the Village's review and approval of any plans and the issuance of any approvals, permits, certificates, or acceptances does not, and shall not, in any way be deemed to insure the Developer, or any of its successors, assigns, tenants, or licensees, or any third party, against violations or damage or injury of any kind at any time.
- (b) Hold Harmless and Indemnification. The Developer shall hold harmless the Village, and all of its elected and appointed officials, employees, agents, representatives, engineers, consultants, and attorneys from any and all claims that may asserted at any time against any of such parties in connection with (i) the Village's review and approval of any plans or improvements or (ii) the Village's issuance of any approval, permit or certificate. The foregoing provision, however, shall not apply to claims made against the Village as a result of a Village event of default under this Agreement, claims that are made against the Village that relate to one or more of the Village's representations, warranties, or covenants under Article 3 and claims that the Village, either pursuant to the terms of this Agreement or otherwise explicitly has agreed to assume.
- (c) Defense Expenses. The Developer shall pay all expenses, including legal fees and administrative expenses, incurred by the Village in defending itself with regard to any and all of the claims identified in the first sentence of Subsection (b) above.

7.3 Force Majeure. Time is of the essence of this Agreement, provided, however, a party shall not be deemed in material breach of this Agreement with respect to any of its obligations under this Agreement on such party's part to be performed if such party fails to timely perform the same and such failure is due in whole or in part to any strike, lock-out, labor trouble (whether legal or illegal), civil disorder, weather conditions, failure or interruptions of power, restrictive governmental laws and regulations, condemnations, riots, insurrections, acts of terrorism, war, fuel shortages, accidents, casualties, floods, earthquakes, fires, acts of Gods, restrictions, freight embargoes, acts caused directly or indirectly by the other party (or the other party's agents, employees or invitees) or similar causes beyond the reasonable control of such party ("Force Majeure"). If one of the foregoing events shall occur or either party shall claim that such an event shall have occurred, the party to whom such claim is made shall investigate same and consult with the party making such claim regarding the same and the party to whom such claim is made shall grant any extension for the performance of the unsatisfied obligation equal to the period of the delay, which period shall commence to run from the time of the commencement of the Force Majeure; provided that the failure of performance was reasonably caused by such Force Majeure.

7.4 The Developer covenants and agrees to pay, when due, all taxes, fees and fines including real estate taxes as assessed upon the Subject Property.

ARTICLE 8. TERM

Term. Unless terminated pursuant to Article 6 of the Original Agreement, this Agreement shall be in full force on the Effective Date and terminate upon the first to occur: (i) receipt by the Developer of \$400,000 for redevelopment costs; or, (ii) December 31, 2030.

ARTICLE 9. NOTICES

Notices. All notices and other communications in connection with this Agreement shall be in writing and shall be deemed delivered to the addressee thereof (a) when delivered in person on a business day at the address set forth below, or (b) on the third business day after being deposited in any main or branch United States post office, for delivery by properly addressed, postage prepaid, certified or registered mail, return receipt requested, at the address set forth below, or (c) by facsimile or email transmission, when transmitted to either the facsimile telephone number or email address set forth below, when actually received.

Notices and communications to Developer shall be addressed to, and delivered at, the following addresses:

with a copy to:

120 Main Dundee, LLC
128 West Main Street
West Dundee, Illinois 60118
Attn: Andrew Burns

Notices and communications to the Village shall be addressed to and delivered at these addresses:

with a copy to:

Village of West Dundee
102 South 2nd Street
West Dundee, Illinois 60118

Kathleen Field Orr
2024 Hickory Road, Suite 205
Homewood, Illinois 60430

By notice complying with the requirements of this Section, each party shall have the right to change the address or addressee, or both, for all future notices and communications to such party, but no notice of a change of address or addressee shall be effective until actually received.

ARTICLE 10. IN GENERAL

10.1 Amendments and Waiver. No modification, addition, deletion, revision, alteration, or other change to this Agreement shall be effective unless and until the change is reduced to writing and executed and delivered by the Village and the Developer. No term or condition of this Agreement shall be deemed waived by any party unless the term or condition to be waived, the circumstances giving rise to the waiver and, where applicable, the conditions and limitations on the waiver are set forth specifically in a duly authorized and written waiver of such party. No waiver by any party of any term or condition of this Agreement shall be deemed or construed as a waiver of any other term or condition of this Agreement, nor shall waiver of any breach be deemed to constitute a waiver of any subsequent breach whether of the same or different provisions of this Agreement.

10.2 Assignment. This Agreement may not be assigned, in whole or in part, by the Developer without the prior written consent of the Village, which consent shall not be unreasonably

withheld or delayed. In the event of the approval of an assignment of this Agreement, in whole or in part by the Village, all obligations and liabilities of the Developer hereunder so assigned shall become obligations and liabilities of the assignee (with the Developer being released therefrom) but only upon receipt by the Village of the written acknowledgement and acceptance thereof by the assignee. Notwithstanding the provisions of this Section 10.2 and Section 10.3, the Developer shall have the right to transfer all of its obligations and liabilities under this Agreement and the Subject Property without the prior written consent of the Village to a new Illinois limited liability company, authorized to do business in Illinois in which the Developer (or an entity majority owned or controlled by the Developer) (x) holds a majority interest, or (y) is the manager or managing member, and provided that the Developer promptly provides the Village with copies of the certificate of formation thereof filed in Illinois and the operating company agreement thereof evidencing compliance with the foregoing.

10.3 Conveyance. The Subject Property may not be conveyed, sold, gifted or transferred to any person, company, corporation, organization, whether or not it is a not-for-profit or any other entity, in whole or in part, without the prior written consent of the Village, which consent shall not be unreasonably withheld or delayed. The foregoing transfer restrictions shall not apply to dedications of portions of the Subject Property to the Village or the granting of easements in connection with the development of the Project or the use or operation of the Project or the leasing of the Project. In the interest of clarity, a consent by the Village under this Section 10.3 shall also constitute a consent by the Village to the resulting assignment pursuant to Section 10.2 and vice versa.

10.4. Entire Agreement. This Agreement shall constitute the entire agreement of the Parties; all prior agreements between the Parties, whether written or oral, are merged into this Agreement and shall be of no force and effect.

10.5 Counterparts. This Agreement is to be executed in two or more counterparts, each of which shall be deemed an original but all of which shall constitute the same instrument.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Village of West Dundee, an Illinois municipal corporation

By:



Christopher Nelson
Village President

Attest:


Village Clerk

120 Main Dundee, LLC, a limited liability company of the State of Illinois

By:



Managing Partner

TO: President Nelson and Village Board of Trustees (VBT)

FROM: Timothy J. Scott, AICP, CNU-A
Director of Economic Development, Planning, Zoning & Urban Design
Kim Tibbetts – Village Planner  

DATE: August 5, 2024

SUBJECT: 305 Oregon Avenue (The Mansion Bed & Breakfast) – Consideration of an Ordinance Approving a Special Use Permit to allow (1) Single Room Occupancy Units and (2) Apartments on the ground floor within the R-B Zoning District

INTRODUCTION

At its March 25, 2024 meeting, the Planning & Zoning Commission (PZC) conducted a Public Hearing to consider the petition of Mr. Steve Fang, seeking a Special Use Permit to allow (1) Single Room Occupancy (SRO) Units and (2) Apartments on the ground floor at 305 Oregon Avenue, within the R-B Zoning District.

Prior to that consideration, the Board will recall approving an amendment to the West Dundee Municipal Code that added SROs and ground floor apartments as potential special uses within the R-B District, adopted via Ordinance 2024-04 on February 19, 2024.

BACKGROUND

Public Hearing: Attached please find a copy of the approved March 25, 2024 PZC Meeting Minutes, which offer a summary of public comments, questions and discussions. At the conclusion of the Public Hearing, PZC members voted unanimously to recommend approval of the special use request.

Based on the Public Hearing, a condition was added to PZC's recommendation to limit the number of SRO units and ground floor apartments to no more than are currently present, in an effort to preserve the existing density and prohibit intensification of use.

Comments were received from a neighboring property owner both before and after the Public Hearing requesting that the Village require a privacy fence along the site's rear property line. Following discussion, PZC did not include this within their recommendation for approval of the special use request. Reservations were expressed in both public comments and PZC discussion regarding extension of the proposed special use to a future operator without the benefit of additional review.

Location / Site Context: The Mansion, as it is known today, is situated just outside of the Downtown Business District and is surrounded by residentially zoned properties (single family residences and a funeral home), with two on-site parking lots, accessible from Oregon Avenue and Third Street.

The existing structure was initially constructed shortly after 1900 as a single-family home and is a significant contributing property to the Dundee Township Historic District due to both its history and its architecture. While modifications have been made to the structure over time, including connecting the original carriage house to the main house, the building has been largely preserved and stands as something of a time capsule both inside and out.

Preservation: Of keen interest to the Village and community is the preservation of this stately edifice. As market demands change over time, flexibility of use within the context of the residential neighborhood and nearby downtown district is needed to facilitate the continued active operation and preservation of the property.

Potential Reuse: While the site was being marketed for sale, a variety of inquiries were received regarding reuse. Inquiries have varied from maintaining the current operations with little to no physical improvements, restoring the main house as a single-family residence while maintaining apartments in the carriage house, redeveloping the interior to accommodate modern apartments, an assisted living facility (reportedly a previous use of the building), and a return to a more traditional bed and breakfast establishment, perhaps with a small eatery. While each of these potential uses could pose challenges, thus far, none of these inquiries have led to detailed exploration to date.

Current Licensing: The property has been licensed to operate as a Bed & Breakfast, having 8 total rooms or units. The units offer a range of amenities, including shared cooking or bathroom facilities in some cases. Per the municipal code, Bed & Breakfast units may be rented for a maximum stay of 15 consecutive days.

The site also includes three long term apartments (with a total of 5 bedrooms) in the carriage house, with one 2-bedroom and one 1-bedroom apartment on the ground floor and one 2-bedroom apartment on the second floor, each with a typical lease duration of 12 months or more. While the apartments have been in existence for many years, the R-B zoning regulations did not allow ground floor apartments until the adoption of Ordinance 2024-04, adding this as a potential special use.

Current Operations: The 8 aforementioned Bed & Breakfast units are currently being utilized for stays of more than 31 days. These accommodations do not meet the standards of a full dwelling unit and the lengths of stay exceed that of a Bed & Breakfast unit or a Short Term Rental, therefore these 8 units are considered Single Room Occupancy units by definition.

The petitioner is seeking a special use permit to align the SRO and ground floor apartment operations with the underlying R-B zoning.

The R-B zoning and Bed & Breakfast license provisions allow for the units in question to be rented for 15 consecutive days or less. The requested Special Use Permit would allow the same existing units to be rented for 31 consecutive days or more. Length of stay is the only change proposed.

Outside Review Not Supported: As a refresher, at the VBT meeting of July 15th the topic of outside review by a third-party with professional expertise in historic preservation and adaptive reuse was discussed, but the potential endeavor did not receive enough formal support to authorize a request for proposals for such consultative services.

RECOMMENDATION

Rental Business Model: Broadly characterized, this residentially-focused approach to The Mansion has not yielded complaints from the neighborhood, particularly with respect to noise or overflowing parking, or generated a heightened volume of calls for public safety services.

In addition to contributing to neighborhood stability, the current business model has reportedly provided a much-needed level of economic/financial certainty and predictability which in turn generates proceeds that can be used to maintain this large, complex, and resource-intensive historic building and property.

Consideration of Potential Conditions to Special Use Permit: If there were VBT interest in granting the petitioners' requested Special Use Permit for SRO and ground floor apartments, the following considerations and potential conditions could be incorporated:

- (1) Approval of a Special Use Permit to allow for (a) 8 Single Room Occupancy (SRO) units, which would require rental for 31 days or more, and (b) 2 ground floor apartments for long-term rental. The 1 second-floor apartment would remain as authorized under the current zoning.
- (2) As a condition, the Village could remove the previously agreed to Bed & Breakfast license provisions allowing for outdoor events, thereby eliminating the most intensive use of the property previously afforded. The removal of these license provisions would be a trade-off to the allowance of the longer-term rental of the units on the property and would lessen the potential impact on the neighborhood.
- (3) As recommended by PZC, the Special Use Permit may require that the structure not be further densified beyond the 11 total units currently present [eight shorter-duration units and three traditional apartments].
- (4) Given what has been expressed as comfort with the current owner's operations but recognizing the inability to project that same level of responsible stewardship from a future owner, the VBT may wish to stipulate that any future owner present their business plan to the Village Board in order to obtain licensing, whether the proposed business model may include SRO, ground floor apartments or other uses not afforded by right within the R-B zoning district.

As noted above, the PZC unanimously supported making a recommendation to the Village Board to approve a Special Use Permit to allow up to 8 SRO units and up to 2 ground-level apartments, identifying the requested special uses as appropriate for their setting and compatible with the surrounding residential properties, particularly based on the current/recent operation.

If members of the Village Board concur with the PZC's recommendation, the following motion would be appropriate.

MOTION: Move to Approve an Ordinance Issuing a Special Use Permit to Allow Eight (8) Single Room Occupancy (SRO) Units and Two (2) Apartments on the Ground Floor at 305 Oregon Avenue, currently known as The Mansion Bed and Breakfast, subject to the following conditions:

- 1) The previously afforded Bed & Breakfast license provisions allowing outdoor events shall no longer be authorized; and,
- 2) The total number of units within the structure may not increase beyond the 11 total units currently on the site, which include 8 shorter-duration units and 3 traditional apartments; and,
- 3) Any future owner seeking to continue SRO and ground floor apartment uses would need to seek Village Board licensing approval prior to transfer of the property's ownership.

Should you have any questions, please don't hesitate to contact us in advance of the meeting.

cc: Steve Fang, The Mansion Bed & Breakfast
Joseph A. Cavallaro, Village Manager

Attachments:

- Ordinance Issuing a Special Use Permit to Allow SRO Units and Apartments on the Ground Floor at 305 Oregon Avenue
- Minutes of March 25, 2024 PZC Meeting
- Public Hearing Packet for March 25, 2024 PZC Meeting

ORDINANCE 2024-__

**AN ORDINANCE ISSUING A SPECIAL USE PERMIT TO ALLOW
SINGLE ROOM OCCUPANCY UNITS AND APARTMENTS ON THE GROUND FLOOR
AT 305 OREGON AVENUE**

WHEREAS, the Village of West Dundee, Kane County, Illinois (the "Village"), is a home rule municipality pursuant to Article VII, Section 6(a) of the Constitution of the State of Illinois of 1970 and, as such, may exercise any power and perform any function pertaining to its government and affairs; and,

WHEREAS, the Village of West Dundee has received a petition from Mr. Steve Fang, owner of 305 Oregon Ave, requesting a special use permit for single room occupancy units and apartments on the ground floor; and,

WHEREAS, a Public Hearing was held by the West Dundee Planning and Zoning Commission on March 25, 2024, after due notice in the manner provided by law; and,

WHEREAS, the West Dundee Planning and Zoning Commission, after deliberation, has made a report and recommended granting of the petitioner's requests; and,

WHEREAS, the Village Board has considered the recommendation of the West Dundee Planning and Zoning Commission based upon the findings of fact resulting from the evidence presented at the public hearing, comments and concerns shared by area residents, and subsequent Board deliberations.

NOW THEREFORE BE IT ORDAINED BY THE PRESIDENT AND BOARD OF TRUSTEES, VILLAGE OF WEST DUNDEE, KANE COUNTY, ILLINOIS, as follows:

Section 1: That a Special Use Permit be and is hereby granted to Mr. Steve Fang and Ms. Eda Tomasone permitting single room occupancy (SRO) units and ground floor apartments on the following described parcel of property:

LOTS 1, 2, & 3, THE EAST HALF OF LOT 4 AND NORTH 18 FT OF LOTS 8, 9, & 10 IN BLOCK 8 OF JOSEPH RUSSELL'S ADDITION TO DUNDEE, IN THE VILLAGE OF WEST DUNDEE, COUNTY OF KANE, ILLINOIS (PIN: 03-22-485-002)

Said property is commonly described as: 305 Oregon Avenue, West Dundee, IL, 60118.

Section 2: That all requirements set forth in the Zoning Ordinance of the Village of West Dundee, as would be required by any owner of property zoned in the same manner as the Subject Property shall be complied with, except as otherwise provided in this Ordinance.

Section 3: The findings and recommendations of the West Dundee Planning and Zoning Commission on the question of granting the requested approvals for the Subject Property are hereby accepted and the approvals are granted subject to the following conditions for approval:

1. The previously afforded Bed & Breakfast license provisions allowing outdoor events shall no longer be authorized; and,
2. The total number of units within the structure may not increase beyond the 11 total units currently on the site, which include 8 shorter-duration units and 3 traditional apartments; and,

- 3. Any future owner seeking to continue SRO and ground floor apartment uses would need to obtain Village Board licensing approval prior to transfer of the property’s ownership; and,
- 4. Compliance with documents as submitted with the Planning and Zoning Application; and,
- 5. Compliance with all other applicable Village codes and ordinances.

Section 4: If any section, paragraph, subdivision, clause, sentence or provision of this Ordinance shall be adjudged by any Court of competent jurisdiction to be invalid, such judgment shall not affect, impair, invalidate or nullify the remainder thereof, which remainder shall remain and continue in full force and effect.

Section 5: All ordinances or parts of ordinances in conflict herewith are hereby repealed to the extent of such conflict.

Section 6: That this Ordinance shall be in full force and effect upon its passage, approval, and publication in pamphlet form which publication is hereby authorized as provided by law.

PASSED by the Board of Trustees of the Village of West Dundee, Kane County, Illinois, and approved by the President of said Village this 5th day of August, 2024.

AYES: _____
NAYS: _____
ABSENT: _____

ATTEST:

Mary Jo Pape
Village Clerk

Christopher Nelson
Village President

Passed: _____
Approved: _____
Published: _____

Prepared by:
Village of West Dundee
Economic Development Department
100 Carrington Drive
West Dundee, IL 60118

PLANNING AND ZONING COMMISSION MEETING
Village Hall, 102 S. Second Street

March 25, 2024 – 7:30 pm
Village of West Dundee

I. CALL TO ORDER:

The Planning & Zoning Commission (PZC) meeting was called to order at 7:30 pm by Chairman Martin.

II. ROLL CALL:

Present were Chairman Bob Martin, and Commissioners John Seaton, Brian Slovacek, Andrew Wieteska, Ron Meyer, and Rick Magsamen.

Also in attendance was Director of Economic Development, Planning, Zoning and Urban Design Timothy Scott, Village Planner Kim Tibbetts, and eight (8) individuals in the audience, including Mr. Steve Fang, applicant on behalf of Petition 2024-05.

III. PLEDGE OF ALLEGIANCE:

Commissioner Rick Magsamen led those in attendance in the Pledge of Allegiance.

IV. APPROVAL OF AGENDA:

MOTION: Moved by Commissioner Magsamen and seconded by Commissioner Wieteska to approve the agenda as presented. Upon roll call, the motion was approved.

AYES: Commissioners Magsamen, Seaton, Wieteska, Slovacek, and Meyer, and Chairman Martin

NAYS: None

ABSENT: None

V. QUESTIONS FROM THE AUDIENCE: There were none.

VI. NEW BUSINESS:

A. Petition 2024-05: Consideration of a Special Use Permit pursuant to Section 10-5A: R-B Residential-Business District of the West Dundee Municipal Code to allow (1) Single Room Occupancy Units and (2) Apartments on the ground floor, at 305 Oregon Avenue (The Mansion Bed & Breakfast)

MOTION: Moved by Commissioner Magsamen and seconded by Commissioner Seaton to open the Public Hearing regarding Planning & Zoning Petition 2024-05. Upon roll call, motion was approved.

AYES: Commissioners Magsamen, Seaton, Wieteska, Slovacek, and Meyer, and Chairman Martin

NAYS: None

ABSENT: None

The Public Hearing opened at 7:32 pm.

Chairman Martin opened the floor to Director Scott to introduce the petition. Village Planner Tibbetts confirmed that notices regarding this Public Hearing were published according to law.

Director Scott outlined the recent Municipal Code text amendment recommended by PZC and approved by the Village Board of Trustees (VBT) via Ordinance 2024-04, which included the addition

of single room occupancy (SRO) units and ground floor apartments as special uses within the R-B Zoning District. He noted that a review of the property in question was the impetus for this text amendment, to align the property's current use with the underlying zoning regulations and facilitate the continued active use and economic viability (and, in turn, preservation) of this significant historic property.

Director Scott noted that the special uses requested reflect the current use of the property. He advised that the business model in place at the property has evolved with market demands over the past few years to facilitate longer guest stays. With no changes to the building's layout, the portions of the facility which previously operated as a Bed and Breakfast (maximum length of stay of 15 days by code), have transformed to offering single room occupancy units for a minimum stay of three weeks. It was noted that, while it was only recently brought to staff's attention, the ground floor apartments located in the south end of the building have been in place for many years. He further noted that there have not been excessive calls for service to the property in concert with the current uses.

Director Scott called PZC's attention to feedback received in advance of the meeting from two neighboring property owners: Mr. Doug Bober of 310 Liberty Street, in support of the request, and Mrs. Barbara Haines of 314 Liberty Street, requesting consideration be given to requiring a privacy fence to screen the property's parking lot from its neighbors.

Chairman Martin opened the floor for public comments.

Planner Tibbetts swore in Mr. Steve Fang (petitioner) and Ms. Eda Tomasone of 418 Oregon Avenue, owners of The Mansion. Chairman Martin inquired whether the facility no longer operates as a Bed and Breakfast. Mr. Fang advised that, while the property is still able to accommodate Bed and Breakfast guests upon request / based on availability, demand for this type of lodging has become uncommon, with interest in extended stays (SROs) prevalent. Director Scott noted that Bed and Breakfast lodging remains a permitted use within the zoning district, with length of stay being the primary difference between the two.

Commissioner Seaton noted that the minimum length of stay proposed for SROs is 31 days (to differentiate SROs from both Bed and Breakfast and Short Term Rental lodging units), whereas Mr. Fang previously stated their policy is for a minimum stay of 3 weeks (21 days). Mr. Fang indicated that most stay longer, and he and Ms. Tomasone prefer the stability of extended stay guests, hence a 31 day minimum would be agreeable.

Commissioner Magsamen inquired whether the addition of a privacy fence had been broached prior to the special use request, to which Mr. Fang indicated it had not. He stated that the rear property line along the south/southwest edge of the property contains a chicken wire and chain link barrier, with a fence of varying heights present on the neighboring property.

Planner Tibbetts swore in Mr. Michael Dewey of 411 Oregon Avenue, who spoke in support of the request. Mr. Dewey advised that he has lived down the street from the property for 34 years with no concerns about its operation. He stated his feeling that long term tenants at the property are a part of the community and participate in supporting the local economy. He stated his support for the operation of the site as it is currently managed to support its continued solvency.

Planner Tibbetts swore in Ms. Bernadette Stoecker of 219 S. Third Street, who spoke in opposition of the request. Ms. Stoecker noted that she and her spouse have lived across the street from the property for approximately 48 years, recalling its varied uses and ownership over that time. She stated that she was opposed to property's conversion to a Bed and Breakfast and is opposed to the proposed special use, stating concerns regarding noise, vehicular traffic in and out of the site, and transiency. She stated her belief that future owners would have to request the same special use to continue operations in this

manner, however she feels the use of the property for multiple dwelling or lodging units is not in keeping with the neighborhood and should be scrutinized more closely.

Planner Tibbetts swore in Mr. Larry Wilbrandt of 218 Oregon Avenue. Mr. Wilbrandt requested clarification as to the number of units and whether the number of allowable units will be specified to avoid intensification.

Mr. Fang replied that there are 8 SRO units and 3 apartments, which they feel is the maximum number of units for the facility, and they do not intend to add any more. He noted that tenants are not allowed guests, which deters potentially disruptive behavior. He stated that credit checks and references are reviewed for SRO tenants, same as for 12-month leases for the apartment units. Director Scott noted that to amend the unit count at the property would require significant renovation, which would require a building permit and review. He noted that the main house has been largely preserved in historic form with an updated sprinkler system having been a recent modification. He added that the Business Registration process offers an additional layer of oversight.

Mr. Wilbrandt inquired whether the special use would be issued to the applicant or remain in place for future owners. Director Scott noted that the West Dundee municipal code is currently silent on this question, but that recent policy has been for an approved special use to run with the land and remain in place for future owners.

Mr. Wilbrandt added that he is concerned about guests using the property's patios/outdoor space for recreation.

Chairman Martin inquired whether leases are executed with SRO tenants. Ms. Tomasone stated that leases are only executed for the apartments. Director Scott reiterated the differences between Bed and Breakfast units, short term rentals, SRO units and apartments, adding that should this special use request be approved, the site could contain Bed and Breakfast units, SRO units and apartments, including on the first floor.

Planner Tibbetts swore in Mr. Dan Witowski of 311 Liberty Street, who spoke in opposition to the request. Mr. Witowski advised that his family purchased their home 2 years ago. He noted that he was surprised and offput by hearing that the subject property contains 11 dwelling or lodging units. He stated that his neighbors with young children do not favor a multi-unit living facility near their homes, and that he would support placing a limit on occupancy.

Seeing no additional comments, Chairman Martin requested a motion to adjourn the Public Hearing.

MOTION: Moved by Commissioner Slovacek and seconded by Commissioner Magsamen to close the Public Hearing regarding Planning and Zoning Petition 2024-05. Upon roll call, motion was approved.

AYES: Commissioners Slovacek, Wieteska, Meyer, Magsamen, and Seaton, and Chairman Martin

NAYS: None

ABSENT: None

The public hearing closed at 8:12 pm.

Commissioner Magsamen asked if there have been calls for service to the Police Department from the subject property. Director Scott replied that the Economic Development Department has heard no complaints, therefore it is fair to state that there have not been excessive calls for service. He added that annual life/safety inspections are completed on the property.

Commissioner Slovacek inquired as to what recourse the Village would have should a future owner operate the facility in problematic manner. Director Scott noted that business and property rental registrations are required for operation of the site in its current and requested form, and either or both could potentially be revoked should the facility be operated in a manner that does not comport with the municipal code.

Commissioner Seaton pointed out that there are no restrictions on renting out single family residences, and as such, rental properties are present in each residential neighborhood of the Village.

Chairman Martin inquired whether Mr. Fang intends to make any changes to the fencing or screening of the parking lots at the subject site, to which Mr. Fang stated that he does not. Director Scott cited the privacy wall along the east border of Starbucks/Chipotle as an example of a solid buffer being required for new commercial development adjacent to residences, noting the difference in circumstances between it and the subject site which is residential in character and developed over a century ago. It was noted that neighbors seeking additional privacy may also elect to erect a fence to screen their view of the property.

Commissioner Seaton noted that, in terms of placing a limitation on the number of total residential units on the site, apartments above the first floor are permitted by right and therefore would be outside of the scope of the special use request. PZC could, however, condition their recommendation on limiting the number of SROs and ground floor apartments (currently 8 and 2, respectively). It was noted that conditions of “compliance with documents as submitted with the Planning and Zoning Application” and “compliance with all other applicable Village codes and ordinances” would allow for revocation of a special use permit should the property’s operation fail to conform to any approved special use or become otherwise non-compliant.

MOTION: Moved by Commissioner Seaton and seconded by Commissioner Magsamen to recommend to the Village President and Board of Trustees approval of a Special Use Permit for a (1) Single Room Occupancy Units and (2) Apartments on the ground floor within the R-B Zoning District for the existing structure located at 305 Oregon Avenue (The Mansion Bed & Breakfast), with the following conditions:

1. The unit count shall not be intensified beyond a maximum of eight (8) single room occupancy units and two (2) ground floor apartments;
2. Compliance with documents as submitted with the Planning and Zoning Application; and,
3. Compliance with all other applicable Village codes and ordinances; and,

Upon roll call, motion was approved.

AYES: Commissioners Seaton, Slovacek, Wieteska, Meyer, and Magsamen, and Chairman Martin

NAYS: None

ABSENT: None

VIII. CHAIRPERSON’S REPORT: There was none.

VII. REPORTS & QUESTIONS FROM COMMISSIONERS: There were none.

VIII. STAFF REPORTS:

Director Scott advised that the pedestrian facilities discussed at the January PZC Meeting in reference to Lennar’s proposed Harvest View subdivision have been incorporated into the plan. This proposed

development is expected to come back before PZC for final review in April or May. He added that Lennar has proposed a similar development along Huntley Road east of Tartan's Crossing for which a Public Hearing for preliminary PZC review is anticipated in April.

IX. ADJOURNMENT:

MOTION: Moved by Commissioner Magsamen and seconded by Commissioner Meyer to adjourn the Planning and Zoning Commission meeting. Motion was approved by acclamation.

The Planning and Zoning Commission meeting adjourned at 8:28 pm.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Kim Tibbetts", written in a cursive style.

Kim Tibbetts
Village Planner

Village of
West Dundee

TO: Chairman Martin and Members of the Planning and Zoning Commission (PZC)

FROM: Timothy J. Scott, AICP, CNU-A
Director of Economic Development, Planning, Zoning & Urban Design
Kim Tibbetts – Village Planner 

DATE: March 25, 2024

SUBJECT: PZC Petition 2024-05: Consideration of a Special Use Permit to allow (1) Single Room Occupancy Units and (2) Apartments on the ground floor within the R-B Zoning District, at 305 Oregon Avenue (The Mansion Bed & Breakfast)

INTRODUCTION:

As Commissioners will recall, in January of this year PZC Petition 2024-01 was considered and recommended for approval (and subsequently approved via Ordinance 2024-04, copy attached), with the goal of updating permitted and special uses within the R-B Residential-Business Zoning District. At the time, it was noted that the discussion was raised in reference to the operation of The Mansion Bed and Breakfast.

As a result of the additions of (1) Single Use Occupancy (SRO) Units and (2) Apartments on the ground floor as special uses for the R-B District, Mr. Steve Fang, owner of the Mansion, has now applied for a special use permit to potentially allow these specific types of residential utilizations within the existing historic structure located at 305 Oregon Avenue.

Notices regarding this Public Hearing have been published in the Daily Herald and sent via certified mail to all property owners within 250', as prescribed by law.

BACKGROUND:

Current Operations: To refresh your memory, the site includes three long term apartments (with a total of 5 bedrooms) in the original carriage house on the south end of the property, with one 2-bedroom and one 1-bedroom apartment on the ground floor and one 2-bedroom apartment on the second floor.

SRO units (eight in total) exist throughout the balance of the structure, in three configurations based on the accommodations offered (further defined and illustrated within the attached floor plans):

Four Tier 1 SRO Units: Private sleeping quarters and private bath, as well as access to shared cooking facilities and other common area (the former Bed & Breakfast units).

One Tier 2 SRO Unit: Private sleeping quarters and private bath, no access to cooking facilities.

Three Tier 3 SRO Units: Private sleeping quarters with a sink, access to a shared full bathroom, and no access to cooking facilities.

Public Comment: In response to notices regarding the Public Hearing, staff received two inquiries, from the property owners immediately south of the subject site along a common rear property line.

Mr. Doug Bober inquired via email whether the special use request represents any substantive change in the way the property is used, to which staff advised that it would not, rather it would bring the property's current use into compliance with the zoning code. Mr. Bober expressed support for the special use permit. A copy of his comments are included herein.

Ms. Barb Haines inquired via phone. Ms. Haines sought an understanding of how the property is being used, based on observation regarding an increase in the number of vehicles regularly present at the site. Staff described the property's current use and its evolution over time, as well as the recent zoning code amendments. Ms. Haines indicated a desire for a privacy fence to be installed along the rear property line as a visual buffer between her single family home and the parking lot situated on the west side of the Mansion. A small side yard is present on the subject site between the parking lot and the rear property line, with a 3' tall chain link fence at the rear property line.

Impact on Operations: The one adjustment that Mr. Fang may need to make regarding the site's operation is not one of use, but length of stay. During the January Public Hearing regarding R-B zoning amendments, Mr. Fang indicated that a minimum 3-week stay is currently required for tenants within the SRO units. In response to the lengths of stay that define other types of lodging (*maximum* of 30 consecutive days for Short Term Rental guests and 15 for Bed and Breakfast guests), the *minimum* length of stay for an SRO is 31 days. As such, the rental of SROs within the subject site shall be for no less than 31 consecutive days.

Special Use Standards: Special use review is necessary by ordinance, and approval requires a minimum of four (4) concurring votes based upon positive findings of fact for the proposed use.

1. *The establishment, maintenance or operation of the special use will not be detrimental to or endanger the public health, safety, morals, comfort or general welfare.*

As the special uses requested reflect established uses at the subject site, it is not expected that the issuance of special use permit would be detrimental or endanger the public.

2. *The special use will not be injurious to the use and enjoyment of other property in the immediate vicinity for the purposes already permitted nor substantially diminishes property values within the neighborhood.*

The special use reflects the current use of the property and is residential in character. As such, it is not anticipated to be injurious to the use and enjoyment of other property in the immediate vicinity, nor to impact property values.

3. *The establishment of the special use will not impede the normal and orderly development and improvement of the surrounding property for uses permitted in the district.*

The establishment of the special use would not impede development of nearby property for uses permitted by zoning district.

4. *Adequate utilities, access roads, drainage or necessary facilities have been or will be provided.*

The subject site is adequately served in these capacities.

5. *Adequate measures have been or will be taken to provide ingress and egress to design as to minimize traffic congestion in the public streets.*

The existing property has two parking lots, with access from Oregon Avenue (approximately 7-9 parking spaces) and Third Street (approximately 6 parking spaces). With a bedroom count of 13, and a limit of one occupant in 8 of the 13 bedrooms, the site appears to be adequately parked. In addition, Mr. Fang indicated at the January 29 Public Hearing that there is a policy in place that limits tenants' allowance for guests. The proposed special use is not expected to increase neighborhood traffic or congestion.

6. *The special use shall, in all other respects, conform to the applicable regulations of the district in which it is located, except as such regulations may, in each instance, be modified by the Village President and Board of Trustees.*

The special use would be required to conform with the applicable regulations of the R-B Residential-Business District.

Findings of Fact: Staff offers the following findings of fact in consideration of the special use request:

- “Apartments, ground floor” and “Single room occupancy units” are designated as a special use in the R-B Residential-Business District.
- The requested special uses are reflective of the current use of the property, which have not generated complaints or excessive calls for service.
- Preservation of this significant historic structure requires flexibility in use to ensure its long term viability.

Staff is in support of the request, which is anticipated to facilitate the continued maintenance and active use of this significant historic structure located just beyond the Village's downtown district. The operation of the site under current ownership has been unobtrusive and peaceful, with no known complaints from neighboring property owners.

RECOMMENDATION:

If members of the Planning and Zoning Commission were to support the applicant's request to maintain two apartments on the ground floor and eight single room occupancy units within the existing structure, the following motion would be appropriate.

MOTION: Move to recommend to the Village President and Board of Trustees approval of a Special Use Permit for a (1) Single Room Occupancy Units and (2) Apartments on the ground floor within the R-B Zoning District for the existing structure located at 305 Oregon Avenue (The Mansion Bed & Breakfast), with the following conditions:

1. Compliance with documents as submitted with the Planning and Zoning Application; and,
2. Compliance with all other applicable Village codes and ordinances; and,

Should you have any questions, please don't hesitate to contact us in advance of the meeting.

CC: Steve Fang, The Mansion Bed & Breakfast
Joseph A. Cavallaro, Village Manager

Attachments:

- Minutes of January 29, 2024 PZC Meeting
- Ordinance 2024-04, Amending Title 10-Zoning Regulations, Addressing R-B Zoning District Regulations and Single Room Occupancies, adopted 2/19/2024
- PZC Application with Owner's Statement, dated 3/4/2024
- Floor Plans (4) with Uses Indicated
- Email from Mr. Doug Bober in support of requested special use, dated 3/15/2024

PLANNING AND ZONING COMMISSION MEETING
Village Hall, 102 S. Second Street

January 29, 2024 – 7:30 pm
Village of West Dundee

I. CALL TO ORDER:

The Planning & Zoning Commission (PZC) meeting was called to order at 7:33 pm by Chairman Martin.

II. ROLL CALL:

Present were Chairman Bob Martin, and Commissioners John Seaton, Brian Slovacek, Andrew Wieteska, Ron Meyer, and Rick Magsamen.

Also in attendance was Director of Economic Development, Planning, Zoning and Urban Design Timothy Scott, Village Planner Kim Tibbetts, and five (5) individuals in the audience, including Mr. Valentino Ranallo, applicant on behalf of Petition 2024-02.

III. PLEDGE OF ALLEGIANCE:

Chairman Bob Martin led those in attendance in the Pledge of Allegiance.

IV. APPROVAL OF AGENDA:

Commission Magsamen requested that the two items under New Business be reordered such that Petition 2024-02 be considered first and Petition 2024-01 be considered second.

MOTION: Moved by Commissioner Magsamen and seconded by Commissioner Seaton to approve the agenda as amended. Upon roll call, the motion was approved.

AYES: Commissioners Magsamen, Seaton, Wieteska, Slovacek, and Meyer, and Chairman Martin

NAYS: None

ABSENT: None

V. APPROVAL OF MINUTES:

A. September 25, 2023

MOTION: Moved by Commissioner Slovacek and seconded by Commissioner Seaton to approve the Minutes of September 25, 2023. Upon roll call, motion was approved.

AYES: Commissioners Slovacek, Wieteska, Meyer, Magsamen, and Seaton, and Chairman Martin

NAYS: None

ABSENT: None

B. November 27, 2023

MOTION: Moved by Commissioner Slovacek and seconded by Commissioner Wieteska to approve the Minutes of November 27, 2023. Upon roll call, motion was approved.

AYES: Commissioners Slovacek, Wieteska, Meyer, Magsamen, and Seaton, and Chairman Martin

NAYS: None

ABSENT: None

VI. QUESTIONS FROM THE AUDIENCE: There were none.

VII. NEW BUSINESS:

A. Petition 2024-02: Preliminary Plan Review and Consideration of a Request to Rezone Property from R-5 Medium Density Multiple-Family District to R-4 Low Density Multiple-Family District; Variations from Side and Rear Yard Setback Requirements; and a Preliminary Plat of Subdivision, for the Potential Development of Four Duplexes on Approximately 1.7 Acres Located along Strom Drive East of Century Plaza Shopping Center

MOTION: Moved by Commissioner Slovacek and seconded by Commissioner Magsamen to open the Public Hearing regarding Planning and Zoning Petition 2024-02. Upon roll call, motion was approved.

AYES: Commissioners Slovacek, Wieteska, Meyer, Magsamen, and Seaton and Chairman Martin

NAYS: None

ABSENT: None

The Public Hearing opened at 7:37 pm.

Chairman Martin opened the floor to Director Scott to introduce the petition.

Director Scott reported that, after reviewing a variety of options for the site, Mr. Valentino Ranallo, owner of the subject site and developer for the proposed project, has brought forward a development plan for four 1-story duplex buildings with front-loaded 2-car garages.

He noted that the site proposes notable challenges, including a dramatic grade change from front to back and its odd shape due to the curve of the roadway (Strom Drive), which has impacted the financial viability of the site's development and led to the selection of the duplex typology.

Director Scott advised that the physical characteristics of the project are in keeping with R-4 Low Density Multi-Family District regulations, which provides for buildings of between 2 and 6 units. He noted that other duplexes and triplexes along Eichler and Ryan are zoned R-4, and that the individually owned townhomes on Strom and Edwards, as well as the 6-unit apartment buildings along Edwards, while zoned R-5, are also more in keeping with R-4 District regulations. To sync the site's zoning with the characteristics of the proposed development, rezoning of the property from R-5 to R-4 has been recommended and requested.

Director Scott noted that the developer's goal is to sell the units for individual ownership. As such, a 9-lot subdivision of the site has been proposed with each unit on its own lot. A preliminary plat of subdivision has been provided for consideration.

Based on this subdivision, the proposed side yard setback between each pair of attached duplex units is 0'. In addition, a side yard setback of 6' is proposed between each building and between Lots 8 and 9. As such, relief from the R-4 District's required side yard setback of 10' is requested on the east side of Lot 1 and on both sides of Lots 2-8, with between 4-10' of relief per side requested under R-4 regulations.

The required rear yard setback in the R-4 District is 50'. Based on the unconventional shape of the site and the placement of the buildings oriented to the curving street, a rear yard setback variation is requested for Lot 1, with approximately 33' of relief requested under R-4 regulations.

Should rezoning of the property to R-4 not be recommended, the extent of the side and rear yard variations requests would increase, and a request for variations for lot width would also be included.

Director Scott noted that the conditions of the site are preexisting, creating undue hardship.

Village Planner Tibbetts confirmed that notices regarding this Public Hearing were published and distributed according to law.

Chairman Martin opened the floor for questions and discussion by the Commission and applicant.

Planner Tibbetts swore in Mr. Valentino Ranallo, applicant, developer and owner of the subject site. Upon inquiry, Mr. Ranallo confirmed that an HOA would be set up for the site upon development and sale of individual lots.

Commissioner Magsamen pointed to a comment within the preliminary engineering review report provided by the Village's consulting engineer, WBK, as follows: "The proximity of the proposed building on Lot 8, the retaining wall and slope for the stormwater basin are problematic for the existing water main along the west side of Lot 9. It is preferred to keep 10 feet on either side of the water main to be free of structures and graded at a slope to facilitate repairs and replacement." He also pointed to a comment regarding the depth of the proposed detention facility and location of an existing culvert for Sleepy Creek. Commissioner Slovacek noted concern regarding runoff from the impermeable pavement at Century Plaza at the opposite end of the site. Director Scott noted that these items can a motion recommending approval could specifically require satisfactory resolution of these items, in addition to the condition that engineering plans be reviewed and approved.

Chairman Martin inquired if the Village is supportive of the vacation and dedication of the Village owned right-of-way originally intended for a potential southern extension of Edwards Avenue, to facilitate the required detention facilities for the proposed development. Director Scott noted that the subject has been broached, with support having been previously expressed for this potential right-of-way vacation and land dedication. Chairman Martin noted that the land to the south continues to be undeveloped and that future roadway connection seemed unlikely. Director Scott advised that the owner of the undeveloped property to the south inquired about the possibility of requiring a fence at the property line as part of the consideration for the subject proposal. It was noted that no other fences are known to exist along the extensive northern boundary of the undeveloped site.

Chairman Martin asked if any feedback was received from the community. Director Scott no other inquiries or comments were received other than from the property owner to the south.

Commission Slovacek noted that relocation of a fire hydrant would be required based on the proposed plan. Director Scott added that removal of parkway trees would also be necessary and that a plant back strategy would likely be discussed within the Appearance Review Commission's consideration.

Mr. Ranallo noted that all sidewalks along the front of the site would be removed and replaced as part of the development.

Commissioner Seaton expressed concern about the proximity of the retaining wall to the westernmost unit (Lot 1), and regarding the proposed height of the retaining wall in relation to its proximity to the rear building lines.

Seeing no additional comments, Chairman Martin requested a motion to adjourn the Public Hearing.

MOTION: Moved by Commissioner Magsamen and seconded by Commissioner Slovacek to close the Public Hearing regarding Planning and Zoning Petition 2024-02. Upon roll call, motion was approved.

AYES: Commissioners Magsamen, Seaton, Slovacek, Wieteska, and Meyer, and Chairman Martin

NAYS: None

ABSENT: None

The public hearing closed at 8:09 pm.

MOTION: Moved by Commissioner Magsamen and seconded by Commissioner Slovacek to accept the Findings of Fact and recommend to the Village President and Board of Trustees approval of: (1) Rezoning of the subject PINs from R-5 Medium Density Multiple-Family District to R-4 Low Density Multiple-Family District; (2) Variations from Side and Rear Yard Setback requirements as noted; (3) Approval of a Preliminary Plat of Subdivision; and (4) Vacation and transference of the Village-owned approximate 0.13-acre parcel at the site's east end for the purposes of constructing four duplex buildings on approximately 1.7 Acres on the south side of Strom Drive east of Century Plaza, identified as Hillside Point Subdivision, with the following conditions:

1. Compliance with all documents as submitted with the Planning and Zoning Application;
2. Review and approval of engineering plans, including 10' on either side of the water main and easements for the stormwater basin per recommendation by WBK Engineering; and
3. Compliance with all other applicable Village codes and ordinances.

Upon roll call, motion was approved.

AYES: Commissioners Magsamen, Seaton, Slovacek, Wieteska, and Meyer, and Chairman Martin
NAYS: None
ABSENT: None

B. Petition 2024-01: Consideration of Text Amendments to Title 10 – Zoning Regulations of the Municipal Code Related to the R-B Zoning District and Single Room Occupancy Units

MOTION: Moved by Commissioner Magsamen and seconded by Commissioner Meyer to open the Public Hearing regarding Planning and Zoning Petition 2024-01. Upon roll call, motion was approved.

AYES: Commissioners Magsamen, Seaton, Slovacek, Wieteska, and Meyer, and Chairman Martin
NAYS: None
ABSENT: None

The Public Hearing opened at 8:15 pm.

Chairman Martin opened the floor to Director Scott to introduce the petition. Village Planner Tibbetts confirmed that a notice regarding this Public Hearing was published according to law.

Director Scott provided a background regarding the proposed change to the Municipal Code and its relation to the property known as The Mansion, located at 305 Oregon Avenue. In essence, discussion and consideration are requested regarding the potential inclusion of Single Room Occupancy (SRO) and Short-Term Rentals as special uses, and the allowance of ground floor apartments, within the R-B Zoning District, as well as other potential text amendments to sync the zoning regulations with uses existing within R-B zoned properties, while providing safeguards to achieve predictable, desirable outcomes.

He noted that, while this Public Hearing is not directly related to The Mansion, a review of this property has led to the discussion at hand, and an understanding of the potential impacts and benefits of the proposed text amendment to this significant historic property is pertinent.

Director Scott noted that there are just 4 properties in West Dundee zoned R-B, with the other 3 having Main Street frontage. He advised that, separate from this discussion, staff is interested in bringing for consideration of rezoning other R-B properties to O or B-3 as appropriate to better reflect their use, and/or creating a new Main Street Mixed Use zoning classification or Main Street Overlay District in an effort to provide appropriate flexibility to the corridor to adjust to fluctuating market conditions, while encouraging the continued preservation of these highly visible structures.

It was noted that currently short-term rentals are allowed only within the B-1 (Downtown) Zoning District, and that SROs are not permitted within the Village. These are proposed to be added as a special use for the R-B District to provide flexibility in the types of accommodations and lengths of stay available for the rental of living space within R-B zoned properties, while vetting any proposed and subsequent operations through the special use permitting process.

Chairman Martin opened the floor for questions and discussion by the Commission and invited the owners of The Mansion to come forward and address the Commission if desired.

Planner Tibbetts swore in Mr. Steve Fang and Ms. Eda Tomasone of 418 Oregon Avenue, West Dundee, owners of The Mansion. Mr. Fang explained that the property was originally two structures, a main house and coach house (built in 1907), which were later connected (circa 1950).

Mr. Fang advised that the property is being successfully leased out under a few different rental scenarios, including (1) one- and two- bedroom apartments in the coach house with a minimum lease of 1 year, (2) SROs in the main house, which can also be used for traditional bed and breakfast guests, for which tenants have a private bedroom, private bath and access to common areas and cooking facilities, (3) SROs between the main house and coach house for which tenants have a private bedroom with sink, access to a shared full bath and no access to cooking facilities, and (4) one SRO in the main house for which the tenant has private living accommodations with multiple rooms, including a private bath, but no access to cooking facilities. He added that SROs are rented for a minimum stay of 3 weeks, with the exception of any bed and breakfast guests.

Director Scott noted that there have been no complaints received about operations at The Mansion. Mr. Fang added tenants are discouraged from having guests or engaging in any activity that might interrupt the quiet enjoyment of the neighborhood, noting that these regulations are more cumbersome to impose upon a vacation rental guest than a longer-term tenant. Director Scott added that holding events on site, as had been more common in the property's earlier days as a bed and breakfast, have more impact on the neighborhood than the current uses, in terms of parking, noise, etc.

Chairman Martin inquired about The Mansion's historical designation. Director Scott noted that it is not independently designated as a historical site, rather is a contributing property within the Dundee Township Historic District, which is recognized by the National Register of Historic Places and is considered both architecturally and historically significant. Maintenance of the historic nature of properties within the district is important to retaining recognition of the Historic District. Commissioner Slovacek inquired about the possibility of establishing a conservation district to define regulations specific to properties of historical significance.

The current R-B regulations were characterized as outdated, and it was noted that short-term private vacation rentals have grown in popularity such that bed and breakfast style accommodations may be underutilized.

Commissioner Magsamen inquired whether every unit includes an emergency egress window. Mr. Fang stated that they do, and that the facility is sprinklered throughout, with a sprinkler inspection conducted every 5 years and an RPZ valve inspection annually.

Commissioner Seaton indicated agreement that SROs, if added as a potential use to R-B, should be a special use, as it is uncommon and not represented elsewhere in the Village. Commissioners agreed that, in addition to current ownership, a review should be conducted and new special use permit issued

whenever there is a change in owner/operator with a desire to continue operations to include a use defined as special.

Director Scott noted that with the potential addition of SROs as a special use may also come some changes to business licensing and possible considerations regarding the hotel/motel lodging tax. He also advised that, should a text amendment be adopted, the current operators would then need to apply for a special use, which would initiate notification to all property owners within 250' of a public hearing before PZC.

Seeing no additional comments, Chairman Martin requested a motion to adjourn the Public Hearing.

MOTION: Moved by Commissioner Slovacek and seconded by Commissioner Seaton to close the Public Hearing regarding Planning and Zoning Petition 2024-01. Upon roll call, motion was approved.

AYES: Commissioners Slovacek, Wieteska, Meyer, Magsamen, and Seaton, and Chairman Martin

NAYS: None

ABSENT: None

The public hearing closed at 9:10 pm.

MOTION: Moved by Commissioner Seaton and seconded by Commissioner Magsamen to recommend to the Village Board of Trustees consideration of an amendment to the Municipal Code regarding the R-B Zoning District, to update regulations and related descriptions, including potential special uses.

Upon roll call, motion was approved.

AYES: Commissioners Seaton, Slovacek, Wieteska, Meyer, and Magsamen, and Chairman Martin

NAYS: None

ABSENT: None

VIII. CHAIRPERSON'S REPORT:

Chairman Martin advised that he spoke to an employee at the US Bank that indicated uncertainty regarding the bank's future use of the site, located at 704 W Main Street.

IX. REPORTS & QUESTIONS FROM COMMISSIONERS: There were none.

X. STAFF REPORTS: There were none.

IX. ADJOURNMENT:

MOTION: Moved by Commissioner Slovacek and seconded by Commissioner Magasamen to adjourn the Planning and Zoning Commission meeting. Motion was approved by acclamation.

The Planning and Zoning Commission meeting adjourned at 9:17pm.

Respectfully submitted,



Kim Tibbetts
Village Planner

ORDINANCE 2024-04

AN ORDINANCE AMENDING TITLE 10 - ZONING REGULATIONS OF THE MUNICIPAL CODE, ADDRESSING R-B RESIDENTIAL-BUSINESS ZONING DISTRICT REGULATIONS AND SINGLE ROOM OCCUPANCIES

WHEREAS, The Village of West Dundee, Kane County, Illinois (the "Village"), is a duly organized and validly existing home rule municipality pursuant to Article VII, Section 6(a) of the Constitution of the State of Illinois, and the passage of this Ordinance constitutes an exercise of the Village's home rule powers and functions as granted in Constitution of the State of Illinois; and,

WHEREAS, the Village President and Board of Trustees have contemplated certain changes to the West Dundee Municipal Code to define "single room occupancy" and amend R-B Residential-Business Zoning District regulations within Title 10 – Zoning Regulations and to amend the permitted uses, special uses, lot area requirements and additional regulations for the R-B District; and,

WHEREAS, the West Dundee Planning and Zoning Commission considered the subject of single room occupancies and R-B District regulations via public hearing on January 29, 2024, after due notice in the manner provided by law, to solicit public input regarding certain changes to the West Dundee Zoning Regulations; and,

WHEREAS, the Planning and Zoning Commission recommended to the West Dundee Village Board that said changes to the West Dundee Zoning Regulations be approved; and,

WHEREAS, the President and Board of Trustees have carefully considered the recommendations of the Planning and Zoning Commission as well as the information presented and the impact such recommendations would have on individual properties and the community as a whole and have determined that the benefits provided by these changes will outweigh any potential adverse impacts and therefore would be in the best interest of the Village.

NOW, THEREFORE, BE IT ORDAINED by the President and Board of Trustees of the Village of West Dundee, Kane County, Illinois, as follows:

SECTION 1: Title 10 - Zoning Regulations, Chapter 2, Section 1 – Definitions (10-2-1) of the West Dundee Municipal Code is hereby amended as follows:

SINGLE ROOM OCCUPANCY: Use by a single occupant of private sleeping quarters or living quarters within a primary structure designed for residential use, typically with access to communal kitchen and bathroom facilities, for a continuous period of thirty-one (31) days or more.

SECTION 2: That Title 10 - Zoning Regulations, Chapter 5 – Business Districts, Article A – R-B Residential-Business District (10-5A) of the West Dundee Municipal Code shall be repealed and replaced as follows:

ARTICLE A. R-B RESIDENTIAL-BUSINESS DISTRICT

10-5A-1: PERMITTED USES:

Apartment, above ground floor only.

Bed and breakfast establishment.

Retail goods establishment.

Accessory uses to the above permitted uses.

10-5A-2: SPECIAL USES:

Apartments, ground floor.

Retail service establishment.

Short-term rentals.

Single room occupancy units.

Any other uses recommended by the Planning and Zoning Commission and approved by the Village Board.

10-5A-3: LOT AREA REQUIREMENTS:

A. Lot Specifications:

1. Area: Nine-thousand (9,000) minimum total square feet.
2. Width: Sixty feet (60') minimum width at front setback line.

B. Yards:

1. Front yard: Thirty feet (30') minimum.
2. Side yard: Six feet (6') minimum, thirty feet (30') minimum on corner lot.
3. Rear yard: Twenty five feet (25') minimum for main buildings, three feet (3') minimum for accessory buildings.

10-5A-4: ADDITIONAL REGULATIONS:

A. Dwelling Standards:

1. For apartments and short-term rentals, as governed in the appropriate sections under zoning districts - residential.
2. For single-room occupancy units, not less than 100 square feet of floor area,
3. No new buildings shall be erected nor shall any existing buildings be structurally altered or extended, nor shall any additional parking spaces be generated without review of plans by the Planning and Zoning Commission and their written recommendation for denial or approval. If denial is recommended, the Village Board may veto such decision by a two-thirds (2/3) majority vote.

B. Off Street Parking And Loading: In accordance with application regulations set forth in chapter 9 of this title.

C. Signs: In accordance with application regulations set forth in title 9, chapter 4, "Sign Regulations", of this Code.

SECTION 9: If any section, paragraph, subdivision, clause, sentence, or provision of this Ordinance shall be adjudged in any Court of competent jurisdiction to be invalid, such judgment shall not effect, impair, invalidate or nullify the remainder thereof, which remainder shall remain in full force and effect.

SECTION 10: This ordinance shall be in full force and effect upon its passage, approval, and publication in pamphlet form which publications is hereby authorized as provided by law.

PASSED by the Board of Trustees of the Village of West Dundee, Kane County, Illinois, and approved by the President of said Village this 19th day of February, 2024.

AYES:	Trustees Price, Yuscka, Johnson, Alopogianis, Anderley and Wilbrandt
NAYS:	None
ABSENT	None

ATTEST:



Christopher Nelson, Village President



Mary Jo Pape, Village Clerk

Passed: 2/19/2024
Approved: 2/19/2024
Published:

Prepared by:
Village of West Dundee
Economic Development Department
100 Carrington Drive
West Dundee, IL 60118



Planning and Zoning Development Application

Date 3/4/24

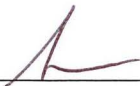
Subject Property Address <u>305 OREGON AVE</u>	
Applicant Name <u>STEPHEN FANG</u>	Address <u>418 OREGON AVE</u>
Phone <u>847-830-1597</u> Fax <u>-</u>	Email <u>THEMANSION@SBCGLOBAL.NET</u>
Owner Name <u>ABOVE</u>	Address _____
Phone _____ Fax _____	Email _____

Requested Action:

- ☐ Variation – Specify section of Code _____
- ☐ Rezoning – Current zoning of property _____ Proposed zoning _____
- ☒ Special Use – Specify proposed use SPECIAL USE SINGLE ROOM OCCUPANCY (SRO)
GROUND FLOOR APARTMENT
- ☐ Preliminary Plat of Subdivision ☐ Final Plat of Subdivision
- ☐ Annexation with Annexation Agreement ☐ Annexation without Annexation Agreement
- ☐ Master Concept Plan Review

Checklist of items to be submitted with application (see attached information sheet):

1. Legal description of property
2. Property owner's signature or letter authorizing filing of application
3. Survey of property showing improvements
4. Applicant's statement
5. Building plans including elevations
6. Proposed building materials
7. Copies of plats and plans – 15 copies reduced to 11 x 17 size
8. Other documents as requested by staff

Applicant's Signature 

Owner's Signature 

Fee Schedule

		Total Fee
Variation	\$250.00	
	\$300.00 (two or more requested variations)	
Special Use	\$250.00	
	\$350.00 (two or more requested special uses)	<u>\$350.00</u>
Rezoning	\$150.00	
Planned Development	\$200.00	
Preliminary Plan	\$20.00 per acre (Total not less than \$250.00)	
Final Plat	\$50.00	
Annexation	\$2,400.00	

For office use only:

Date Filed	<u>3/4/2024</u>	Fees paid	<u>3/4/2024</u>
Hearing date	<u>3/25/2024</u>	Publication date	<u>3/9/2024</u>
Notices mailed	<u>3/8/2024</u>	Routed to staff	<u>3/4/2024</u>
Staff Meeting		Report prepared	<u>3/21/2024</u>

The Mansion Bed and Breakfast

305 Oregon Avenue
West Dundee, IL 60118

March 4, 2024

Dear West Dundee Planning and Zoning commission, village trustees:

As per number 4 requirement for application of special use request regarding first floor apartment allowance and single room occupancy Ordinance 2024-04 we are submitting this letter asking the village to allow for this change in light of current economic conditions and the fact of the desirable low impact on the surrounding neighborhood.

Thank you for any and all considerations.

Steve Fang and Eda Tomasone
The Mansion Bed and Breakfast

Sincerely,

Steve Fang
Eda Tomasone
Owners
Phone: 847-426-7777
E-mail: themansion@sbcglobal.net

TRADITIONAL DWELLING UNITS (DU)

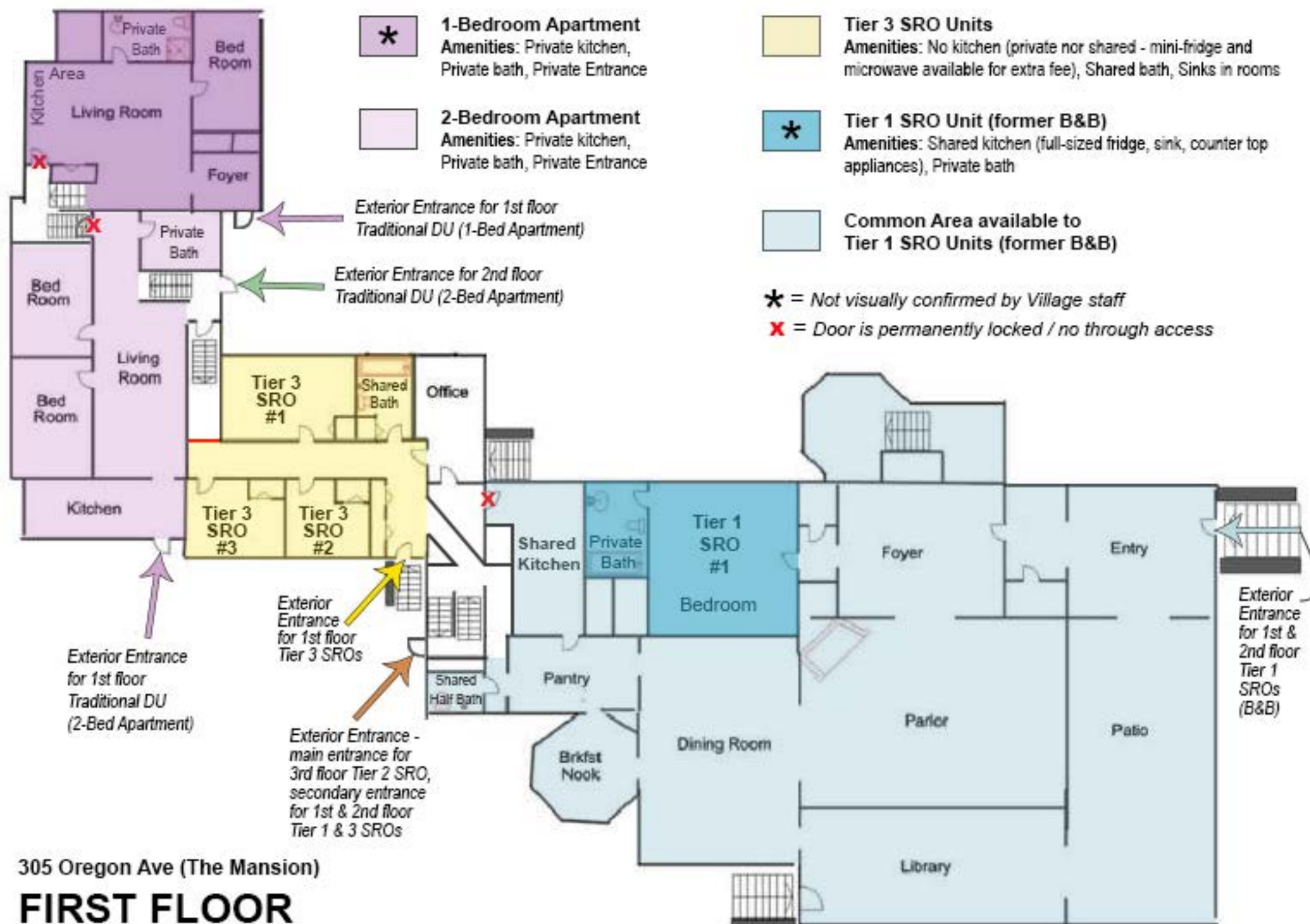
-  **1-Bedroom Apartment**
Amenities: Private kitchen, Private bath, Private Entrance
-  **2-Bedroom Apartment**
Amenities: Private kitchen, Private bath, Private Entrance

SINGLE ROOM OCCUPANCY (SRO) UNITS

-  **Tier 3 SRO Units**
Amenities: No kitchen (private nor shared - mini-fridge and microwave available for extra fee), Shared bath, Sinks in rooms
-  **Tier 1 SRO Unit (former B&B)**
Amenities: Shared kitchen (full-sized fridge, sink, counter top appliances), Private bath
-  **Common Area available to Tier 1 SRO Units (former B&B)**

* = Not visually confirmed by Village staff

X = Door is permanently locked / no through access





TRADITIONAL DWELLING UNITS (DU)



2-Bedroom Apartment
Amenities: Private Kitchen & Baths,
 Private Entrance, Private Veranda
(Last visually confirmed in 2010)

SINGLE ROOM OCCUPANCY (SRO) UNITS



Tier 1 SRO Units (former B&B)
Amenities: Shared kitchen (full-sized fridge, sink,
 countertop appliances), Private Baths



**Common Area available to
 Tier 1 SRO Units (former B&B)**

***** = *Not visually confirmed by Village staff*



305 Oregon Ave (The Mansion)

SECOND FLOOR

"SINGLE" ROOM OCCUPANCY (SRO) UNIT

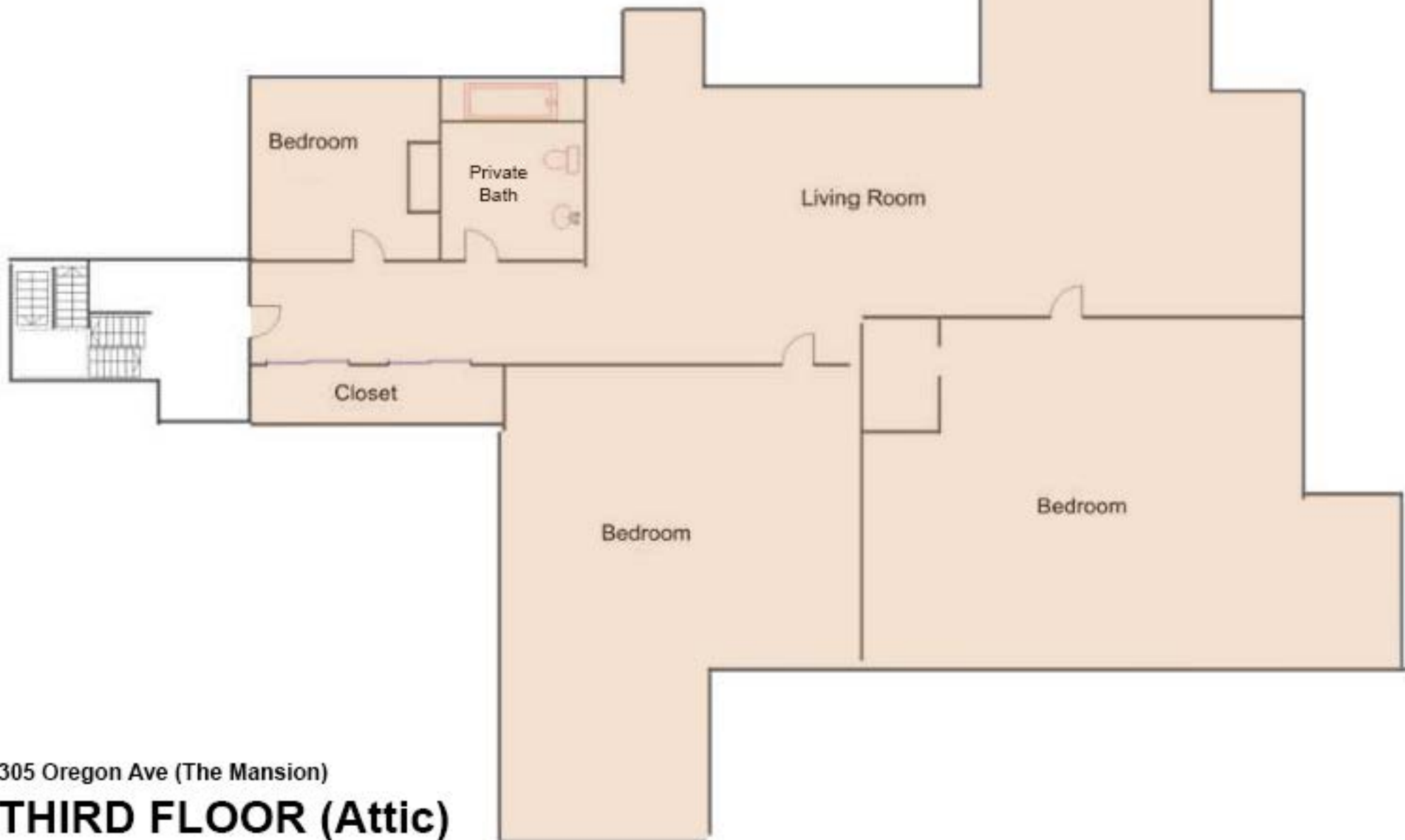
(More than one bedroom, but does not meet habitability standards for a Traditional Dwelling Unit)



Tier 2 SRO Unit

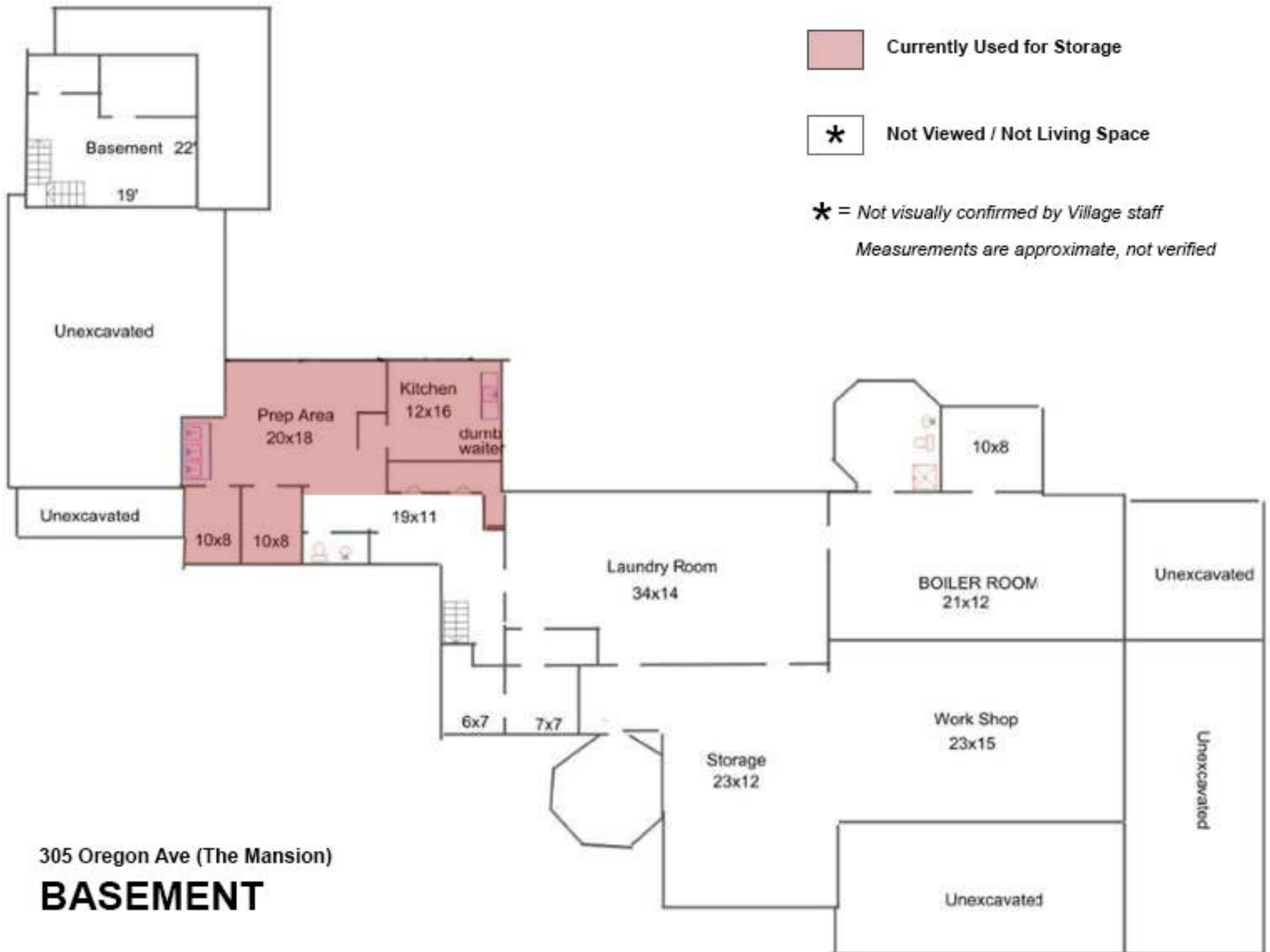
Amenities: No kitchen (private nor shared - mini-fridge and microwave available for extra fee), Private bath

***** = *Not visually confirmed by Village staff*



305 Oregon Ave (The Mansion)

THIRD FLOOR (Attic)



305 Oregon Ave (The Mansion)

BASEMENT

From: [Doug Bober](#)
To: [Kim Tibbetts](#)
Subject: The Mansion Public Notice
Date: Friday, March 15, 2024 11:22:09 AM

[External]

Kim,

I hope all is well. I received the public notice for petition 2024-05 regarding the special use application for The Mansion. Is the owner requesting to change or add any apartments or is this just a technicality with the change in the zoning code that now requires a special use permit?

I will not be able to make it to the hearing on the 25th, but I have lived behind The Mansion for the past 8 years and we have never had an issue with any of the renters. If this is just a special use permit to comply with the new zoning requirements I am in full support.

Thanks,

Doug Bober
310 Liberty St.

Village of
West Dundee

TO: Village President and Board of Trustees

FROM: Eric Babcock, Director of Public Works 

DATE: July 31, 2024

SUBJECT: Authorization to Purchase Public Works Vehicle Replacements

INTRODUCTION:

Public Works is requesting replacement of two fleet vehicles; a 2002 Ford F-550 1-ton dump truck with 78,936 miles (Vehicle # 14) and a 2007 Ford pickup with 108,372 miles (Vehicle # 33). Both vehicles are being replaced due to age, excessive engine wear, transmission problems, suspension failures and body deterioration.

BACKGROUND:

In a typical vehicle replacement scenario, the Village works with a joint purchasing organization that solicits competitive bids for both the vehicles and the upfitting services. The most commonly utilized groups in recent years have been the Illinois State Bid program, the Suburban Purchasing Cooperative (SPC) and Sourcewell (formerly the NJPA).

Unfortunately, staff discovered that there is no program from the State Bid or Sourcewell for pickup trucks this year, leaving SPC as the sole option for joint purchasing/competitive bidding. Public Works has been attempting to engage SPC to facilitate the ordering process for both vehicles since mid-May of this year to no avail. Correspondence has been slow, and they have been either unwilling or unable to provide the contract documentation necessary to place orders despite consistent and repeated requests.

With no means in which to determine when or if SPC will cooperate, Public Works began looking at other purchasing options starting with Monroe Trucking Company. Given their experience working with numerous manufacturers, dealerships and joint purchasing groups, they were able to point us in the direction of a few viable alternatives.

Vehicle # 14 Replacement

For the 1-ton dump truck replacement (#14), there are two options; 1. Order a new 2024 cab & chassis directly from Currie Ford in Frankfort, IL and have upfitting done by Monroe or 2. Purchase a new fully upfitted, ready-to-go 2023 truck currently on the lot at Dick Masheter Ford in Columbus, OH. Option # 1 represents a total cost that is \$91 more than the referenced SPC joint purchasing price and a delivery time of 6 to 8 months. Option # 2 represents a total cost that is \$3,604.01 more than the referenced SPC joint purchasing price and is available immediately.

Being this late in the year, the problem with Option # 1 is that the fully upfitted truck will not be delivered until after the upcoming winter season. With Vehicle # 14 being a front-line plow truck and the possibility of additional snow removal responsibilities coming for Ring Road, this option is not ideal. For this reason, staff recommends utilizing Option # 2 for the replacement of Vehicle #14 to have the plow truck when it is needed.

Vehicle # 33 Replacement

For the pickup truck replacement, the best option available is a 2022 Ford F-250 currently on the lot at Currie Ford in Frankfort, IL. Although 2 years old, the truck is not pre-owned and is sold as new. The truck has also already been fully upfitted with the service body we intended for this vehicle and is available at a cost of \$50,108. The only additional work needed for this truck is installation of a hydraulic lift gate at a cost of \$6,875 and installation of a light bar at a cost of \$3,666.85. All components of this replacement represent a total cost that is \$14,235.15 less than the referenced SPC joint purchasing price, largely due to Currie Ford offering a discount in the amount of \$12,558.24 for the truck being on the lot for two years.

Quotes for both vehicles and additional equipment for Vehicle #33 are attached for your review and consideration.

FISCAL IMPACT:

The Fiscal Year 2024/25 Budget in Fund 4 includes an amount of \$110,000 for the replacement of Vehicle #14. The recommended option for replacement of this truck from Dick Masheter Ford is \$114,143.76.

Fund 4 also includes an amount of \$80,000 for the replacement of Vehicle # 33. The recommended option for replacement of this truck from Currie Ford (plus lift gate and light bar installation) is \$60,649.85.

In total, the purchase price for both vehicles is \$174,793.61, which represents an overall savings of \$15,206.39 against the allocated budget of \$190,000.

RECOMMENDATION:

Therefore, it is respectfully requested and recommended that:

MOTION: Move to authorize Public Works to purchase a new 2023 Ford F-550 dump truck with plow package from Dick Masheter Ford at a cost of \$114,143.76 and a new 2002 Ford F-250 with service body from Currie Ford at a cost of \$50,108, along with lift gate and light bar installations at a cost of \$10,541.85.



New 2023 FORD Dump Truck, Plow Truck - Spreader Truck F550 For Sale

8 Miles Snow Fighter Stock # 27339

\$115,042

Dick Masheter Ford

Popularity Stats

Seen 30 times *(last 30 days)*

Be the first user to .

The price recently **decreased by \$2,000**

Description

Snow Fighter Stock # 27339 8 Miles

2023 Ford F-550, Dump Truck, Regular Unleaded V-8 7.3 L Engine, Automatic Transmission, 4WD, 2023 Ford F-550 Regular Cab DRW 4WD, Monroe Truck Equipment MTE-Zee Dump Truck ---- Oxford White 2023 Ford F-550SD DRW 4WD 10-Speed Automatic 7.3L V8 PFI OHV 16V Federal 335hp 4WD., VIN: 1FDUF5HNXPDA11051, ENGINE: 7.3L 2V DEVCT NA PFI V8 GAS (STD),Four Wheel Drive,Power Steering,Dual Rear Wheels,ABS,4-Wheel Disc Brakes,Brake Assist,Steel Wheels,Tires - Front All-Season,Tires - Rear All-Season,Tow Hooks,Heated Mirrors,Power Mirror(s),Integrated Turn Signal Mirrors,Intermittent Wipers,Variable Speed Intermittent Wipers,Daytime Running Lights,Automatic Headlights,AM/FM Stereo,MP3 Player,MP3 Player,Steering Wheel Audio Controls,Bluetooth Connection,Telematics,Auxiliary Audio Input,Smart Device Integration,Requires Subscription,Bluetooth Connection,Adjustable Steering Wheel,Trip Computer,WiFi Hotspot,Keyless Entry,Power Door Locks,Cruise Control,A/C,Vinyl Seats,Split Bench Seat,Driver Adjustable Lumbar,Passenger Vanity Mirror,Remote Engine Start,Requires Subscription,Smart Device Integration,Power Windows,Power Door Locks,Trip Computer,Immobilizer,Traction Control,Front Side Air Bag,Telematics,Requires Subscription,Lane Departure Warning,Front Collision Mitigation,Driver Air Bag,Passenger Air Bag,Passenger Air Bag On/Off Switch,Front Head Air Bag

Dick Masheter Ford

Detailed Specifications

Condition: New

Year: 2023

Make: FORD

Model:	F550
Class:	CLASS 5 (GVW 16001 - 19500)
Category:	Dump Truck, Plow Truck - Spreader Truck
Location:	Columbus, OH
Fuel Type:	Gasoline
Axles:	4WD
Brake Type:	Hydraulic
Stock Number:	27339
VIN:	1FDUF5HNXPDA11051
Drivetrain:	Rear Wheel Drive W/4x4
Engine Manufacture:	Ford
Engine Size:	7.3L
Transmission Type:	Automatic
Color:	Oxford White
Interior Color:	Medium Dark Slate
Doors:	2
Mileage:	8

Upfit Details

Upfit Body	
Type:	DUMP BODIES
Upfit Make:	MONROE

Upfit With MONROE

See more Trucks from this dealer

Featured

IMAGE IS LOADING

\$86,470

9 miles

2024 FORD F550 Cab Chassis

Dick Masheter Ford320 mi away

Featured

IMAGE IS LOADING

\$86,241

6 miles

2024 FORD F550 Dump Truck,L...

Dick Masheter Ford320 mi away

Featured

IMAGE IS LOADING

\$86,403

8 miles

2024 FORD F550 Mechanics Tru...

Dick Masheter Ford320 mi away

IMAGE IS LOADING

\$86,470

9 miles

2024 FORD F550 Cab Chassis

Dick Masheter Ford320 mi away

IMAGE IS LOADING

\$93,397

228 miles

2024 FORD F550 Utility Truck - ...

Dick Masheter Ford320 mi away

IMAGE IS LOADING

\$89,999

228 miles

2024 FORD F550 Utility Truck - ...

Dick Masheter Ford320 mi away

Dick Masheter Ford

Call 1-833-455-2026



Commerical Truck Quote

Company Name: _____

Date: 7-31-2024

Attention: Mike Kirk

Quote Expiration Date: _____

Address: _____

City, State, Zip: _____

Phone: _____

Stock# 27339

Purchase Price: 117,042.00

Vehicle: F550 Snowfighter

Applicable Rebates: 2,898.24

Sub Total: 114,143.76

Equipment: _____

Trade In Value: _____

Doc Fees: 309.25

Title/Filing: _____

Notes: _____

Sub Total: 114,453.01

Added Options: _____

Sales Tax: —

Money Down: _____

Final Cost: 114,453.01

Prepared By: Patrick Lennon

My Phone Number: 317.910.9362

My Fax Number: _____

1090 South Hamilton Road • Columbus, OH 43227

P 614-861-7150 • F 614-861-7303

www.masheterford.net

Prepared for: , H15189

2022 F-250 4x4 SD Regular Cab 8' box 142" WB SRW XL (F2B)

Price Level: 280



Client Proposal

Prepared by:
THOMAS SULLIVAN
Office: 815-464-9200
Quote ID: H15222
Date: 07/09/2024



Currie Commercial Center | 10125 W. Laraway, Frankfort, Illinois, 60423
Office: 815-464-9200

Prepared for:

H15189

Prepared by: THOMAS SULLIVAN

07/09/2024



Currie Commercial Center | 10125 W. Laraway Frankfort Illinois | 60423

2022 F-250 4x4 SD Regular Cab 8' box 142" WB SRW XL (F2B)

Price Level: 280 | Quote ID: H15222

As Configured Vehicle

Code	Description	MSRP
Base Vehicle		
F2B	Base Vehicle Price (F2B)	\$43,235.00
Packages		
600A	Order Code 600A <i>Includes:</i> - Engine: 6.2L 2-Valve SOHC EFI NA V8 Flex-Fuel - Transmission: TorqShift-G 6-Spd Auto w/SelectShift - GVWR: 10,000 lb Payload Package - Wheels: 17" Argent Painted Steel Includes painted hub covers/center ornaments. - HD Vinyl 40/20/40 Split Bench Seat Includes center armrest, cupholder, storage and driver's side manual lumbar. - Radio: AM/FM Stereo w/MP3 Player Includes 4 speakers. - SYNC Communications & Entertainment System Includes enhanced voice recognition with 911 Assist, 4.2" LCD center stack screen, AppLink and 1 smart-charging USB-C port.	N/C
Powertrain		
996	Engine: 6.2L 2-Valve SOHC EFI NA V8 Flex-Fuel	Included
44S	Transmission: TorqShift-G 6-Spd Auto w/SelectShift	Included
X4M	Electronic-Locking w/4.30 Axle Ratio	\$430.00
STDGV	GVWR: 10,000 lb Payload Package	Included
Wheels & Tires		
TBM	Tires: LT245/75Rx17E BSW A/T <i>Spare may not be the same as road tire.</i>	\$165.00
64A	Wheels: 17" Argent Painted Steel <i>Includes painted hub covers/center ornaments.</i>	Included
512	Spare Tire, Wheel, Carrier & Jack Required in RI. Spare tire is standard equipment; becomes optional when (66D) Pickup Box Delete is ordered.	\$295.00
Seats & Seat Trim		
A	HD Vinyl 40/20/40 Split Bench Seat <i>Includes center armrest, cupholder, storage and driver's side manual lumbar.</i>	Included

Prices and content availability as shown are subject to change and should be treated as estimates only. Actual base vehicle, package and option pricing may vary from this estimate because of special local pricing, availability or pricing adjustments not reflected in the dealer's computer system. See salesperson for the most current information.

Prepared for:

H15189

Prepared by: THOMAS SULLIVAN

07/09/2024



Currie Commercial Center | 10125 W. Laraway Frankfort Illinois | 60423

2022 F-250 4x4 SD Regular Cab 8' box 142" WB SRW XL (F2B)

Price Level: 280 | Quote ID: H15222

As Configured Vehicle (cont'd)

Code	Description	MSRP
Other Options		
142WB	142" Wheelbase	STD
PAINT	Monotone Paint Application	STD
96V	XL Value Package	\$395.00
	Includes: - Bright Chrome Hub Covers & Center Ornaments - Chrome Rear Step Bumper - Steering Wheel-Mounted Cruise Control	
90L	Power Equipment Group	\$1,100.00
	Deletes passenger-side lock cylinder. Includes upgraded door trim panel.	
	Includes: - Accessory Delay - Trailer Tow Mirrors w/Power Heated Glass Includes manual folding, manually telescoping, heated convex spotter mirror and integrated clearance lamps and turn signals. - Advanced Security Pack Includes SecuriLock Passive Anti-Theft System (PATS) and inclination/intrusion sensors. - Power Locks - Power Tailgate Lock - Power Front Seat Windows Includes 1-touch up/down driver/passenger window. - Remote Keyless Entry	
473	Snow Plow Prep Package	\$250.00
	Requires Extra Extra Heavy-Duty Alternator (67E) when ordered with Upfitter Switches (66S) and 110V/400W Outlet (43C).	
	Includes computer selected springs for snowplow application. Note restrictions apply; see supplemental reference or body builders layout book for details. May result in deterioration of ride quality when vehicle is not equipped with snowplow. Dual battery (86M) recommended with 6.2L or 7.3L gasoline engines; see body builders layout book for details.	
66D	Pickup Box Delete	-\$625.00
	Deletes tie-down hooks, tailgate, rearview camera, 7/4 pin connector and center high-mounted stop lamp (CHMSL) (only on vehicles over 10,000 lbs. GVWR). Incomplete vehicle package - requires further manufacture and certification by a final stage manufacturer. In addition, Ford urges manufacturers to follow the recommendations of the Ford Incomplete Vehicle Manual and the Ford Truck Body Builder's Layout Book (and applicable supplements).	
	Includes: - Rear Bumper Delete - Spare Wheel, Tire, Carrier & Jack Delete	
	The selection of 66D Pickup Box Delete adjusts the curb weight, but does not modify the payload. For payload information, contact your upfitter (final stage manufacture) or review the Body Builder Advisory Service (BBAS) website (www.fordbbas.com).	
41H	Engine Block Heater	\$100.00
67E	240 Amp Alternator	\$85.00

Prices and content availability as shown are subject to change and should be treated as estimates only. Actual base vehicle, package and option pricing may vary from this estimate because of special local pricing, availability or pricing adjustments not reflected in the dealer's computer system. See salesperson for the most current information.

Prepared for:

H15189
Prepared by: THOMAS SULLIVAN
07/09/2024



Currie Commercial Center | 10125 W. Laraway Frankfort Illinois | 60423

2022 F-250 4x4 SD Regular Cab 8' box 142" WB SRW XL (F2B)

Price Level: 280 | Quote ID: H15222

As Configured Vehicle (cont'd)

Code	Description	MSRP
52B	Trailer Brake Controller <i>Verified to be compatible with select electric over hydraulic brakes. Includes smart trailer tow connector.</i>	\$300.00
18B	Platform Running Boards	\$320.00
872	Rear View Camera & Prep Kit <i>Pre-installed content includes cab wiring, frame wiring to the rear most cross member and video display with 4" display. Upfitters kit includes camera with mounting bracket, 14' jumper wire and camera mounting, aiming instructions and electrochromic mirror.</i>	\$415.00
43C	110V/400W Outlet Requires Extra Extra Heavy-Duty Alternator (67E) when ordered with Upfitter Switches (66S) and Snow Plow Pkg. (473) or Snow Plow/Camper Pkg. (47B). <i>Includes 1 in-dash mounted outlet.</i>	\$175.00
587	Radio: AM/FM Stereo w/MP3 Player <i>Includes 4 speakers.</i> <i>Includes:</i> - SYNC Communications & Entertainment System <i>Includes enhanced voice recognition with 911 Assist, 4.2" LCD center stack screen, AppLink and 1 smart-charging USB-C port.</i>	Included

Fleet Options

942	Daytime Running Lamps (DRL) (LPO) Requires valid FIN code. <i>The non-controllable 942 Daytime Running Lamps (DRL) replace the standard Daytime Running Lamps (DRL) on/off cluster controllable.</i>	\$45.00
WARANT	Fleet Customer Powertrain Limited Warranty Requires valid FIN code. <i>Ford is increasing the 5-year 60,000-mile limited powertrain warranty to 5-years, 100,000 miles. Only Fleet purchasers with a valid Fleet Identification Number (FIN code) will receive the extended warranty. When the sale is entered into the sales reporting system with a sales type fleet along with a valid FIN code, the warranty extension will automatically be added to the vehicle. The extension will stay with the vehicle even if it is subsequently sold to a non-fleet customer before the expiration. This extension applies to both gas and diesel powertrains. Dealers can check for the warranty extension on eligible fleet vehicles in OASIS. Please refer to the Warranty and Policy Manual section 3.13.00 Gas Engine Commercial Warranty. This change will also be reflected in the printed Warranty Guided distributed with the purchase of every new vehicle.</i>	N/C

Emissions

425	50-State Emissions System	STD
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Exterior Color

Prices and content availability as shown are subject to change and should be treated as estimates only. Actual base vehicle, package and option pricing may vary from this estimate because of special local pricing, availability or pricing adjustments not reflected in the dealer's computer system. See salesperson for the most current information.

Prepared for:

H15189

Prepared by: THOMAS SULLIVAN

07/09/2024



Currie Commercial Center | 10125 W. Laraway Frankfort Illinois | 60423

2022 F-250 4x4 SD Regular Cab 8' box 142" WB SRW XL (F2B)

Price Level: 280 | Quote ID: H15222

As Configured Vehicle (cont'd)

Code	Description	MSRP
Z1_01	Oxford White	N/C
Interior Color		
AS_01	Medium Earth Gray w/HD Vinyl 40/20/40 Split Bench Seat	N/C
Upfit Options		
2023-008	License and Title Fees <i>Doc Fee</i> <i>Title Fee</i> <i>License Plates</i>	\$487.24
2023-028	8' Monroe S- Steel Service Pro Body <i>98" S-Series Steel Service Pro Body</i> <i>Steel Understructure</i> <i>48.5" Load Space</i> <i>A60 Galvannealed Diamond Plate Floor</i> <i>SS Rotary Paddle Latches and Bolt On Hinges</i> <i>Nitrogen Gas Strut Door Holders</i> <i>Adjustable Compartment Trays/Shelves</i> <i>Knee Braced Slam Action tail Gate</i> <i>Seamless Wheelhouse Panel w/ Poly Carbonite Fender Flares Powder Coated White</i> <i>Step Mate Bumper System w/ Integrated Steps and Grab Handles</i> <i>LED Tail Light Lighting</i> <i>Master Lock</i> <i>LED Compartment Lighting</i> <i>7 Way RV Style Trailer Plug</i>	\$13,699.00
SUBTOTAL		\$60,871.24
Destination Charge		\$1,795.00
TOTAL		\$62,666.24

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Warranty

Standard Warranty

Basic Warranty	
Basic warranty	36 months/36,000 miles
Powertrain Warranty	
Powertrain warranty	60 months/60,000 miles
Corrosion Perforation	
Corrosion perforation warranty	60 months/unlimited
Roadside Assistance Warranty	
Roadside warranty	60 months/60,000 miles

Prices and content availability as shown are subject to change and should be treated as estimates only. Actual base vehicle, package and option pricing may vary from this estimate because of special local pricing, availability or pricing adjustments not reflected in the dealer's computer system. See salesperson for the most current information.

Pricing Summary - Single Vehicle

	MSRP
<i>Vehicle Pricing</i>	
Base Vehicle Price	\$43,235.00
Options	\$3,450.00
Colors	\$0.00
Upfitting	\$14,186.24
Fleet Discount	\$0.00
Fuel Charge	\$0.00
Destination Charge	\$1,795.00
Subtotal	\$62,666.24
<i>Discount Adjustments</i>	
Discount Adjustments	-\$12,558.24
Total	\$50,108.00

Customer Signature

Acceptance Date



1051 W 7th St
Monroe, WI 53566
Sales Rep: Tim Reynolds
Ph: 815-275-0223
www.MonroeTruck.com



J.O. #
Quotation ID: 9KK1000469
Date: 7/26/2024
Valid thru: 8/25/2024
Terms: NET 30
Quoted by: Kaden King
Ph/Fax: 608-329-8322 /

Quoted to:

WEST DUNDEE, VILL OF (ATTN:)
102 S 2ND ST
WEST DUNDEE, IL 60118
Ph: 847-551-3800 / Fax: 847-551-3809
Email:

Chassis Information

Year: 2024	Make: FORD	Model: F-250	Chassis Color:	Cab Type: REGULAR
Single/Dual: SRW	CA: 56.0	CT: -1.0	Wheelbase: 142.0	Engine: GAS
			F.O. Number #:	Vin:

Notes:

Monroe Truck Equipment, Inc. is pleased to offer the following quote for your review:

Description	Amount
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TOMMY GATE, ALUMINUM, TWO-PIECE, G2 SERIES LIFTGATE (G2-54-1342 EA38)

- LOAD AREA: 49" WIDTH X 38" DEPTH W/ 6" TAPER
- 1,300 LB RATED LOAD CAPACITY
- ENCLOSED HYDRAULIC SYSTEM
- MOISTURE RESISTANT TOGGLE SWITCH
- 150 AMP CIRCUIT BREAKER
- LED S/T/T LIGHT KIT
- 90 SECOND DEACTIVATION TIMER (HELPS PREVENT UNAUTHORIZED USE)
- PRESSURE RELIEF VALVE (PREVENTS OPERATOR FROM OVERLOADING THE PLATFORM)
- INSTALL FACTORY CAMERA ON CUSTOM FAB CAMERA BAR

**** INSTALLED ON EXISTING SERVICE BODY ****

Quote Total: \$6,875.00

**** DUE TO CURRENT MARKET CONDITIONS, IF THE CHASSIS WILL NOT BE ON-GROUND AT MONROE TRUCK EQUIPMENT WITHIN 240 CALENDAR DAYS OF ORDER DATE, WE WILL REQUIRE A MINIMUM 50% DOWN PAYMENT BEFORE THE 210TH DAY. IF YOU ARE NOT ABLE TO PROVIDE A DOWN PAYMENT, YOUR MUNICIPALITY COULD BE SUBJECT TO A MINIMUM OF 3% - 5% PRICE INCREASE ON BID PRICE AT TIME OF INVOICE!**

Down Payment Due Date: _____

Additional Options:

Description	Amount	Add to quote? Yes / No
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Terms & Conditions

- Terms are Due Upon Receipt unless prior credit arrangements are made at the time of order.
- Please note if chassis is furnished, it is as a convenience and terms are Net Due on Receipt of Chassis.
- State and Federal taxes will be added where applicable. **Out-of-state municipal entities may be subject to Wisconsin sales tax.**
- Restocking fees may be applicable for cancelled orders.
- MTE is not responsible or liable for equipment that does not meet local/state regulations if those laws are not made known at time of order.

By signing and accepting this quote, the customer agrees to the terms listed above and has confirmed that all chassis information listed above is accurate to chassis specs.

Re-Assign (Required for all pool units): ☐ Fleet ☐ Retail		MSO/MCO (ONLY check if legally required): ☐ MCO ☐ MSO	
Customer Signature:		Customer P.O. Number:	Date of Acceptance:



MPC Communications & Lighting Inc

1910 Willow Road * Northbrook, IL 60062
Phone: 847-272-4323 Fax: 847-272-4583
Email: mpcoffice@comcast.net

Quote

ADDRESS

Attn: Adam Peters
West Dundee Public Works
900 Angle Tarn
West Dundee, IL 60118

QUOTE # 2283

DATE 06/27/2024

YR./MODEL

2024 Ford F-250 W/ Utility Box

DESCRIPTION	QTY	RATE	AMOUNT
Labor: Install light bar and wire into existing OEM Ford switches. Also, wire in stop, turn and tail light circuits in light bar (if possible). Run power/ground wires to existing driver side front cabinet switch box. Install VHF standalone radio with antenna, handheld streamlight flashlight charger and Streamlight box light charger. All circuits to be individually fuse protected.	1	1,845.00	1,845.00
F.S. 53" Legend Amber LED Light Bar with forward facing work lights, alley lights, stop/turn/tail and Hook Kit	1	1,395.00	1,395.00
Relay 30 Amp	2	7.95	15.90
12 AWG Weatherproof Fuse Holder with Fuse	2	4.85	9.70
Standard Fuse Holder with Fuse	3	3.25	9.75
Short "L" Bracket (mounts VHF radio)	2	14.75	29.50
VHF Antenna Black with Cable & Plug	1	42.50	42.50
Secure Idle Ignition Over-Ride System Ford F-250	1	185.00	185.00
Magnetic Mic Clip	1	34.50	34.50
Miscellaneous Parts (wire, flex guard, connectors, ties, hardware, etc.)	1	100.00	100.00
Note 1: Estimates are an approximation of charges to you, and they are based on the anticipated details of the work to be done. It is possible for unexpected complications to cause some deviation from the estimate. If additional parts or labor are required you will be contacted immediately.			
Note 2: West Dundee P.W. to provide Streamlight flashlight with Charger, Streamlight box light with charger, VHF radio with microphone, power and accessory wires.	1	0.00	0.00
Note 3: Switch box in driver side front utility cabinet is to already be wired to existing cabinet lights.			
Note 4: Stop, turn and tail lights in light bar may or may not be able to be wired in. Some trucks this is possible, some trucks it is not possible.			

Thank you for the opportunity to quote!

TOTAL

\$3,666.85

Accepted By

Accepted Date

Village of
West Dundee

TO: Village President and Board of Trustees

FROM: Eric Babcock, Director of Public Works

DATE: August 1, 2024

SUBJECT: Authorization to Conduct Village Hall Landscaping



INTRODUCTION:

Public Works has solicited quotes for landscaping changes at Village Hall and is seeking authorization to conduct the work.

BACKGROUND:

The project includes the removal of existing plantings in the landscaping beds along the front and right sides of Village Hall, followed by the installation of sod. The purpose of the change is to establish a better aesthetic for the building and reduce ongoing maintenance.

Three quotes for this work were received, from the low quote of \$5,860 provided by Dundee Landscaping to the high quote of \$8,000 provided by Yellowstone. Copies of all three quotes are attached for your review and consideration.

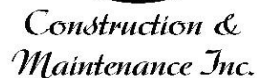
FISCAL IMPACT:

The Fiscal Year 2024/25 Budget does not include funding for this project specifically, but general landscaping maintenance is included in the Buildings & Grounds line item (1-18-4-2000) at an amount that can accommodate this expenditure.

RECOMMENDATION:

Therefore, it is respectfully requested and recommended that:

MOTION: Move to authorize Dundee Landscaping to conduct landscaping work at Village Hall at a cost of \$5,860.



Mailing Address: 40W320 Baron Ln.
Huntley, IL 60142

Phone: 847.426.2305

Fax: 847.426.2610

Email: b.dundeelandscape@att.net

The Village of West Dundee
102 S. 2nd St.
West Dundee, IL 60118

P:

Email:

To accept this quotation, sign here and return: _____ Date: _____

Terms: Due upon Receipt, or 2 % per month after 15 days (24% per annum) plus reasonable attorney's fees and court costs incurred in collecting any payments past due. **Credit Card Payments are subject to a 2.5% Processing Fee**

Warranty: All material is guaranteed to be as specified, and the above work to be performed in accordance with the drawings and specifications and completed in a workman like manner. All plant material carries a one-year warranty with the exception of perennials and roses which carry a 90-day warranty. Any item failing to survive will be replaced once. All hardscape installations shall be warranted for a period of 5 years to be free of workmanship defect. These guarantees apply if the item in our judgment has received reasonable care and does not apply to damage caused by the misuse of herbicides/de-icers, or acts of God, animal or man, or if the account has not been paid in full.

Thank you for your business!



1050 Tamarac Drive
Carpentersville, IL 60110

Estimate

ESTIMATE #

7141

NAME / ADDRESS

Project:

2024

Village of West Dundee
102 South Second Street
West Dundee, IL 60118

DESCRIPTION	QTY	COST	TOTAL
mkirk@wdudee.org TOP TIER BEDS - FRONT AND RIGHT SIDE Removal of plants large and small Ground Cover Mulch Disposal Install topsoil re-grade area Install sod (2 FT) strip by windows Install Mulch Labor, Disposal, Delivery and Materials		7,800.00	7,800.00
		TOTAL	\$7,800.00

Phone #

847-426-0000

Fax #

847-426-0003

Web Site

www.trinitylandscape.com



Proposal #353968
From: Curtis Hall

Proposal For:

West Dundee Village Hall
c/o

Location

102 S. 2nd St
West Dundee, IL 60118

West Dundee Village Hall: Fall Enhancement

Terms:

Account Manager: Curtis Hall

Yellowstone Landscape hereby proposes to provide all labor, equipment, and materials needed to install the following items. Please initial any changes by line item and initial and date the bottom of each page. Thank you.

DESCRIPTION	QTY	UNIT PRICE	TOTAL PRICE
Front Side of Building -			
Remove all plant material on left and ride side of entrance stairs.	1	\$1,350.00	\$1,350.00
Provide and install new topsoil and sod from three feet away from building to sidewalk bed	1	\$1,775.00	\$1,775.00
Provide and Install (2) Eastern Redbud Trees. (1) on each side of entrance, near the building	2	\$535.00	\$1,070.00
in landscape bed near building, provide and install (6) 5 Gal Incrediball Hydrangeas, (3) on each side of entrance	6	\$105.00	\$630.00
North Side of Building -			
Remove all plant material from building to sidewalk bed	12	\$90.00	\$1,080.00
Provide and install new topsoil and sod from three feet away from building to sidewalk bed	1	\$1,150.00	\$1,150.00
in landscape bed near building, provide and install (9) 5 Gal Incrediball Hydrangeas	9	\$105.00	\$945.00
SUBTOTAL			\$8,000.00
SALES TAX			\$0.00
TOTAL			\$8,000.00

Guarantee

Yellowstone Landscape guarantees that all plant material will be true to name.

Any tree, shrub, or evergreen that fails to survive a period of one (1) year from the date of installation will be replaced at no additional cost provided that the plant material in question has received proper care from the purchaser.

Excluded from the scope of this guarantee will be damage as a result of over-watering, drought, animals, vandalism, and acts of nature.

Sod, seed, perennial, annuals, and groundcover are excluded from the scope of this guarantee.

The guarantee implied here is contingent upon the fact that payment is made within the agreed upon terms.

It is the purchaser's responsibility to ensure that proper care is given to new plant material during the one-year warranty period or warranties shall be null and void.

Customer agrees to a restocking fee of 25% of the total cost for all project cancellations.

Terms

Inherent in the acceptance of this proposal is the understanding that the purchaser agrees to pay in full the total amount of the invoice within 30 days of the date of the invoice. Yellowstone Landscape reserves the right to add a 1.5% monthly service charge to all invoices not paid within 30 days – annual interest rates equals 18%. Services may be discontinued upon the 91st day of non-payment.

Pricing for this proposal is guaranteed for 30 days from the date of the proposal. Yellowstone Landscape may adjust pricing after 30 days to reflect current market conditions.

Accepted By:

As Agent For:

As Agent For Yellowstone Landscape ☐

Please initial and date each page: _____

Village of
West Dundee

TO: Village President and Board of Trustees

FROM: Thomas Moszczynski, Community Development Director and Building Official

DATE: August 05, 2024

SUBJECT: Authorization to Initiate Auction for Items and Fixtures at Spring Hill Mall

INTRODUCTION:

Since the acquisition of the former Sears, Macy's, and Spring Hill Mall, the Village has explored options as how to best distribute any items leftover by the mall or its former tenants. Staff believes that there were items left behind that may be of value and could be re-used or re-purposed in lieu of discarding them during demolition.

BACKGROUND:

Obenauf Auction Service Inc. of Round Lake, IL specializes in offering professional auctioneering services, primarily to municipalities and other public entities. Staff is looking into having Obenauf catalog items and offer them on an online auction. Village staff would tag any items that we believe are of value and would be worth auctioning off.

In order to minimize the liability of having the public walk through the mall, staff would instruct Winger Building Services to consolidate items into one location, preferably a truck dock. Obenauf would catalog the items in the truck dock, and after the auction Village staff would coordinate with Obenauf and Winger to schedule a day for the public to pick up any items they won at auction.

Using an auction appears to be the most straightforward and fair method of distributing any leftover items at the mall. Proceeds from the auction would be used to help cover the expense of man hours that would be needed to consolidate and catalog the items by both Winger and Obenauf.

FISCAL IMPACT:

The intention is to have a net zero fiscal impact. Staff estimates that around 100 man hours would be needed to consolidate and catalog the items with an expense of around \$5,000. Staff will only offer items that we feel will offset the cost of the logistics needed to auction them off.

RECOMMENDATION:

Staff recommends authorizing Winger Building Services and Obenauf Auction Service Inc. to facilitate an auction of items at Spring Hill Mall that Village staff has approved for auction.

MOTION:

Move to authorize Obenauf Auction Service Inc. and Winger Building Services to initiate an auction of items at Spring Hill Mall that Village staff approves for auction.